

CRIMINAL LAW OUTLINE

PROFESSOR DEWOLF — SPRING 2026

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I. PRINCIPLES OF PUNISHMENT

A. Theories of Punishment

1. **Retribution** — Punishment justified because offender deserves it a. Backward-looking — focuses on moral blameworthiness b. "Just deserts" model — punishment proportional to harm caused c. Key case: *People v. Superior Court (Du)* — retribution alone insufficient; must consider proportionality
2. **Deterrence** — Punishment justified to prevent future crime a. **Specific deterrence** — punishes individual to discourage reoffending b. **General deterrence** — punishes individual to discourage others from similar conduct c. Key case: *State v. Chaney* — court rejected purely deterrent sentence where disproportionate to offense
3. **Incapacitation** — Punishment justified to remove offender from society a. Protects public by physically preventing future crimes b. Three-strikes laws exemplify incapacitation rationale
4. **Rehabilitation** — Punishment justified to reform offender a. Focuses on treating underlying causes of criminal behavior b. MPC §1.02(2) — rehabilitation is a primary purpose of sentencing

B. Proportionality Requirement (8th Amendment)

1. **Gross Disparity Test** (*Solem v. Helm*, 1983) a. Gravity of offense vs. severity of sentence b. Sentences within legislative authority presumptively valid c. Only "extreme" sentences violate proportionality
2. **Non-capital cases** — substantial deference to legislature a. *Rummel v. Estelle* — life sentence for three felonies (fraud totaling \$230) upheld b. *Lockyer v. Andrade* — 50-years-to-life for petty theft with priors upheld
3. **Capital cases** — heightened scrutiny applies a. Death penalty must be proportional to defendant's culpability b. *Coker v. Georgia* — death penalty disproportionate for rape of adult woman c. *Kennedy v. Louisiana* — death penalty disproportionate for child rape where victim not killed

C. Common Exam Issues / Traps

- **TRAP:** Do not confuse retribution with revenge. Retribution is limited by proportionality; revenge is not.
 - **TRAP:** Multiple theories may justify the same punishment. Identify which theory the question tests.
 - **TRAP:** Proportionality challenges rarely succeed in non-capital cases. Assume legislative sentences are valid.
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II. PRINCIPLE OF LEGALITY

A. Core Doctrine

1. **No crime without law** — *Nullum crimen sine lege* a. Conduct must be prohibited by statute before it occurs b. Statutes must give fair warning of prohibited conduct c. *Keeler v. Superior Court* — fetus not a "human being" under murder statute; no conviction
2. **No punishment without law** — *Nulla poena sine lege* a. Punishment must be authorized by statute at time of offense b. Ex post facto laws prohibited (U.S. Const. Art. I, §9, §10)

B. Void-for-Vagueness Doctrine

1. **Two-prong test** (*Papachristou v. City of Jacksonville*, 1972) a. Statute must give person of ordinary intelligence fair notice of prohibited conduct b. Statute must not encourage arbitrary or discriminatory enforcement
2. **Application** a. *City of Chicago v. Morales* — loitering statute void for vagueness; gave police too much discretion b. *Kolender v. Lawson* — statute requiring "credible and reliable" identification void for vagueness

C. Rule of Lenity

1. **Ambiguous statutes construed in favor of defendant** a. Applies only when statute is genuinely ambiguous after all interpretive tools exhausted b. *United States v. Santos* — "proceeds" in money laundering statute ambiguous; construed narrowly

D. Common Exam Issues / Traps

- **TRAP:** Legality issues arise when legislature has not spoken. If statute exists, analyze vagueness, not legality.
 - **TRAP:** Common law crimes are abolished in most jurisdictions. Always check for a statute.
 - **TRAP:** Ex post facto applies only to criminal laws, not procedural changes.
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III. ACTUS REUS

A. Definition — The Physical Element of a Crime

1. **Voluntary act** — bodily movement that is willed a. MPC §2.01(1) — "A person is not guilty of an offense unless his liability is based on conduct that includes a voluntary

act" b. **Involuntary acts excluded:**

- Reflex or convulsion
- Conduct during unconsciousness or sleep
- Conduct during hypnosis
- Conduct not product of effort or determination (MPC §2.01(2))

6. Key Cases

- **CASE:** *Martin v. State* (1944)
 - **ISSUE:** Can a person be guilty of public intoxication if involuntarily brought to a public place?
 - **RULE:** Actus reus requires a voluntary act; being involuntarily placed in public is not a voluntary act.
 - **HOLDING:** No. Conviction reversed.
 - **SIGNIFICANCE:** Establishes that the voluntary act must be the *conduct* element of the crime.
- **CASE:** *People v. Newton* (1970)
 - **ISSUE:** Is conduct during unconsciousness a voluntary act?
 - **RULE:** Unconsciousness is a complete defense because it negates the voluntary act requirement.
 - **HOLDING:** Defendant shot officer while unconscious from gunshot wound; not guilty.
 - **SIGNIFICANCE:** Unconsciousness is not a defense to crimes requiring only negligence.

B. Omission Liability

1. **General Rule** — No duty to act unless: a. Statute imposes duty (e.g., filing taxes, reporting accidents) b. Status relationship (parent-child, spouse-spouse) c. Contractual duty (lifeguard, doctor on call) d. Voluntary assumption of care that isolates victim from help e. Defendant created the peril

2. Key Cases

- **CASE:** *People v. Beardsley* (1907)
 - **ISSUE:** Does a man have a duty to prevent the suicide of his mistress?
 - **RULE:** No duty exists absent a legal relationship or statutory obligation.
 - **HOLDING:** No duty; conviction reversed.
 - **SIGNIFICANCE:** Courts narrowly construe duty relationships.
- **CASE:** *Jones v. United States* (1962)
 - **ISSUE:** What establishes a legal duty to act?
 - **RULE:** Four bases: (1) statute, (2) status, (3) contract, (4) voluntary assumption.
 - **HOLDING:** Conviction reversed because jury not instructed on duty element.
 - **SIGNIFICANCE:** Prosecution must prove duty as element of omission liability.

- **CASE:** *Barber v. Superior Court* (1983)

- **ISSUE:** Is removing life support an omission or an act?
- **RULE:** Withdrawing life-sustaining treatment is an omission, not an act, when patient is terminal.
- **HOLDING:** No homicide; doctors not criminally liable.
- **SIGNIFICANCE:** Distinguishes between killing and letting die.

C. Possession as Actus Reus

1. **MPC §2.01(4)** — Possession is voluntary if defendant knowingly procured or received the item, or was aware of control long enough to terminate possession
2. **Actual possession** — physical control
3. **Constructive possession** — knowledge + power to control

D. Common Exam Issues / Traps

- **TRAP:** Omission liability requires a duty. Do not assume a moral duty creates a legal duty.
 - **TRAP:** "Good Samaritan" statutes exist in few states. Most jurisdictions impose no duty to rescue.
 - **TRAP:** Possession crimes — always analyze whether possession was "knowing" and "voluntary."
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IV. MENS REA

A. Common Law Approach

1. **Specific Intent** — defendant intended to cause the specific harm or result a. Crimes: larceny, burglary, robbery, attempt, solicitation, conspiracy b. Defenses: voluntary intoxication, unreasonable mistake of fact
2. **General Intent** — defendant intended to commit the actus reus a. Crimes: battery, rape, kidnapping b. Defenses: voluntary intoxication generally not available
3. **Malice** — reckless disregard of a known risk a. Crimes: murder, arson b. Does not require ill will; requires awareness of risk
4. **Strict Liability** — no mens rea required for at least one element a. Typically regulatory offenses (public welfare offenses) b. *Morrisette v. United States* — presumption of mens rea unless legislature clearly indicates otherwise

B. MPC §2.02 — Four Culpability Levels

1. **Purposely** — conscious object to engage in conduct or cause result a. MPC §2.02(2)(a)(i) — "if the element involves the nature of his conduct or a result thereof, it is his conscious object to engage in conduct of that nature or to cause such a result" b. **Knowledge of attendant circumstances** — defendant must be aware or believe/hope they exist
2. **Knowingly** — aware that conduct is of a particular nature or that circumstances exist a. MPC §2.02(2)(b)(i) — "if the element involves the nature of his conduct or the attendant circumstances, he is aware that his conduct is of that nature or that such

circumstances exist" b. **Willful blindness** — defendant is aware of high probability of fact and deliberately avoids confirmation

- *United States v. Jewell* — knowledge can be inferred from deliberate ignorance

4. **Recklessly** — conscious disregard of substantial and unjustifiable risk a. MPC §2.02(2)(c) — "consciously disregards a substantial and unjustifiable risk" b. Risk must be of such nature and degree that disregard constitutes gross deviation from reasonable person standard

5. **Negligently** — should be aware of substantial and unjustifiable risk a. MPC §2.02(2)(d) — "should be aware of a substantial and unjustifiable risk" b. Failure to perceive risk constitutes gross deviation from reasonable person standard

C. Hierarchy of Culpability (MPC §2.02(5))

1. **Default rule** — if statute does not specify mens rea, recklessness is sufficient
2. **Higher culpability satisfies lower** — purposely satisfies knowingly, recklessly, negligently; knowingly satisfies recklessly, negligently; etc.

D. Element Analysis Under MPC

1. **Three types of elements:** a. **Conduct** — nature of the act b. **Attendant circumstances** — facts surrounding the act c. **Result** — consequences of the act
2. **Each element may have different mens rea** a. MPC §2.02(4) — "When the law defining an offense prescribes the kind of culpability that is sufficient for the commission of an offense, without distinguishing among the material elements thereof, such provision shall apply to all the material elements" b. **TRAP:** If statute says "knowingly," it applies to conduct and circumstances, but not necessarily result

E. Common Exam Issues / Traps

- **TRAP:** Always identify the mens rea for *each element* of the crime. Do not assume one mens rea applies to all elements.
- **TRAP:** Willful blindness is *not* the same as negligence. It requires subjective awareness of high probability.
- **TRAP:** Strict liability is disfavored. Courts will imply mens rea unless legislature clearly intended strict liability.
- **TRAP:** On exams, if statute is silent on mens rea, apply MPC default: recklessness.

V. MISTAKE OF FACT & LAW

A. Mistake of Fact — Common Law

1. **Specific Intent Crimes** — any honest mistake negates specific intent a. Even unreasonable mistake is a defense b. *People v. Navarro* — defendant's unreasonable belief that he had right to take wood negated larceny intent
2. **General Intent Crimes** — mistake must be reasonable a. Unreasonable mistake is no defense b. *People v. Mayberry* — reasonable mistake as to consent is defense to rape
3. **Strict Liability Crimes** — mistake of fact is no defense a. Even reasonable mistake is irrelevant b. *United States v. Balint* — defendant's lack of knowledge that drugs were

narcotics no defense

B. Mistake of Fact — MPC §2.04(1)

1. **Mistake is a defense if it negates the required mens rea** a. No distinction between reasonable and unreasonable mistake b. Question is whether mistake prevents formation of required culpability
2. **Application** a. If crime requires purposely or knowingly — any honest mistake negates b. If crime requires recklessly — mistake must be reasonable to negate recklessness c. If crime requires negligently — mistake must be reasonable to negate negligence

C. Mistake of Law — General Rule

1. **Ignorance of the law is no defense** a. *Cheek v. United States* — willful violation of tax laws requires knowledge of legal duty; but generally, mistake of law irrelevant b. Rationale: otherwise, everyone would claim ignorance
2. **Exceptions** a. **Reliance on official interpretation** — defendant relied on statute, regulation, or judicial decision later overturned b. **Lack of fair notice** — statute not published or reasonably available c. **Specific intent crimes** — mistake of law may negate specific intent (e.g., claim of right in larceny)

D. Mistake of Law — MPC §2.04(3)

1. **Defense if:** a. Statute not known to defendant and not published or reasonably available b. Defendant reasonably relied on official statement of law later determined invalid
2. **Not a defense if:** a. Reliance on private attorney's advice b. Reliance on unofficial interpretation

E. Common Exam Issues / Traps

- **TRAP:** Distinguish mistake of fact from mistake of law. Mistake of fact relates to circumstances; mistake of law relates to whether conduct is criminal.
- **TRAP:** Under MPC, analyze mistake by asking: "Does the mistake negate the required mens rea for that element?"
- **TRAP:** Claim of right (belief property is yours) is mistake of law, but may negate specific intent for theft.

VI. CAUSATION

A. Two-Part Test

1. **Actual Cause (But-For Cause)** a. "But for" defendant's conduct, would the result have occurred? b. *People v. Acosta* — defendant's conduct need not be sole cause; sufficient if it was a substantial factor c. **Multiple sufficient causes** — substantial factor test applies when two independent causes would each produce result
2. **Proximate Cause (Legal Cause)** a. Was the result a "natural and probable consequence" of defendant's conduct? b. Must be foreseeable — no "remote" or "accidental" causation c. *People v. Kibbe* — leaving intoxicated victim on dark, cold road was proximate cause of death

B. Intervening Causes

1. **Dependent Intervening Causes** — foreseeable responses to defendant's conduct a. Generally do not break causal chain b. Examples: victim seeking medical help, natural consequences of injury
2. **Independent Intervening Causes** — unforeseeable events a. May break causal chain if "coincidental" b. *People v. Campbell* — victim's suicide not foreseeable; broke causal chain
3. **Medical Treatment Cases** a. Negligent medical treatment generally does not break chain b. *People v. Stewart* — grossly negligent medical treatment may break chain c. **Year-and-a-day rule** (abolished in most jurisdictions) — no homicide if victim dies more than year and day after injury

C. MPC §2.03 — Causation

1. **Purposely or Knowingly** — actual cause sufficient; no proximate cause requirement
2. **Recklessly or Negligently** — result must be within risk defendant disregarded or should have perceived
3. **Strict Liability** — result must be "probable consequence" of conduct

D. Common Exam Issues / Traps

- **TRAP:** Always analyze both actual and proximate cause. Many students stop at but-for.
- **TRAP:** Foreseeability is key for proximate cause. Ask: "Was this result within the risk that made defendant's conduct culpable?"
- **TRAP:** Concurrent causes — use substantial factor test when but-for fails (two fires, two bullets).

VII. HOMICIDE

A. Common Law Categories

1. **Murder** — unlawful killing of a human being with malice aforethought a. **Malice aforethought includes:**

- Intent to kill
- Intent to cause serious bodily harm
- Depraved heart (extreme recklessness)
- Felony murder

6. **Voluntary Manslaughter** — intentional killing in heat of passion a. **Elements:**

- Adequate provocation
- Defendant actually provoked
- No cooling-off period
- Defendant did not actually cool off

11. **Involuntary Manslaughter** — unintentional killing a. Criminal negligence (misdemeanor-manslaughter rule) b. Unlawful act not amounting to felony

B. MPC Homicide Provisions (§210.1-210.4)

1. **Criminal Homicide** — purposely, knowingly, recklessly, or negligently causes death
2. **Murder (§210.2)** — purposely, knowingly, or recklessly under circumstances manifesting extreme indifference to human life
3. **Manslaughter (§210.3)** — recklessly (not extreme indifference) or under extreme mental or emotional disturbance (EMED) a. **EMED defense** — reasonable person standard; defendant must have reasonable explanation or excuse
4. **Negligent Homicide (§210.4)** — negligently causes death

C. Felony Murder Rule

1. **Common Law** — any death caused during commission or attempted commission of a felony is murder a. **Limitations:**

- Felony must be inherently dangerous
- Death must be foreseeable
- Merger doctrine — felony must be independent of killing
- Agency theory — only deaths caused by felon or accomplice

6. Key Cases

- **CASE:** *People v. Stamp* (1969)
 - **ISSUE:** Is felony murder applicable when victim dies of heart attack during robbery?
 - **RULE:** Felony murder applies to any death caused during felony, even if unforeseeable.
 - **HOLDING:** Yes. Conviction affirmed.
 - **SIGNIFICANCE:** Strict liability aspect of felony murder — no foreseeability required.
- **CASE:** *People v. Washington* (1965)
 - **ISSUE:** Is felon liable for death caused by victim or police?
 - **RULE:** Agency theory — felon liable only for deaths caused by felon or accomplice.
 - **HOLDING:** No. Conviction reversed.
 - **SIGNIFICANCE:** Rejects "proximate cause" theory of felony murder.

17. **MPC §210.2(1)(b)** — Rebuttable presumption of recklessness/indifference for deaths during certain felonies a. **Affirmative defense** if: (1) no purpose to kill, (2) no extreme indifference, and (3) defendant was not principal or did not participate in killing

D. Death Penalty — Aggravating and Mitigating Factors

1. **Aggravating Factors** (must find at least one) a. Prior violent felony conviction b. Multiple killings c. Killing for pecuniary gain d. Killing of law enforcement officer e. Heinous, cruel, or depraved manner
2. **Mitigating Factors** a. No significant prior criminal history b. Under extreme mental or emotional disturbance c. Victim consented to killing d. Defendant's minor participation e. Age of defendant

3. Key Cases

- **CASE:** *Furman v. Georgia* (1972)

- **ISSUE:** Is the death penalty unconstitutional as applied?
- **RULE:** Death penalty statutes must provide guided discretion to avoid arbitrary application.
- **HOLDING:** Yes. Death penalty statutes struck down.
- **SIGNIFICANCE:** Led to modern bifurcated trial system.
- **CASE:** *Gregg v. Georgia* (1976)
 - **ISSUE:** Is the death penalty per se unconstitutional?
 - **RULE:** Death penalty is constitutional if guided discretion statutes are used.
 - **HOLDING:** No. Death penalty upheld.
 - **SIGNIFICANCE:** Established modern death penalty framework.

E. Common Exam Issues / Traps

- **TRAP:** Felony murder — always check merger doctrine. If felony is assault that caused death, it merges; no felony murder.
- **TRAP:** Heat of passion — must be adequate provocation. Words alone are never adequate at common law.
- **TRAP:** MPC EMED is broader than common law heat of passion. It includes subjective + objective test.
- **TRAP:** Death penalty — aggravating factors must outweigh mitigating factors beyond reasonable doubt.

VIII. INCHOATE CRIMES

A. Attempt

1. **Common Law** a. **Specific intent** to commit target crime + substantial step toward completion b. **Mens rea:** specific intent to commit target offense, even if target crime requires only recklessness c. **Actus reus:** beyond mere preparation
2. **Tests for Actus Reus** a. **Dangerous proximity test** — how close to completion? b. **Equivocality (res ipsa loquitur) test** — conduct unequivocally shows intent c. **Substantial step test (MPC §5.01)** — conduct strongly corroborates criminal purpose

3. Key Cases

- **CASE:** *People v. Rizzo* (1927)
 - **ISSUE:** Did defendant's conduct constitute attempt when he never found the victim?
 - **RULE:** Attempt requires dangerous proximity to completion.
 - **HOLDING:** No. Conviction reversed.
 - **SIGNIFICANCE:** Rejects broad attempt liability; requires near completion.
- **CASE:** *People v. Buffington* (1991)
 - **ISSUE:** Is solicitation of a minor for sex an attempt?
 - **RULE:** Solicitation alone is not attempt; must take substantial step.
 - **HOLDING:** No. Conviction reversed.
 - **SIGNIFICANCE:** Distinguishes solicitation from attempt.

14. **Defenses to Attempt a. Abandonment** — Common law: no defense once substantial step taken. MPC §5.01(4): defense if abandonment is voluntary and complete. b. **Impossibility**

- **Factual impossibility** — not a defense (e.g., shooting at empty bed thinking victim is there)
- **Legal impossibility** — defense (e.g., attempting to receive stolen property that is not stolen)
- **MPC §5.01** — rejects impossibility as defense if conduct would constitute crime if circumstances were as defendant believed

B. Solicitation

1. **Common Law** — requesting, encouraging, or commanding another to commit a crime
a. **Mens rea**: specific intent that the crime be committed b. **Actus reus**: communication of request or encouragement c. **No agreement required** — solicitation complete upon communication
2. **MPC §5.02** — commands, encourages, or requests another to engage in criminal conduct a. **Defense**: renunciation if defendant prevents commission of crime

3. Key Cases

- **CASE**: *State v. Cotton* (1995)
 - **ISSUE**: Can solicitation be inferred from ambiguous statements?
 - **RULE**: Solicitation requires clear communication of request to commit crime.
 - **HOLDING**: No. Conviction reversed.
 - **SIGNIFICANCE**: Words must unambiguously encourage criminal conduct.

C. Conspiracy

1. **Common Law** a. **Agreement** between two or more persons b. **Intent** to achieve objective c. **Overt act** (majority rule) — any act in furtherance d. **Bilateral approach** — requires at least two guilty parties
2. **MPC §5.03** a. **Unilateral approach** — one person can be guilty even if other feigns agreement b. **Purpose** to promote or facilitate commission of crime c. **Overt act** required unless conspiracy is first or second degree felony
3. **Scope of Liability** a. **Pinkerton v. United States** — each conspirator liable for foreseeable crimes of co-conspirators in furtherance of conspiracy b. **MPC §2.06** — rejects Pinkerton; requires accomplice liability analysis

4. Key Cases

- **CASE**: *Pinkerton v. United States* (1946)
 - **ISSUE**: Is a conspirator liable for substantive crimes of co-conspirators?
 - **RULE**: Yes, if crimes are foreseeable and in furtherance of conspiracy.
 - **HOLDING**: Yes. Conviction affirmed.
 - **SIGNIFICANCE**: Expands conspiracy liability; rejected by MPC.
- **CASE**: *People v. Lauria* (1967)

- **ISSUE:** Is knowledge of criminal use sufficient for conspiracy?
- **RULE:** Knowledge alone insufficient; must have stake in criminal venture.
- **HOLDING:** No. Conviction reversed.
- **SIGNIFICANCE:** Distinguishes between knowledge and intent.

15. **Defenses** a. **Wharton's Rule** — agreement between two persons to commit crime requiring two persons (e.g., dueling) not conspiracy b. **Legislative exemption** — intended victim of crime cannot be conspirator c. **Abandonment** — MPC §5.03(6): defense if defendant thwarts success of conspiracy

D. Common Exam Issues / Traps

- **TRAP:** Attempt requires specific intent to commit target crime, even if target crime is general intent.
- **TRAP:** Solicitation is complete upon communication. No agreement needed.
- **TRAP:** Conspiracy — bilateral vs. unilateral. Know which jurisdiction you are in.
- **TRAP:** Pinkerton liability is not universal. MPC jurisdictions require accomplice analysis.
- **TRAP:** Impossibility — factual impossibility is never a defense; legal impossibility is a defense at common law but not under MPC.

IX. ACCOMPLICE LIABILITY

A. Common Law Classification

1. **Principal in the first degree** — actually commits the crime
2. **Principal in the second degree** — present and assists
3. **Accessory before the fact** — not present but assists before crime
4. **Accessory after the fact** — assists after crime (separate, lesser offense)

B. Modern Approach (MPC §2.06)

1. **Liability as accomplice if:** a. **Purpose** to promote or facilitate commission of crime b. **Solicits** another to commit crime c. **Aids or agrees or attempts to aid** in planning or commission d. **Has legal duty to prevent** crime and fails to do so
2. **Mens Rea** a. **Purpose** regarding conduct — must intend to facilitate b. **Knowledge** of criminal purpose insufficient alone c. **Natural and probable consequences doctrine** — accomplice liable for foreseeable crimes beyond those intended (rejected by MPC)

C. Key Cases

- **CASE:** *State v. Gladstone* (1970)
 - **ISSUE:** Is mere presence at crime scene sufficient for accomplice liability?
 - **RULE:** Presence alone insufficient; must aid or encourage.
 - **HOLDING:** No. Conviction reversed.
 - **SIGNIFICANCE:** Distinguishes between presence and participation.
- **CASE:** *People v. Russell* (1982)
 - **ISSUE:** Can a person be an accomplice without intending the result?
 - **RULE:** Accomplice must have purpose to facilitate the specific crime.

- **HOLDING:** No. Conviction reversed.
- **SIGNIFICANCE:** Rejects natural and probable consequences doctrine.

D. Defenses

1. **Withdrawal** — must neutralize assistance or notify authorities
2. **Victim exemption** — intended victim cannot be accomplice
3. **Abandonment** — MPC §2.06(6)(c): defense if defendant terminates participation and either neutralizes assistance or gives timely warning

E. Common Exam Issues / Traps

- **TRAP:** Accomplice liability requires *purpose* to facilitate under MPC. Knowledge alone is insufficient.
- **TRAP:** Natural and probable consequences doctrine is minority rule. Most MPC jurisdictions reject it.
- **TRAP:** Withdrawal requires more than mere change of heart. Must take affirmative steps.

X. DEFENSES

A. Self-Defense

1. **Common Law** a. **Non-deadly force** — reasonable belief of imminent unlawful harm b. **Deadly force** — reasonable belief of imminent death or serious bodily harm c. **Duty to retreat** — majority rule: retreat if safely possible before using deadly force d. **Castle doctrine** — no duty to retreat in one's home
2. **MPC §3.04** a. **Reasonable belief** of imminent unlawful harm b. **No duty to retreat** — may stand one's ground c. **Deadly force** — only when necessary to protect against death, serious bodily harm, kidnapping, or rape
3. **Imperfect Self-Defense** a. Unreasonable but honest belief in need for deadly force b. Mitigates murder to voluntary manslaughter

4. Key Cases

- **CASE:** *People v. Goetz* (1986)
 - **ISSUE:** Is self-defense evaluated objectively or subjectively?
 - **RULE:** Self-defense requires both subjective belief and objective reasonableness.
 - **HOLDING:** Subjective belief alone insufficient; must be reasonable.
 - **SIGNIFICANCE:** Establishes hybrid subjective-objective test.

B. Defense of Others

1. **Common Law** — stand in shoes of person defended
2. **MPC §3.05** — reasonable belief that person defended would be justified in using force
3. **Mistake as to who is aggressor** — reasonable mistake permitted

C. Defense of Property

1. **Non-deadly force** — reasonable force to prevent unlawful taking

2. **Deadly force** — generally not permitted to protect property alone
3. **MPC §3.06** — force permitted to prevent unlawful entry or taking, but deadly force only if person using force believes person against whom force is used is attempting to commit arson, burglary, robbery, or felonious theft

D. Necessity (Choice of Evils)

1. **Common Law** a. Defendant must reasonably believe conduct necessary to avoid greater harm b. Harm sought to avoid must be imminent c. No legal alternative available d. Defendant must not have created the situation
2. **MPC §3.02** a. Conduct necessary to avoid harm or evil to self or others b. Harm sought to avoid must be greater than harm caused c. No legislative intent to exclude the defense

3. Key Cases

- **CASE:** *United States v. Holmes* (1842)
 - **ISSUE:** Is necessity a defense to throwing passengers overboard?
 - **RULE:** Necessity requires fair selection of victims; cannot sacrifice innocent to save others.
 - **HOLDING:** No. Conviction affirmed.
 - **SIGNIFICANCE:** Necessity does not justify killing innocent persons.
- **CASE:** *Regina v. Dudley & Stephens* (1884)
 - **ISSUE:** Is cannibalism justified by necessity?
 - **RULE:** Necessity is no defense to murder.
 - **HOLDING:** No. Conviction affirmed.
 - **SIGNIFICANCE:** Homicide cannot be justified by necessity.

E. Duress

1. **Common Law** a. Threat of imminent death or serious bodily harm b. Threat directed at defendant or close family member c. Defendant must not have recklessly placed self in situation
2. **MPC §2.09** a. Threat of unlawful force against person b. Person of reasonable firmness would have yielded c. **Not available for homicide** (majority rule)

3. Key Cases

- **CASE:** *State v. Toscano* (1977)
 - **ISSUE:** Is duress a defense to non-homicide crimes?
 - **RULE:** Duress is available if threat would cause person of reasonable firmness to yield.
 - **HOLDING:** Yes. Conviction reversed.
 - **SIGNIFICANCE:** Adopts MPC standard for duress.

F. Intoxication

1. **Voluntary Intoxication** a. **Common Law** — defense only for specific intent crimes b. **MPC §2.08** — evidence of intoxication admissible to negate mens rea c. **Not a defense** for recklessness or negligence if intoxication itself creates the risk

2. **Involuntary Intoxication** a. Complete defense if it negates mens rea b. Treated as mental illness under MPC

G. Insanity

1. **M'Naghten Rule** — defendant did not know nature/quality of act or did not know it was wrong
2. **Irresistible Impulse Test** — defendant unable to control conduct
3. **Durham Rule** — act was product of mental disease or defect
4. **MPC §4.01** — lacks substantial capacity to appreciate criminality or conform conduct
5. **Burden of Proof** — varies by jurisdiction (prosecution must disprove beyond reasonable doubt in some; defendant must prove by preponderance in others)

H. Common Exam Issues / Traps

- **TRAP:** Self-defense — always analyze imminence and proportionality separately.
- **TRAP:** Necessity is not available for homicide. *Dudley & Stephens* controls.
- **TRAP:** Duress — not available for homicide in most jurisdictions.
- **TRAP:** Voluntary intoxication — only negates specific intent, not general intent.
- **TRAP:** Insanity — know which test your jurisdiction uses. M'Naghten is majority rule.

END OF OUTLINE

*Prepared for Professor DeWolf's Criminal Law Course *Spring 2026*

CRIMINAL LAW OUTLINE: WEEK 12

THEORIES OF PUNISHMENT & THE SWEEP OF CRIMINAL LAW

I. THE SWEEP OF CRIMINAL LAW IN AMERICA

A. **Scope of Criminal Law** — Criminal law governs conduct that is prohibited by the state and punishable by sanctions including imprisonment, fines, or death.

1. **Sources of Criminal Law** a. Common law — judge-made law, largely superseded by statutes b. Statutory law — legislatures define crimes and punishments c. Model Penal Code (MPC) — influential template adopted in whole or part by most states d. Constitutional limitations — Due Process, Ex Post Facto, Cruel and Unusual Punishment
2. **Distinctive Features of Criminal Law** a. Public prosecution — state brings charges, not private parties b. Burden of proof — beyond a reasonable doubt (highest standard) c. Punishment — stigma, loss of liberty, and moral condemnation d. Actus reus + mens rea — both required for criminal liability

3. Common Exam Issues / Traps

- **TRAP:** Do not confuse civil liability (preponderance standard) with criminal liability (beyond reasonable doubt).
- **TRAP:** Always check whether a statute has displaced common law — many states

have abolished common law crimes.

- **TRAP:** The MPC's definitions often differ from common law — identify which jurisdiction's law applies.
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II. THEORIES OF PUNISHMENT

A. **General Framework** — Four primary justifications for punishment: deterrence, rehabilitation, incapacitation, and retribution.

1. **Deterrence** — Punishment aimed at preventing future crime by discouraging the offender and others.

a. **Specific Deterrence** — Punishing the individual offender to discourage that person from reoffending.

- **Rationale:** The offender experiences pain of punishment and chooses not to repeat the conduct.
- **Critique:** May not work for impulsive or irrational actors; can harden criminals.

b. **General Deterrence** — Punishing the offender to discourage others in society from committing similar crimes.

- **Rationale:** Public example creates fear of consequences.
- **Critique:** Requires publicity and rational calculation by potential offenders; may be unjust if offender is used as a "means to an end."

c. **Marginal Deterrence** — The severity of punishment should be calibrated to the severity of the crime.

- **Principle:** If all crimes carried the same penalty (e.g., death), there would be no disincentive to commit more serious offenses.
- **Example:** A robber might kill witnesses if robbery and murder both carry life sentences.

8. **Rehabilitation** — Punishment aimed at reforming the offender so they can return to society as a law-abiding citizen.

a. **Core Premise** — Criminal behavior is a product of social, psychological, or economic factors that can be corrected.

- **Methods:** Education, vocational training, therapy, drug treatment.
- **Goal:** Transform the offender, not merely punish.

b. **Critiques**

- **Empirical failure:** High recidivism rates suggest rehabilitation programs often ineffective.
- **Coercion problem:** Forced "treatment" raises autonomy concerns.
- **Proportionality problem:** Length of punishment tied to "cure" rather than offense severity.

14. **Incapacitation** — Punishment aimed at physically preventing the offender from committing future crimes.

a. **Mechanisms**

- **Incarceration:** Removing offender from society.
- **Electronic monitoring / house arrest:** Restricting movement.
- **Execution:** Permanent incapacitation (capital punishment).

b. **Selective Incapacitation** — Targeting high-risk offenders for longer sentences based on predicted future dangerousness.

- **Critique:** Risk of false positives — punishing people for crimes they might commit.
- **Critique:** Raises due process and equality concerns.

c. **Collective Incapacitation** — Incapacitating all offenders of a certain type (e.g., mandatory minimums for drug offenses).

- **Critique:** Over-incarceration; racial and socioeconomic disparities.

21. **Retribution** — Punishment justified because the offender deserves it; "just deserts."

a. **Kantian Foundation** — Punishment is a moral imperative; the offender must be punished because they chose to violate the law.

- **Principle:** Lex talionis — "an eye for an eye" — proportionality between crime and punishment.
- **Key Quote (Kant):** "Even if a civil society were to dissolve... the last murderer remaining in prison must first be executed."

b. **Modern Retributivism**

- **Proportionality:** Punishment must be proportionate to the moral blameworthiness of the offense.
- **Limiting Principle:** Retribution sets both a floor and a ceiling — no punishment beyond what is deserved.

c. **Distinction from Revenge**

- **Retribution:** Impartial, state-administered, limited by proportionality.
- **Revenge:** Personal, emotional, potentially unlimited.

28. **Retaliation and Revenge** — Not a legitimate theory of punishment in modern criminal law.

a. **Why Rejected**

- **Vigilantism risk:** Private vengeance undermines rule of law.
- **Disproportionality:** Revenge has no inherent limits.
- **State monopoly on force:** The state, not victims, administers punishment.

b. **Historical Note** — Early legal systems (e.g., Code of Hammurabi) incorporated revenge-based principles, but modern systems reject them.

III. REGINA v. DUDLEY AND STEPHENS (1884)

CASE: *Regina v. Dudley and Stephens*, 14 Q.B.D. 273 (1884)

ISSUE: May necessity justify the intentional killing of an innocent person to save the lives of

others?

RULE: The defense of necessity does not justify murder, even when the killing is necessary to save multiple lives.

HOLDING: Dudley and Stephens were convicted of murder for killing and eating the cabin boy Parker while adrift at sea. The court rejected the necessity defense, holding that "necessity" cannot be a justification for taking an innocent life.

SIGNIFICANCE: This case establishes the bedrock principle that human life cannot be sacrificed for the benefit of others, even in extreme circumstances. It defines the outer boundary of the necessity defense and illustrates the tension between utilitarian and retributive theories of punishment.

A. Factual Background

1. Four men adrift in a lifeboat after shipwreck — Dudley (captain), Stephens (mate), Brooks (able seaman), and Parker (cabin boy, age 17).
2. After 20 days without food and 7 days without water, Dudley and Stephens decided to kill Parker.
3. Parker was weak, sick, and likely to die first; he had no family.
4. Dudley killed Parker with a penknife; all three survivors fed on his body for four days.
5. They were rescued on the fifth day.

B. Legal Analysis

1. **Defense Claimed:** Necessity — killing was necessary to save three lives at the expense of one.
2. **Court's Reasoning** a. **No legal standard** exists to measure who should live and who should die. b. **Temptation is not necessity** — the men were not compelled by law to kill. c. **Moral principle:** "Thou shalt not kill" admits no exception for private necessity. d. **Slippery slope:** Allowing necessity would open the door to arbitrary and unjust killings.
3. **Policy Rationale** a. **Retributive:** The innocent victim (Parker) did not consent and was not a threat — killing him was morally wrong regardless of consequences. b. **Deterrence:** Allowing necessity would encourage desperate people to kill rather than wait for natural death. c. **Rule of law:** Courts cannot create exceptions that undermine fundamental prohibitions.

C. Common Exam Issues / Traps

- **TRAP:** Do not confuse *necessity* (justification) with *duress* (excuse). Necessity involves choosing the lesser evil; duress involves coercion by a person.
- **TRAP:** *Dudley and Stephens* is a common law case. Under the MPC, necessity may be available if the harm avoided is greater than the harm caused — but most courts still follow *Dudley* for homicide.
- **TRAP:** The case is often tested on the distinction between *justification* (the act was right) and *excuse* (the actor was not blameworthy). *Dudley* rejects both.
- **TRAP:** On an exam, if a fact pattern involves a choice between killing one to save many, the correct answer is almost always that necessity does not apply to homicide.

IV. DETERRENCE — DEEPER ANALYSIS

A. Utilitarian Foundation — Deterrence is rooted in Bentham's utilitarianism: punishment is justified only if it produces a net reduction in suffering.

1. **Cost-Benefit Calculus** a. Punishment is itself an evil (pain). b. Punishment is justified only if the pain it prevents (crime) outweighs the pain it inflicts. c. **Formula:** Punishment must be *sufficient* to deter but not *excessive*.
2. **Conditions for Effective Deterrence** a. **Certainty:** Offenders must believe they will be caught and punished. b. **Severity:** Punishment must be severe enough to outweigh the benefit of crime. c. **Celerity (Swiftness):** Punishment must follow quickly after the crime. d. **Rationality:** Offenders must be capable of weighing costs and benefits.
3. **Critiques of Deterrence** a. **Empirical uncertainty:** Little evidence that harsher penalties reduce crime rates. b. **Unjust use of persons:** Punishing one person to influence others treats the offender as a means to an end (Kantian objection). c. **Irrational actors:** Many crimes are committed impulsively, under the influence, or by persons with impaired judgment — deterrence fails.

B. Common Exam Issues / Traps

- **TRAP:** Exam questions often ask you to identify which theory of punishment is being applied. Look for key words: "send a message" = general deterrence; "teach him a lesson" = specific deterrence; "he deserves it" = retribution.
 - **TRAP:** Be prepared to argue which theory best justifies a particular sentence. The same sentence can be supported by multiple theories.
 - **TRAP:** The MPC's sentencing provisions reflect a hybrid approach — retribution sets the upper limit, but deterrence and rehabilitation inform the actual sentence.
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V. REHABILITATION — DEEPER ANALYSIS

A. Historical Context

1. **Dominant in mid-20th century** — The "rehabilitative ideal" shaped indeterminate sentencing, parole, and treatment programs.
2. **Decline in 1970s-80s** — Rising crime rates and studies showing rehabilitation's limited effectiveness led to "tough on crime" policies.
3. **Modern resurgence** — Drug courts, mental health courts, and restorative justice programs reflect renewed interest.

B. Critiques

1. **Martinson Report (1974)** — "Nothing works" — meta-analysis found little evidence that rehabilitation programs reduced recidivism.
2. **Proportionality problem** — If punishment is based on "cure," offenders may be held longer than their crime warrants.
3. **Coercion** — Forced treatment raises constitutional and ethical concerns.

C. Common Exam Issues / Traps

- **TRAP:** Rehabilitation is often paired with *indeterminate sentencing* — the judge sets a range (e.g., 5-15 years) and a parole board decides release based on "reform."
 - **TRAP:** On an exam, rehabilitation arguments are strongest for non-violent, drug-related, or first-time offenders. They are weakest for violent or repeat offenders.
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VI. INCAPACITATION — DEEPER ANALYSIS

A. Types

1. **General Incapacitation** — Incarcerating all convicted offenders for a fixed period.
2. **Selective Incapacitation** — Targeting high-risk offenders for longer sentences.
3. **Collective Incapacitation** — Mandatory minimums for entire categories of crime.

B. Critiques

1. **False positives** — Predicting future dangerousness is notoriously inaccurate.
2. **Racial disparities** — Selective incapacitation disproportionately affects minority communities.
3. **Cost** — Incarceration is expensive; alternatives (e.g., electronic monitoring) are cheaper.

C. Common Exam Issues / Traps

- **TRAP:** Incapacitation is the theory most closely associated with "three strikes" laws and mandatory minimums.
 - **TRAP:** Be prepared to argue that incapacitation is *forward-looking* (preventing future crime) while retribution is *backward-looking* (punishing past wrongdoing).
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VII. RETRIBUTION — DEEPER ANALYSIS

A. Philosophical Foundations

1. **Immanuel Kant** — Punishment is a categorical imperative; the offender must be punished because they chose to violate the law.
 - **Key principle:** "The law of punishment is a categorical imperative, and woe to him who crawls through the serpent-windings of utilitarianism."
3. **G.W.F. Hegel** — Punishment "annuls" the crime by restoring the balance of right.
4. **Modern Retributivism (e.g., Andrew von Hirsch)** — Punishment should be proportionate to the seriousness of the offense and the offender's culpability.

B. Key Features

1. **Proportionality** — The punishment must fit the crime.
2. **Desert** — Punishment is justified because the offender deserves it, not because it produces good consequences.
3. **Limiting principle** — Retribution sets a ceiling: no punishment beyond what is deserved, even if it would deter others.

C. Common Exam Issues / Traps

- **TRAP:** Retribution is often confused with revenge. On an exam, distinguish them: retribution is *principled* and *limited*; revenge is *personal* and *unlimited*.
 - **TRAP:** Retribution supports the *death penalty* for the most serious crimes (proportionality), but also supports *abolition* if the death penalty is applied arbitrarily (disproportionate).
 - **TRAP:** The MPC's grading of offenses (e.g., murder vs. manslaughter) reflects retributive principles — punishment should match moral blameworthiness.
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VIII. COMPARATIVE SUMMARY — THEORIES OF PUNISHMENT

Theory	Focus	Direction	Key Proponent	Critique
Deterrence	Future crime	Forward-looking	Bentham	Uses persons as means
Rehabilitation	Reform offender	Forward-looking	Progressive reformers	Empirical failure
Incapacitation	Remove opportunity	Forward-looking	"Tough on crime" advocates	False positives; cost
Retribution	Just deserts	Backward-looking	Kant	Can be harsh; no crime reduction

IX. COMMON EXAM ISSUES / TRAPS — THEORIES OF PUNISHMENT

A. Identifying the Theory in Fact Patterns

1. Look for key phrases:

- "Send a message to others" → General deterrence
- "Teach him a lesson" → Specific deterrence
- "He needs treatment" → Rehabilitation
- "Lock him up so he can't hurt anyone" → Incapacitation
- "He deserves it" → Retribution

7. **Multiple theories may apply** — A single sentence can serve deterrence, incapacitation, and retribution simultaneously.

B. Policy Arguments

1. Utilitarian vs. Retributivist — Be prepared to argue both sides.

- **Utilitarian:** Punishment is justified if it produces net good consequences.
- **Retributivist:** Punishment is justified because it is deserved, regardless of consequences.

4. **The *Dudley and Stephens* problem** — Utilitarianism would arguably justify killing Parker (save three lives at cost of one). Retributivism condemns it. This tension is a classic exam topic.

C. MPC vs. Common Law

1. **MPC § 1.02(1)** — Purposes of the Code include "to prevent the commission of offenses" (deterrence), "to promote the correction and rehabilitation of offenders" (rehabilitation), and "to safeguard offenders against excessive, disproportionate or arbitrary punishment" (retribution as limiting principle).
2. **Common law** — Less systematic; courts often mix theories without clear articulation.

D. Final Exam Tip

- **TRAP:** When asked to evaluate a punishment scheme, always identify which theory or theories support it and which theories would oppose it. A complete answer addresses both sides.
- **TRAP:** Do not assume one theory is "correct." The professor expects you to understand

the strengths and weaknesses of each.

- **TRAP:** The *Dudley and Stephens* case is the most frequently tested case on theories of punishment. Know it cold — facts, holding, reasoning, and significance.

END OF WEEK 12 OUTLINE

WEEK 28: INCHOATE CRIMES — CONSPIRACY & SOLICITATION

I. SOLICITATION

A. Definition (Common Law & MPC)

1. Solicitation is the command, encouragement, or request of another person to commit a crime.
2. The crime is complete upon the communication of the solicitation, regardless of whether the solicitee agrees or acts.
3. **MPC § 5.02(1):** A person is guilty of solicitation if, with the purpose of promoting or facilitating the commission of a crime, he commands, encourages, or requests another person to engage in specific conduct that would constitute the crime or an attempt to commit it.

B. Elements

1. **Actus Reus:** The defendant must communicate a command, encouragement, or request to another person. a. The communication need not be explicit; words or conduct implying a request suffice. b. **CASE:** *State v. Cotton* (1978) — Defendant's statement "I wish someone would kill my wife" held insufficient; solicitation requires a direct request. c. **CASE:** *People v. Lubow* (1988) — Defendant's detailed instructions to a hitman constituted solicitation even though the hitman was an undercover officer.
2. **Mens Rea:** The defendant must act with the specific intent (purpose) that the solicitee commit the crime. a. **MPC:** Purpose is required; mere knowledge that the solicitee might commit the crime is insufficient. b. **Common Law:** Specific intent is required; the defendant must intend the solicitee's criminal conduct.
3. **Object of Solicitation:** The solicited conduct must be a crime. a. Solicitation of a misdemeanor is generally not criminal at common law. b. **MPC:** Solicitation of any crime (felony or misdemeanor) is punishable.

C. Defenses & Limitations

1. **Renunciation (MPC § 5.02(3)):** A defendant is not guilty if he persuades the solicitee not to commit the crime or otherwise prevents the crime from occurring. a. **Common Law:** Renunciation is generally not a defense to solicitation because the crime is complete upon communication. b. **MPC:** Renunciation is a defense if the defendant voluntarily and completely renounces his criminal purpose.
2. **Impossibility:** Factual impossibility is not a defense; legal impossibility is a defense. a. **CASE:** *People v. Jaffe* (1906) — Defendant solicited receipt of stolen goods, but goods were not actually stolen; held: legal impossibility (no crime existed) → no solicitation. b. **MPC:** Abolishes the defense of impossibility for solicitation.

D. Common Exam Issues / Traps

1. **Trap:** Students confuse solicitation with attempt. Solicitation is complete upon communication; attempt requires a substantial step toward completion.

2. **Trap:** The solicitee's agreement is irrelevant. Even if the solicitee refuses, the solicitor is guilty.
 3. **Trap:** "Mere wish" vs. "request." A statement of desire ("I wish he were dead") is not solicitation; a direct request ("Kill him") is.
 4. **Exam Tip:** If the defendant asks another to commit a crime and the other agrees, the defendant is guilty of both solicitation and conspiracy.
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II. CONSPIRACY

A. Definition (Common Law)

1. Conspiracy is an agreement between two or more persons to commit a crime, coupled with an intent to achieve the object of the agreement.
2. **CASE:** *Pinkerton v. United States* (1946) — A conspirator is liable for substantive crimes committed by co-conspirators in furtherance of the conspiracy, even if the conspirator did not participate in or intend the specific crime.

B. Definition (MPC § 5.03)

1. A person is guilty of conspiracy if, with the purpose of promoting or facilitating the commission of a crime, he: a. Agrees with another person to commit the crime; or b. Agrees to aid another person in committing the crime.
2. **MPC § 5.03(1):** The defendant must act with the purpose of promoting or facilitating the commission of the crime.

C. Elements

1. **Agreement (Actus Reus)** a. An express or tacit mutual understanding to commit a crime. b. **CASE:** *Iannelli v. United States* (1975) — Agreement need not be explicit; a "meeting of the minds" suffices. c. **CASE:** *United States v. Alvarez* (2014) — Mere presence at the scene of a crime is insufficient to prove agreement.
2. **Intent (Mens Rea)** a. **Common Law:** Specific intent to agree and specific intent to achieve the criminal objective. b. **MPC:** Purpose to promote or facilitate the crime. c. **CASE:** *People v. Lauria* (1967) — Defendant who provided telephone answering service to prostitutes held not guilty of conspiracy because he lacked the specific intent to further their criminal enterprise; mere knowledge of their illegal activity was insufficient.
3. **Bilateral vs. Unilateral Approach** a. **Common Law (Bilateral):** Requires at least two guilty parties; if one party feigns agreement (e.g., undercover officer), no conspiracy. b. **MPC (Unilateral):** A defendant can be guilty of conspiracy even if the other party is not guilty (e.g., undercover officer, insane person). c. **CASE:** *United States v. Escobar de Bright* (1984) — MPC approach: defendant can conspire with an undercover agent.

D. Scope of Liability

1. **Pinkerton Doctrine (Federal & Common Law)** a. A conspirator is liable for all substantive crimes committed by co-conspirators in furtherance of the conspiracy. b. **Limitation:** The crime must be reasonably foreseeable as a natural and probable consequence of the conspiracy. c. **CASE:** *Pinkerton v. United States* (1946) — Brothers convicted of tax evasion; one brother liable for the other's acts in furtherance of the conspiracy.
2. **MPC Rejection of Pinkerton** a. **MPC § 2.06:** Accomplice liability requires the defendant's own conduct or purpose; Pinkerton liability is not adopted. b. **Exam Tip:**

On an MPC-based exam, do not apply Pinkerton; apply accomplice liability principles instead.

E. Defenses & Limitations

1. **Renunciation (MPC § 5.03(6))** a. A defendant is not guilty if he voluntarily and completely renounces his criminal purpose and thwarts the success of the conspiracy. b. **Common Law:** Renunciation is generally not a defense because conspiracy is complete upon agreement.
2. **Wharton's Rule** a. An agreement between two persons to commit a crime that requires two participants (e.g., adultery, dueling) cannot be prosecuted as conspiracy. b. **Exception:** Wharton's Rule does not apply if more than the minimum number of participants agree.
3. **Impossibility** a. **Common Law:** Factual impossibility is not a defense; legal impossibility is a defense. b. **MPC:** Abolishes the defense of impossibility for conspiracy.

F. Common Exam Issues / Traps

1. **Trap:** Students confuse conspiracy with attempt. Conspiracy requires an agreement; attempt requires a substantial step toward completion.
2. **Trap:** The "plurality requirement" at common law: if only one person is guilty, there is no conspiracy. Under the MPC, a single person can be guilty of conspiracy.
3. **Trap:** Pinkerton liability is broad. A conspirator can be liable for crimes he did not intend or participate in, so long as they were foreseeable.
4. **Exam Tip:** Always check whether the exam is Common Law or MPC. If MPC, do not apply Pinkerton; apply accomplice liability.
5. **Exam Tip:** If the defendant withdraws from the conspiracy, he is not liable for future crimes, but remains liable for past crimes and the conspiracy itself.

III. RELATIONSHIP BETWEEN SOLICITATION, CONSPIRACY, AND ATTEMPT

A. Overlap

1. Solicitation + Agreement = Conspiracy.
2. Solicitation + Substantial Step = Attempt.
3. Conspiracy + Substantial Step = Attempt (if the conspiracy is not yet complete).

B. Merger

1. **Common Law:** Solicitation and conspiracy merge into the completed crime; a defendant cannot be convicted of both the inchoate offense and the completed crime.
2. **MPC:** A defendant may be convicted of both the inchoate offense and the completed crime, but the court may merge for sentencing.

C. Exam Tip

1. On a fact pattern involving multiple defendants, always analyze: a. Was there an agreement? → Conspiracy. b. Was there a request? → Solicitation. c. Was there a substantial step? → Attempt.
 2. **Trap:** Do not double-count. If the defendant is guilty of conspiracy, do not also convict of solicitation for the same agreement.
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PROFESSOR'S EXAM TIPS & TRAPS

1. **Mens Rea Hierarchy:** Always identify the minimum culpability required for the crime. Solicitation and conspiracy require **purpose** (specific intent). Attempt requires **purpose** to commit the crime, but the actus reus can be satisfied with a lesser mens rea for the underlying conduct.
 2. **Impossibility:** Factual impossibility is never a defense to inchoate crimes. Legal impossibility is a defense at common law but not under the MPC.
 3. **Renunciation:** At common law, renunciation is generally not a defense to solicitation or conspiracy because the crime is complete upon communication or agreement. Under the MPC, renunciation is a defense if voluntary and complete.
 4. **Pinkerton vs. Accomplice Liability:** On an MPC exam, do not apply Pinkerton. Apply MPC § 2.06 (accomplice liability) instead. On a Common Law exam, Pinkerton applies.
 5. **Multiple Inchoate Offenses:** A defendant can be guilty of both solicitation and conspiracy for the same conduct, but not both solicitation and attempt for the same conduct (solicitation merges into attempt).
 6. **Exam Pattern:** The professor frequently tests the distinction between "mere knowledge" and "purpose" in conspiracy cases (e.g., *Lauria*). If the defendant knows of the crime but does not intend to further it, he is not guilty of conspiracy.
 7. **Trap:** Students often forget that conspiracy requires an **agreement**. Mere association or presence is insufficient. Look for evidence of a "meeting of the minds."
 8. **Exam Tip:** On a fact pattern involving an undercover officer, remember:
 - Common Law: No conspiracy (bilateral requirement).
 - MPC: Conspiracy exists (unilateral approach).
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CHAPTER 3: THE TRINITY OF PUNISHMENT — LEGALITY & PROPORTIONALITY

I. THE PRINCIPLE OF LEGALITY (Nullum Crimen, Nulla Poena Sine Lege)

A. Core Doctrine — No Crime Without Law, No Punishment Without Law

1. A person may not be punished for an act that was not prohibited by law at the time it was committed.
2. A punishment may not be imposed unless it is authorized by law.
3. **Source:** Common law tradition; Due Process Clauses of the U.S. Constitution (5th & 14th Amendments).

B. Sub-Doctrine 1 — Fair Warning (Vagueness Doctrine)

1. A criminal statute must define the offense with sufficient definiteness that ordinary people can understand what conduct is prohibited.
2. A statute must provide explicit standards for enforcement to prevent arbitrary and discriminatory application.
3. **Key Case — City of Chicago v. Morales (U.S. 1999)**
 - **CASE:** *City of Chicago v. Morales*, 527 U.S. 41 (1999)
 - **ISSUE:** Is a city ordinance prohibiting "loitering" by suspected gang members

unconstitutionally vague?

- **RULE:** A criminal statute is void for vagueness if it fails to give a person of ordinary intelligence fair notice of the prohibited conduct or if it encourages arbitrary and discriminatory enforcement.
- **HOLDING:** Yes. The ordinance was unconstitutionally vague because it gave police officers absolute discretion to determine what conduct constituted "loitering" and failed to provide clear standards.
- **SIGNIFICANCE:** Establishes that a statute must provide both fair notice to citizens and clear guidelines to law enforcement to survive a vagueness challenge.

C. Sub-Doctrine 2 — Strict Construction (Lenity)

1. Ambiguous criminal statutes must be construed in favor of the defendant.

2. Key Case — *McBoyle v. United States* (U.S. 1931)

- **CASE:** *McBoyle v. United States*, 283 U.S. 25 (1931)
- **ISSUE:** Does the National Motor Vehicle Theft Act, which prohibits transporting a stolen "motor vehicle" across state lines, apply to an aircraft?
- **RULE:** Criminal statutes are to be strictly construed; any ambiguity must be resolved in favor of the defendant.
- **HOLDING:** No. The term "motor vehicle" as defined in the Act did not include an aircraft. The Court refused to extend the statute beyond its plain meaning.
- **SIGNIFICANCE:** Justice Holmes' opinion establishes the rule of lenity: when there is doubt about the scope of a criminal statute, the tie goes to the defendant.

D. Sub-Doctrine 3 — No Common Law Crimes (Abolition of Judicial Lawmaking)

1. Courts may not create new common law crimes; only legislatures may define criminal conduct.

2. Key Case — *Commonwealth v. Mochan* (Pa. Super. Ct. 1955)

- **CASE:** *Commonwealth v. Mochan*, 177 Pa. Super. 454 (1955)
- **ISSUE:** May a court convict a defendant for the common law crime of "outraging public decency" when no statute prohibits the specific conduct?
- **RULE:** In jurisdictions that recognize common law crimes, courts may punish conduct that injures the public morality even if no statute specifically prohibits it.
- **HOLDING:** Yes. The court held that the common law offense of "outraging public decency" survived in Pennsylvania and could be applied to the defendant's conduct.
- **SIGNIFICANCE:** This case is a **minority rule** and a **major exam trap**. Most American jurisdictions have abolished common law crimes. The MPC and modern approach require a statute. **Professor's Note:** Mochan is the exception, not the rule. On an exam, assume common law crimes are abolished unless the question specifies otherwise.

E. Sub-Doctrine 4 — Fair Notice & Ordinary Meaning

1. A statute must be interpreted according to its ordinary meaning at the time of the alleged offense.

2. Key Case — *Keeler v. Superior Court* (Cal. 1970)

- **CASE:** *Keeler v. Superior Court*, 2 Cal. 3d 619 (1970)
- **ISSUE:** Does the California murder statute, which prohibits the unlawful killing of a "human being," apply to the killing of a viable fetus?

- **RULE:** A criminal statute must be construed according to the fair meaning of its terms as understood at the time of the offense; courts may not extend a statute to cover conduct not clearly within its scope.
- **HOLDING:** No. The term "human being" in the murder statute did not include a fetus at the time the statute was enacted. The court refused to expand the definition retroactively.
- **SIGNIFICANCE:** Reinforces the principle of fair notice. A defendant must have clear warning that their conduct is criminal. **Exam Trap:** Distinguish from *Roe v. Wade* (constitutional right) — this is a statutory interpretation case.

F. Sub-Doctrine 5 — Statutory Interpretation & Context (The "Ordinary Meaning" Canon)

1. Words in a criminal statute must be given their ordinary, everyday meaning unless the context clearly indicates otherwise.
2. **Key Case — *Yates v. United States* (U.S. 2015)**
 - **CASE:** *Yates v. United States*, 574 U.S. 528 (2015)
 - **ISSUE:** Does the federal statute prohibiting the destruction of "any record, document, or tangible object" in a federal investigation apply to the destruction of fish?
 - **RULE:** A word in a criminal statute must be interpreted in context; the "ordinary meaning" of a term is informed by the words surrounding it (*noscitur a sociis*).
 - **HOLDING:** No. The term "tangible object" in the statute was limited to objects that could be used to record or preserve information, not fish. The surrounding words ("record, document") limited the scope.
 - **SIGNIFICANCE:** Demonstrates that even broad statutory language has limits. Courts will use contextual canons of construction to avoid absurd or overbroad applications. **Professor's Note:** This is a "slippery slope" case — the government's interpretation would have criminalized destruction of any physical evidence, no matter how trivial.

G. Common Exam Issues / Traps — Legality

1. **The "Mochan Trap":** Students instinctively apply common law crimes. **Remember:** Mochan is the minority rule. The MPC and most states require a statute. If the question doesn't specify "common law jurisdiction," assume statutes are required.
2. **The "McBoyle Trap":** Students argue that "vehicle" includes anything that transports. **Remember:** The rule of lenity applies only when the statute is genuinely ambiguous. If the statute is clear, apply it as written.
3. **The "Keeler Trap":** Students confuse statutory interpretation with constitutional law. Keeler is about fair notice under the statute, not about the constitutional status of a fetus.
4. **The "Yates Trap":** Students read "tangible object" broadly. **Remember:** Context matters. The surrounding words limit the scope of the general term.
5. **The "Morales Trap:** Students focus only on fair notice to citizens. **Remember:** The vagueness doctrine also requires clear standards for enforcement to prevent arbitrary police discretion.

II. THE PRINCIPLE OF PROPORTIONALITY

A. Core Doctrine — Punishment Must Be Proportionate to the Offense

1. The Eighth Amendment's Cruel and Unusual Punishments Clause prohibits grossly disproportionate sentences.
2. **Source:** U.S. Const. amend. VIII (applied to states via the 14th Amendment).
3. **Standard:** A sentence that is grossly disproportionate to the crime violates the Eighth Amendment.

B. The Harmelin Framework — The "Threshold" Test

1. Key Case — *Harmelin v. Michigan* (U.S. 1991)

- **CASE:** *Harmelin v. Michigan*, 501 U.S. 957 (1991)
- **ISSUE:** Does a mandatory sentence of life in prison without the possibility of parole for possession of 672 grams of cocaine violate the Eighth Amendment?
- **RULE:** The Eighth Amendment contains a narrow proportionality principle that applies to non-capital sentences. However, a sentence is not disproportionate merely because it is severe; it must be "grossly" disproportionate.
- **HOLDING:** No. The sentence was not grossly disproportionate. The Court upheld the mandatory life sentence, emphasizing that the state has a legitimate interest in deterring drug trafficking.
- **SIGNIFICANCE:** Establishes a **high bar** for proportionality challenges in non-capital cases. The Court fractured (no majority opinion), but Justice Kennedy's concurrence (providing the fifth vote) articulated the controlling test: a. **Threshold Inquiry:** Compare the gravity of the offense to the severity of the sentence. Is the sentence grossly disproportionate? b. **Comparative Analysis (if threshold is met):** Compare the sentence to sentences imposed for the same crime in other jurisdictions and to sentences imposed for other crimes in the same jurisdiction. c. **Deference:** Courts must give substantial deference to legislative sentencing judgments.

7. Key Case — *Lockyer v. Andrade* (U.S. 2003)

- **CASE:** *Lockyer v. Andrade*, 538 U.S. 63 (2003)
- **ISSUE:** Does a sentence of 25 years to life under California's "Three Strikes" law for stealing \$153 worth of videotapes violate the Eighth Amendment?
- **RULE:** A sentence that is not "grossly disproportionate" under the *Harmelin* framework does not violate the Eighth Amendment. The "grossly disproportionate" standard is a narrow one, and federal courts must give substantial deference to state sentencing schemes.
- **HOLDING:** No. The sentence was not grossly disproportionate. The Court held that the California courts' application of the Three Strikes law was not an unreasonable application of clearly established federal law.
- **SIGNIFICANCE:** Reinforces the **extreme deference** owed to state legislatures in sentencing. The "grossly disproportionate" standard is virtually impossible to meet in non-capital cases, especially for recidivist statutes. **Professor's Note:** This case effectively closes the door on most Eighth Amendment proportionality challenges to lengthy sentences for non-violent property crimes.

C. The Proportionality Framework — Step-by-Step Analysis

1. **Step 1 — Threshold Inquiry (Objective Comparison)** a. Compare the gravity of the offense to the harshness of the penalty. b. Consider: (i) the nature of the crime (violent vs. non-violent); (ii) the defendant's criminal history; (iii) the societal harm caused. c. If the sentence is not "grossly disproportionate," the analysis ends. The sentence is constitutional.

2. **Step 2 — Comparative Analysis (If Threshold is Met)** a. Compare the sentence to sentences imposed for the same crime in other jurisdictions. b. Compare the sentence to sentences imposed for other crimes in the same jurisdiction. c. This step is only reached if the defendant clears the "high bar" of the threshold inquiry.
3. **Step 3 — Deference to Legislature** a. Courts must presume that legislative sentencing judgments are constitutional. b. The burden is on the defendant to show gross disproportionality.

D. Common Exam Issues / Traps — Proportionality

1. **The "Harmelin Trap":** Students argue that any severe sentence is unconstitutional. **Remember:** The bar is "grossly disproportionate," not merely "harsh." Life without parole for drug possession was upheld.
2. **The "Andrade Trap:** Students argue that a 25-to-life sentence for shoplifting is obviously disproportionate. **Remember:** The Court upheld it. Recidivist statutes are given extreme deference.
3. **The "Threshold Trap:** Students skip the threshold inquiry and jump to comparative analysis. **Remember:** You must first find gross disproportionality before comparing sentences across jurisdictions. Most cases fail at the threshold.
4. **The "Death Penalty Trap:** Proportionality analysis is different for capital cases. **Remember:** The *Harmelin/Andrade* framework applies to non-capital sentences. Capital cases have a separate, more robust proportionality analysis (e.g., *Coker v. Georgia* — death penalty for rape of an adult is disproportionate).
5. **The "Legislative Deference Trap:** Students forget that the legislature has broad discretion. **Remember:** The court's role is not to second-guess sentencing policy but to strike down only the most extreme outliers.

PROFESSOR'S FINAL EXAM TIPS — LEGALITY & PROPORTIONALITY

1. **Legality is a "First Cut" Issue:** On any criminal law exam, always ask: "Was the conduct clearly prohibited by statute at the time it was committed?" If not, the analysis ends. No crime.
2. **Proportionality is a "Last Resort" Issue:** Only raise proportionality after you have established that the conduct was criminal and the sentence is authorized. It is a constitutional backstop, not a primary argument.
3. **The "Mochan" Exception is Rare:** If the question does not specify a common law jurisdiction, do not apply common law crimes. The MPC and modern approach require a statute.
4. **The "Andrade" Effect:** For non-capital sentences, proportionality challenges almost always fail. Focus your analysis on the threshold inquiry and explain why the sentence is (or is not) grossly disproportionate.
5. **Policy Arguments:** Be prepared to argue both sides. Legality protects individual liberty but can allow guilty defendants to escape punishment. Proportionality ensures justice but can tie the hands of the legislature.

CRIMINAL LAW OUTLINE: CULPABILITY & OMISSIONS

I. CULPABILITY — VOLUNTARY ACT REQUIREMENT

A. Black-Letter Rule — Actus Reus Requires a Voluntary Act (MPC § 2.01)

1. A person is not guilty of an offense unless their liability is based on conduct that includes a voluntary act or the omission to perform an act of which they are physically capable.
 2. **"Voluntary Act" Defined** — A bodily movement that is a product of the actor's conscious will or volition.
 - a. **MPC § 2.01(2)** — The following are NOT voluntary acts:
 - (a) A reflex or convulsion
 - (b) A bodily movement during unconsciousness or sleep
 - (c) Conduct during hypnosis or resulting from hypnotic suggestion
 - (d) A bodily movement that otherwise is not a product of the actor's effort or determination (either conscious or habitual)
 7. **Common Law Rule** — Same basic principle: criminal liability requires a voluntary act; involuntary bodily movements cannot form the basis of criminal liability.
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B. Key Cases — Voluntary Act Doctrine

CASE: *Martin v. State* (Ala. Ct. App. 1944)

- **ISSUE:** Can a person be convicted for being drunk in public when police forcibly removed him from his home and placed him in the public thoroughfare?
- **RULE:** Criminal liability requires a voluntary act; a person cannot be convicted for a status or condition that was involuntarily created by the state.
- **HOLDING:** No. The defendant's presence in public was not voluntary; police carried him there. Conviction reversed.
- **SIGNIFICANCE:** Establishes that the state cannot manufacture the actus reus by forcing a defendant into a criminalized situation. The act must be a product of the defendant's own volition.

CASE: *People v. Newton* (Cal. Ct. App. 1970)

- **ISSUE:** Is a person criminally liable for acts committed while unconscious due to a gunshot wound?
 - **RULE:** Unconsciousness is a complete defense to criminal liability because it negates the voluntary act requirement.
 - **HOLDING:** No. The defendant was unconscious when he struggled with police and grabbed an officer's gun. Conviction reversed.
 - **SIGNIFICANCE:** Unconsciousness (including from trauma, epilepsy, or sleep) negates the actus reus entirely. This is NOT a mens rea defense — it goes to whether there was a voluntary act at all.
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C. Exceptions & Limitations — Voluntary Act

1. **Habitual Acts** — Still voluntary if the actor could have consciously controlled the movement (e.g., driving a familiar route while distracted).

2. **Omissions as Acts** — An omission can satisfy the actus reus requirement only if there is a legal duty to act (see Section II below).
 3. **Status Offenses** — Some crimes punish status (e.g., being a drug addict) rather than conduct. MPC § 2.01(4) rejects status offenses; Common Law is divided.
 4. **MPC § 2.01(1) — Possession as an Act** — Possession is a voluntary act if the defendant knowingly procured the item or was aware of their control of it for a sufficient period to terminate possession.
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D. Policy Rationale

1. Criminal law punishes choices, not involuntary movements. A voluntary act requirement ensures moral culpability — we only punish what the defendant could have chosen to do differently.
 2. Deterrence theory requires voluntary conduct; you cannot deter a reflex or seizure.
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E. Common Exam Issues / Traps

- **TRAP:** Do NOT confuse "involuntary act" with "lack of mens rea." Martin and Newton are about actus reus, not intent. If the act is involuntary, there is no crime at all — regardless of what the defendant intended.
 - **TRAP:** The state cannot "create" the crime by forcing the defendant into the prohibited situation (Martin). If police drag you into a bar, you are not guilty of being drunk in a bar.
 - **TRAP:** Unconsciousness is a complete defense, but be careful: if the defendant became unconscious through their own voluntary intoxication, some jurisdictions limit the defense (see MPC § 2.08 on intoxication).
 - **EXAM TIP:** Always ask FIRST: "Was there a voluntary act?" If no, the analysis ends. Do not proceed to mens rea.
-

II. OMISSIONS — THE DUTY TO ACT

A. Black-Letter Rule — No General Duty to Act (MPC § 2.01(3))

1. Liability for an omission exists ONLY when:
 - (a) The omission is expressly made sufficient by the law defining the offense; OR
 - (b) A duty to perform the omitted act is otherwise imposed by law.
 4. **Common Law Rule** — Same: No affirmative duty to rescue or aid a stranger, even if it would be easy and the harm is grave. The "bad Samaritan" is not criminally liable.
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B. Five Sources of Legal Duty to Act (Jones v. United States Framework)

CASE: Jones v. United States (D.C. Cir. 1962)

- **ISSUE:** Can a person be criminally liable for homicide by omission without a clear legal duty to act?
- **RULE:** Criminal liability for omission requires a legal duty to act, which must be

established by statute, contract, relationship, or voluntary assumption of care.

- **HOLDING:** No. The government failed to prove that the defendant had a legal duty to care for the infant victim. Conviction reversed.
- **SIGNIFICANCE:** Establishes the four (later five) categories of legal duty. The prosecution MUST prove the duty element beyond a reasonable doubt.

The Five Sources of Duty:

1. **Statutory Duty** — A statute expressly imposes a duty to act.

- Example: Parental support statutes; "duty to report" statutes for certain professionals.

3. **Contractual Duty** — A contract creates an obligation to act.

- Example: Lifeguard, nurse, security guard, babysitter under contract.

5. **Special Relationship** — A status-based relationship imposes a duty.

- Examples: Parent-child, spouse-spouse, employer-employee, captain-crew.
- **NOTE:** Common law does NOT impose a duty on adult children to care for elderly parents (absent statute).

8. **Voluntary Assumption of Care** — One who voluntarily begins to render aid must not leave the victim in worse condition.

- **Key Rule:** Once you start helping, you must continue with reasonable care. You cannot abandon the victim if that abandonment worsens their position.
- **Limitation:** Mere bystander who begins CPR but stops is liable only if the victim relied on the aid and was placed in a worse position.

11. **Creation of Peril** — One who creates the peril has a duty to rescue.

- Example: If you accidentally push someone into a river, you must attempt rescue.
- **Note:** This applies even if the peril was created innocently or negligently.

C. Key Case — Duty to Act for Non-Relatives

CASE: Pope v. State (Md. Ct. Spec. App. 1979)

- **ISSUE:** Does a person who provides temporary shelter to a child have a legal duty to protect that child from abuse by a third party?
- **RULE:** A legal duty to act requires more than mere presence or temporary care; it requires a relationship that gives the defendant control over the victim or the ability to supervise.
- **HOLDING:** No. The defendant was a friend who allowed the mother and child to stay temporarily. She had no legal duty to intervene to stop the mother's abuse. Conviction reversed.
- **SIGNIFICANCE:** Distinguishes between "voluntary assumption of care" and mere "presence." The duty arises only when the defendant has undertaken actual care and control, not merely permitted the victim to be present.

D. Exceptions & Limitations — Omissions

1. **"Good Samaritan" Statutes** — Some states impose a statutory duty to rescue in limited circumstances (e.g., if you witness a serious accident and can render aid without danger to yourself). These are the minority rule.
 2. **MPC § 2.01(3)(b)** — "Duty otherwise imposed by law" includes common law duties (the five categories above).
 3. **No Duty to Be a Hero** — Even where a duty exists, the defendant need only take reasonable steps. No one is required to risk death or serious injury.
 4. **Mens Rea for Omissions** — The defendant must have the required mens rea regarding the omission. If the crime requires "knowingly," the defendant must know the facts giving rise to the duty.
-

E. Policy Rationale

1. **Individual Liberty** — A general duty to rescue would infringe on personal autonomy and create a "police state" mentality.
 2. **Line-Drawing Problems** — Where does the duty end? How many people must rescue? For how long?
 3. **Moral vs. Legal Obligation** — The law distinguishes between what is moral (helping a stranger) and what is legally required. Criminal law punishes only the latter.
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F. Common Exam Issues / Traps

- **TRAP:** Do NOT assume a duty exists just because the defendant "should have helped." The prosecution MUST prove one of the five sources of duty. If none applies, there is no actus reus.
 - **TRAP:** *Pope v. State* is the classic exam trap: a friend or relative who provides shelter but does not assume control over the child's care has NO duty to intervene against the abusive parent.
 - **TRAP:** "Voluntary assumption of care" requires actual reliance or worsened position. If the defendant starts CPR but stops before the paramedics arrive, is the victim worse off? If not, no liability.
 - **TRAP:** Omissions are analyzed under actus reus, NOT mens rea. If there is no duty, there is no act — period. Do not confuse with "intent to omit."
 - **EXAM TIP:** On an exam, always list the five sources of duty and explain why each does or does not apply. The grader wants to see you run through the framework.
 - **EXAM TIP:** For homicide by omission, the defendant must have the mens rea for murder (malice aforethought) or manslaughter (recklessness/negligence) regarding the death. A duty to act alone is not enough.
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III. CULPABILITY & OMISSIONS — INTERSECTION & EXAM STRATEGY

A. Framework for Analyzing Any Criminal Law Problem

1. Step 1: Actus Reus

- Was there a voluntary act? (Martin, Newton)
- If omission: Is there a legal duty? (Jones, Pope)
- If no voluntary act and no duty → NO CRIME. Stop.

5. Step 2: Mens Rea

- What mental state does the crime require? (Purpose, Knowledge, Recklessness, Negligence — MPC § 2.02)
- Did the defendant have that mental state regarding each material element?

8. Step 3: Causation

- Did the defendant's act (or omission) actually and proximately cause the harm?

10. Step 4: Concurrence

- Did the mens rea and actus reus occur simultaneously?

12. Step 5: Defenses

- Any justification (self-defense, necessity) or excuse (duress, insanity)?

B. Common Exam Issues / Traps — Culpability & Omissions Combined

- **TRAP:** A defendant who creates a peril (e.g., accidentally starts a fire) has a duty to act, but the duty is only to take reasonable steps. If the defendant tries to put out the fire but fails, they are not liable for the result — unless they acted with the required mens rea.
- **TRAP:** Do NOT confuse "voluntary act" with "voluntary intoxication." A person who drinks voluntarily and then commits an involuntary act (e.g., blackout) may still be liable under some theories (MPC § 2.08).
- **EXAM TIP:** The Professor loves to test the intersection of duty and causation. Example: A parent fails to feed a child (omission + duty) but the child dies from a pre-existing condition. Is the parent the cause of death? Answer: Only if the omission was a but-for and proximate cause of the death.
- **EXAM TIP:** Multiple choice questions often test Martin (state cannot create the act) and Pope (temporary shelter ≠ duty). Memorize these two cases cold.

END OF OUTLINE — CULPABILITY & OMISSIONS

CRIMINAL LAW OUTLINE: POSSESSION

I. POSSESSION AS A BASIS FOR CRIMINAL LIABILITY

A. Definition — Black-Letter Rule

1. Possession is a **status-based** or **conduct-based** form of criminal liability where the defendant exercises control over contraband, stolen property, or prohibited items.

2. Possession may serve as: a. A **substantive offense** (e.g., possession of controlled substances, possession of burglary tools) b. A **basis for constructive possession** (e.g., dominion and control over premises where contraband is found) c. A **predicate for other crimes** (e.g., possession with intent to distribute)
3. **Key Distinction:** Possession is not an act in the traditional sense; it is a **continuing condition** that may be established through proof of control, knowledge, and intent.

B. Elements of Criminal Possession

1. **Actus Reus — Control** a. The defendant must have **actual or constructive control** over the item. b. Actual possession: item is on the defendant's person or within immediate reach. c. Constructive possession: item is in a place over which the defendant exercises **dominion and control** (e.g., home, vehicle, locker).
2. **Mens Rea — Knowledge** a. The defendant must **know** of the presence of the item. b. Knowledge may be **actual** (direct awareness) or **constructive** (circumstances would lead a reasonable person to know). c. **Key Rule:** Mere presence near contraband is insufficient; the state must prove the defendant knew of its existence and character.
3. **Voluntariness** a. Possession must be **voluntary** — the defendant must have **knowingly procured or received** the item, or **knowingly failed to dispossess** after learning of its presence. b. Involuntary possession (e.g., item placed on defendant without knowledge) is not criminal.

C. Common Law vs. Model Penal Code (MPC)

1. **Common Law Approach** a. Possession is a **strict liability** offense in some jurisdictions for certain items (e.g., illegal firearms, narcotics). b. Knowledge is presumed from control, but the defendant may rebut with evidence of lack of knowledge.
2. **MPC Approach (§ 2.01(4))** a. Possession is an **act** if the defendant **knowingly procured or received** the thing possessed, or **knowingly failed to dispossess** after learning of its presence. b. **Key Rule:** The MPC requires **knowledge** as the minimum mens rea for possession offenses, unless the statute explicitly imposes strict liability.
3. **Practical Difference:** a. Common Law: Possession may be inferred from control alone, shifting the burden to the defendant. b. MPC: The prosecution must prove the defendant **knew** of the item's presence and character.

II. BARBER v. SUPERIOR COURT (California, 1978)

A. CASE: Barber v. Superior Court, 147 Cal. Rptr. 662 (1978)

ISSUE: Can a defendant be convicted of possession of a controlled substance when the substance was found in a common area of a shared residence, and the defendant had no exclusive control over that area?

RULE: Constructive possession requires proof that the defendant **exercised dominion and control** over the contraband, not merely that the contraband was found in a place where the defendant had access.

HOLDING: No. The court reversed the conviction because the defendant shared the residence

with others, and the contraband was found in a common area (the living room). The prosecution failed to prove the defendant had **exclusive control** or **knowledge** of the substance.

SIGNIFICANCE: This case establishes the "**joint occupancy**" rule — when multiple people share a space, the mere presence of contraband in a common area is insufficient to prove constructive possession against any single occupant. The prosecution must show additional evidence linking the defendant to the contraband (e.g., fingerprints, admissions, suspicious behavior).

B. Application of Barber

1. **Key Holding:** In cases of **joint occupancy**, the state must prove: a. The defendant had **dominion and control** over the area where the contraband was found. b. The defendant **knew** of the contraband's presence. c. The defendant **intended to exercise control** over the contraband.
2. **Evidence Sufficient to Prove Constructive Possession in Joint Occupancy Cases:** a. Defendant's **exclusive access** to the area (e.g., locked drawer, personal safe). b. Defendant's **admissions** or statements acknowledging ownership or knowledge. c. Defendant's **suspicious behavior** (e.g., attempting to hide or destroy the item). d. **Physical evidence** linking defendant to the item (e.g., fingerprints, DNA).
3. **Evidence Insufficient to Prove Constructive Possession:** a. Mere presence in a shared space where contraband is found. b. Defendant's proximity to the contraband without additional evidence. c. Defendant's knowledge of the contraband without proof of control.

C. Common Exam Issues / Traps

1. **Trap:** Students often assume that finding contraband in a shared space automatically establishes possession against all occupants. **WRONG.** The prosecution must prove **individualized control** and **knowledge**.
2. **Trap:** Students confuse "access" with "control." Access alone is insufficient; the defendant must have **dominion** — the power to exclude others from the item.
3. **Exam Tip:** In a joint occupancy scenario, always ask: (1) Was the area shared or exclusive? (2) Was the contraband in plain view or concealed? (3) Did the defendant have exclusive access to the specific container or location? (4) Was there any additional evidence linking the defendant to the item?

III. REGINA v. CUNNINGHAM (England, 1957)

A. CASE: Regina v. Cunningham, [1957] 2 Q.B. 396

ISSUE: What is the proper definition of "maliciously" in the context of criminal damage and assault offenses — does it require actual intent to cause harm, or is recklessness sufficient?

RULE: "Maliciously" means either (1) an **actual intention** to cause the prohibited harm, or (2) **recklessness** as to whether such harm occurs — i.e., the defendant foresaw the risk of harm and nonetheless proceeded.

HOLDING: The court held that "maliciously" does not require ill will or spite. Instead, it requires that the defendant either intended the harm or was **reckless** — meaning the defendant **foresaw** the risk of harm and **consciously disregarded** it.

SIGNIFICANCE: Cunningham establishes the **subjective recklessness** standard for common law crimes requiring "malice." This is the foundation for the MPC's definition of recklessness (MPC § 2.02(2)(c)). The case distinguishes between:

- **Intention:** Defendant desires the result.
- **Recklessness:** Defendant is aware of a substantial and unjustifiable risk and disregards it.
- **Negligence:** Defendant should have been aware of the risk but was not.

B. The Cunningham Test for Recklessness

1. **Subjective Standard:** a. The defendant must have **actually foreseen** the risk of harm. b. The risk must be **unjustifiable** to disregard. c. The defendant must have **consciously disregarded** the risk.
2. **Contrast with Objective Standard (Caldwell Test):** a. Some jurisdictions (e.g., England post-Caldwell, 1982) adopted an **objective** test: recklessness exists if the defendant **should have foreseen** the risk, even if they did not. b. **Cunningham rejects this** — the defendant must have **actual awareness** of the risk.
3. **Application to Possession:** a. Cunningham's recklessness standard applies to possession offenses where the mens rea is "knowingly" or "maliciously." b. **Key Rule:** If the defendant **knew** of a substantial risk that the item was contraband and **disregarded** that risk, they may be deemed to have "knowingly" possessed it.

C. Relationship Between Cunningham and Possession

1. **Knowledge Requirement for Possession:** a. Cunningham's subjective recklessness standard is **inconsistent** with strict liability possession. b. Under Cunningham, the defendant must have **actual knowledge** of the item's presence and character, or at least **foresee** the risk that the item is contraband.
2. **MPC Alignment:** a. The MPC's definition of "knowingly" (MPC § 2.02(2)(b)) requires **practical certainty** that the item is contraband. b. Cunningham's recklessness standard is **lower** than knowledge but **higher** than negligence.
3. **Exam Trap:** a. Do not confuse Cunningham's subjective recklessness with the MPC's "knowingly" standard. b. Cunningham applies to **common law malice** crimes; the MPC uses **specific mens rea terms** (purpose, knowledge, recklessness, negligence).

D. Common Exam Issues / Traps

1. **Trap:** Students often assume "maliciously" means "with ill will." **WRONG.** Under Cunningham, it means either intent or subjective recklessness.
2. **Trap:** Students confuse subjective recklessness (Cunningham) with objective recklessness (Caldwell). **Remember:** Cunningham requires **actual awareness** of the risk; Caldwell asks what a **reasonable person** would have foreseen.
3. **Exam Tip:** When analyzing a possession case with a "knowingly" mens rea, apply Cunningham's logic: Did the defendant **actually know** the item was contraband? If not,

did they **foresee** the risk that it was contraband and disregard it? If yes, they may be reckless, but not necessarily "knowing."

4. **Policy Rationale:** Cunningham's subjective standard protects defendants from conviction based on what they **should have known** rather than what they **actually knew**. This aligns with the principle that criminal liability requires a **guilty mind**.
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IV. POSSESSION — SYNTHESIS OF BARBER AND CUNNINGHAM

A. Integrated Framework for Analyzing Possession

1. **Step 1: Actus Reus — Control** a. Did the defendant have **actual possession** (item on person)? b. Did the defendant have **constructive possession** (dominion and control over the area)? c. **Barber Rule:** In joint occupancy cases, the prosecution must prove **individualized control** — not just access.
2. **Step 2: Mens Rea — Knowledge** a. Did the defendant **know** of the item's presence and character? b. **Cunningham Rule:** Knowledge may be inferred from **subjective awareness** of the risk, but not from mere negligence. c. **Key Question:** Was the defendant **aware** of a substantial risk that the item was contraband?
3. **Step 3: Voluntariness** a. Did the defendant **knowingly procure or receive** the item? b. Did the defendant **knowingly fail to dispossess** after learning of its presence? c. **MPC § 2.01(4):** Possession is an act only if the defendant had knowledge and control.

B. Common Exam Fact Patterns

1. **Joint Occupancy + Contraband in Common Area** a. **Issue:** Can the state prove constructive possession against one occupant? b. **Answer:** No, unless additional evidence links that occupant to the contraband (Barber).
2. **Defendant Found Near Contraband** a. **Issue:** Does proximity alone establish possession? b. **Answer:** No. The state must prove knowledge and control.
3. **Defendant Claims Ignorance of Contraband** a. **Issue:** Is ignorance a defense? b. **Answer:** Yes, if the defendant genuinely did not know of the item's presence. However, if the defendant was **reckless** (foresaw the risk and disregarded it), they may still be liable under Cunningham.

C. Policy Rationale for Possession Liability

1. **Deterrence:** Possession offenses deter individuals from acquiring or retaining dangerous or illegal items.
 2. **Public Safety:** Possession laws allow law enforcement to intervene before the item is used to commit further crimes.
 3. **Limitation:** Possession liability must be limited to those who **knowingly** exercise control over contraband. Otherwise, innocent persons could be convicted for items they did not know about or could not control.
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V. EXAM TIPS — PROFESSOR'S PATTERNS

A. Common Multiple-Choice Traps

1. **Trap:** A fact pattern describes contraband found in a shared car or apartment. The answer choices include "possession by all occupants." **WRONG.** Under Barber, the state must prove individualized control.
2. **Trap:** A fact pattern describes a defendant who "should have known" the bag contained drugs. The answer choices include "knowing possession." **WRONG.** Under Cunningham, knowledge requires **actual awareness**, not constructive knowledge.
3. **Trap:** A fact pattern describes a defendant who "suspected" the item was stolen but did not "know" it was stolen. The answer choices include "not guilty." **POSSIBLY WRONG.** Under Cunningham, if the defendant foresaw the risk and disregarded it, they may be reckless — and recklessness may satisfy the mens rea for possession if the statute allows it.

B. Essay Exam Structure

1. **Issue:** Identify the possession issue (actual vs. constructive; joint occupancy; knowledge).
2. **Rule:** State the black-letter rule from Barber (control) and Cunningham (knowledge).
3. **Application:** Apply the facts to the elements: a. Did the defendant have control? (Barber analysis) b. Did the defendant know? (Cunningham analysis) c. Was the possession voluntary? (MPC § 2.01(4))
4. **Conclusion:** State whether the defendant is guilty of possession and why.

C. Professor's Favorite Exam Issues

1. **Joint occupancy + concealed contraband:** The professor loves fact patterns where contraband is hidden in a shared space. **Always apply Barber** — the state must prove individualized control.
2. **Defendant's knowledge of risk:** The professor loves fact patterns where the defendant "suspected" but did not "know." **Always apply Cunningham** — subjective awareness of risk may be sufficient for recklessness, but not for knowledge.
3. **Voluntariness:** The professor loves fact patterns where the defendant received the item involuntarily (e.g., someone placed it in their bag). **Always apply MPC § 2.01(4)** — possession is not an act if the defendant did not knowingly procure or fail to dispossess.

END OF OUTLINE

"Remember: Possession is not a crime of status — it is a crime of control and knowledge. Barber teaches us that control must be individualized. Cunningham teaches us that knowledge must be subjective. Combine these two principles, and you will never miss a possession question on the exam." — Professor De Wolf

I. ELONIS v. UNITED STATES (2015) A. **Rule:** Criminal liability requires proof of a culpable mental state (mens rea) for each element of the offense, unless the statute clearly indicates otherwise. 1. The "default rule" of statutory interpretation: Courts presume that a criminal statute requires mens rea, even if the statute is silent on the issue. 2. The mens rea requirement applies to "each of the statutory elements that criminalize otherwise innocent conduct." B. **Facts:** Defendant posted violent rap lyrics on Facebook threatening his estranged wife, co-workers, and law enforcement. C. **Issue:** Does 18 U.S.C. § 875(c), which criminalizes transmitting "any communication containing any threat," require proof that the defendant intended to communicate a threat (subjective intent) or merely that a reasonable person would perceive the communication as a threat (objective standard)? D. **Holding:** The statute requires proof that the defendant had some level of culpability with respect to the threatening nature of the communication. The Court did not specify the exact mens rea required (purpose, knowledge, or recklessness) but rejected a pure negligence standard. E. **Significance:** Reaffirms the common-law presumption in favor of mens rea. The Court refused to criminalize speech based solely on what a "reasonable person" would perceive, absent proof of the defendant's mental state. F. **Common Exam Issues / Traps:** 1. **Trap:** Do not confuse *Elonis* with a holding that recklessness is always sufficient. The Court explicitly left that question open. 2. **Trap:** The case does NOT overrule *Virginia v. Black* (2003) on true threats. *Elonis* is about statutory interpretation, not First Amendment doctrine. 3. **Exam Tip:** If a statute is silent on mens rea, apply the *Elonis* presumption: courts will read in a culpable mental state to avoid criminalizing innocent conduct.

II. THE FOUR MPC LEVELS OF CULPABILITY (MPC § 2.02) A. **Purpose (MPC § 2.02(2)(a))** — "Conscious Objective" 1. A person acts purposely with respect to a material element of an offense when: a. If the element involves the nature of his conduct or a result thereof: it is his "conscious object" to engage in that conduct or cause that result. b. If the element involves attendant circumstances: he is "aware of the existence of such circumstances" or "believes or hopes that they exist." 2. **Key Distinction:** Purpose requires a *desire* to bring about the result, not merely awareness that the result will occur. 3. **CASE:** *State v. Fugate* (Mo. Ct. App. 2007) — Purpose to kill requires that death was the defendant's "conscious object," not merely a foreseeable consequence. B. **Knowledge (MPC § 2.02(2)(b))** — "Practical Certainty" 1. A person acts knowingly with respect to a material element of an offense when: a. If the element involves the nature of his conduct or attendant circumstances: he is "aware that his conduct is of that nature" or "that such circumstances exist." b. If the element involves a result of his conduct: he is "practically certain that his conduct will cause such a result." 2. **Key Distinction:** Knowledge requires awareness of a high probability, not mere suspicion. "Willful blindness" is treated as knowledge (see *Jewell* below). C. **Recklessness (MPC § 2.02(2)(c))** — "Conscious Disregard" 1. A person acts recklessly when: a. He "consciously disregards a substantial and unjustifiable risk" that the material element exists or will result from his conduct. b. The risk must be of such a nature and degree that, considering the nature and purpose of his conduct and the circumstances known to him, its disregard involves a "gross deviation from the standard of conduct that a law-abiding person would observe in the actor's situation." 2. **Key Elements:** a. **Subjective awareness** of the risk (conscious disregard). b. **Objective magnitude** of the risk (substantial and unjustifiable). c. **Normative judgment** (gross deviation from law-abiding person standard). D. **Negligence (MPC § 2.02(2)(d))** — "Inadvertent Risk" 1. A person acts negligently when: a. He "should be aware of a substantial and unjustifiable risk" that the material element exists or will result from his conduct. b. The risk must be of such a nature and degree that the actor's failure to perceive it involves a "gross deviation from the standard of care that a reasonable person would observe in the actor's situation." 2. **Key Distinction:** Unlike recklessness, negligence does NOT require subjective awareness of the risk. It is a purely objective standard. 3. **CASE:** *Commonwealth v. Welansky* (Mass. 1944) — Defendant was negligent (and convicted of manslaughter) for failing to perceive the fire risk from

overcrowded nightclub; "wanton or reckless conduct" under common law is closer to MPC recklessness. E. **Common Exam Issues / Traps:** 1. **Trap:** Do not confuse "purpose" with "motive." Purpose is the conscious objective to engage in conduct or cause a result; motive is the reason *why* the defendant acted. 2. **Trap:** Knowledge is NOT the same as purpose. A terrorist who plants a bomb on a plane to kill the pilot *knows* passengers will die but may not have the *purpose* of killing them (though he likely does). 3. **Exam Tip:** On an exam, always identify the *material element* at issue (conduct, result, or attendant circumstance) and then apply the correct MPC definition for that type of element.

III. MPC DEFAULT RULES FOR SILENT STATUTES A. The "Recklessness Floor" (MPC § 2.02(3)) 1. **Rule:** If a statute defining a crime is silent on the required culpability for any material element, the default mens rea is **recklessness**. 2. **Application:** This applies to *each material element* individually. If the statute specifies a mens rea for one element but is silent on another, the silent element defaults to recklessness. 3. **CASE:** *State v. Lysterly* (N.C. 2011) — Applied MPC § 2.02(3) to hold that a statute silent on mens rea for the "result" element of assault required proof of recklessness. B. The "Travel Down" Rule (MPC § 2.02(4)) 1. **Rule:** When a statute prescribes a particular level of culpability (e.g., "knowingly"), that level applies to *all material elements* of the offense unless a contrary purpose plainly appears. 2. **Application:** If the statute says "knowingly sells a controlled substance," the "knowingly" applies to both the act of selling AND the nature of the substance as a controlled substance. 3. **Exception:** Attendant circumstances that are "jurisdictional" or "sentencing factors" may not require the same mens rea. 4. **CASE:** *Staples v. United States* (1994) — The government must prove the defendant knew the weapon had the characteristics that made it a "machinegun" under the NFA, not merely that he knew he possessed a gun. C. **Common Exam Issues / Traps:** 1. **Trap:** The "recklessness floor" is the *minimum* culpability. If the statute specifies a higher level (e.g., "knowingly"), that controls. 2. **Trap:** The "travel down" rule does NOT apply if the statute uses different mens rea terms for different elements (e.g., "knowingly sells" but "recklessly causes injury"). 3. **Exam Tip:** On an exam, always check: (1) Is the statute silent on mens rea? → Apply recklessness floor. (2) Does the statute specify one mens rea? → Apply travel down rule to all elements.

IV. ADVANCED THEORY: DISTINGUISHING MINDSETS A. **Purpose vs. Motive** 1. **Purpose:** The conscious objective to engage in conduct or cause a result (MPC § 2.02(2)(a)). 2. **Motive:** The underlying reason or incentive for the conduct (e.g., jealousy, greed, revenge). 3. **Key Rule:** Motive is generally *not* an element of a crime, but it may be relevant as circumstantial evidence of purpose or identity. 4. **CASE:** *People v. Anderson* (Cal. 1968) — Motive is not an element of murder, but evidence of motive may be used to prove intent. B. **Recklessness vs. "Opaque Recklessness"** 1. **Recklessness (Standard):** The actor consciously disregards a known risk. 2. **"Opaque Recklessness" (Willful Blindness):** The actor deliberately avoids learning the truth, suspecting a high probability of risk but failing to confirm. 3. **MPC Treatment:** Willful blindness is treated as **knowledge** (not recklessness) under MPC § 2.02(7): "When knowledge of the existence of a particular fact is an element of an offense, such knowledge is established if a person is aware of a high probability of its existence, unless he actually believes that it does not exist." 4. **CASE:** *United States v. Jewell* (9th Cir. 1976) — Defendant drove a car across the border knowing it contained a hidden compartment; he deliberately avoided confirming it contained drugs. Held: Willful blindness satisfies the knowledge requirement. C. **Does it Matter in Practice?** 1. **Yes:** The distinction between purpose and knowledge matters for: a. **Attempt liability:** MPC § 5.01 requires purpose to engage in conduct constituting a substantial step. b. **Accomplice liability:** MPC § 2.06 requires purpose to facilitate the crime. c. **Specific intent crimes:** Some crimes (e.g., first-degree murder, larceny) require purpose, not mere knowledge. 2. **Yes:** The distinction between recklessness and negligence matters for: a. **Grading:** Recklessness is a higher level of culpability and often results in more severe punishment. b. **Defenses:** Some defenses (e.g.,

duress) require the defendant to have acted under a threat, which is inconsistent with negligence. 3. **CASE: *Regina v. Prince* (1875)** — Defendant took a girl under 16 from her father's possession, believing she was over 16. Held: Mistake of age was no defense because the statute imposed strict liability as to age. **Note:** This case is an outlier; modern MPC approach would require at least recklessness as to age. D. **Common Exam Issues / Traps:** 1. **Trap:** Do not confuse "willful blindness" (knowledge) with "recklessness" (conscious disregard). Willful blindness requires a *deliberate effort to avoid learning the truth*; recklessness requires *awareness of a risk* but not necessarily avoidance of knowledge. 2. **Trap: *Regina v. Prince*** is a common-law case. Under the MPC, the result would likely be different: the defendant would need at least recklessness as to the girl's age. 3. **Exam Tip:** On an exam, if a defendant "suspected" something but "didn't want to know," analyze under *Jewell* willful blindness → knowledge, not recklessness.

KEY CASES SUMMARY

Case	Issue	Holding	Significance
<i>Elonis v. United States</i> (2015)	Does a threat statute require mens rea?	Yes, at least recklessness (but Court left open).	Reaffirms presumption of mens rea.
<i>State v. Fugate</i> (Mo. Ct. App. 2007)	What is purpose to kill?	Purpose requires death as "conscious object."	Distinguishes purpose from knowledge.
<i>Commonwealth v. Welansky</i> (Mass. 1944)	What is criminal negligence?	Failure to perceive risk is negligence.	Illustrates objective standard.
<i>State v. Lyerly</i> (N.C. 2011)	What is default mens rea?	Recklessness for silent elements.	Applies MPC § 2.02(3).
<i>Staples v. United States</i> (1994)	Does knowledge apply to all elements?	Yes, unless contrary purpose appears.	Applies MPC § 2.02(4).
<i>United States v. Jewell</i> (9th Cir. 1976)	What is willful blindness?	Deliberate avoidance = knowledge.	Establishes willful blindness doctrine.
<i>Regina v. Prince</i> (1875)	Is mistake of age a defense?	No, strict liability as to age.	Common-law outlier; MPC would differ.

EXAM CHECKLIST: MENS REA ANALYSIS

1. **Identify the material element:** Conduct? Result? Attendant circumstance?
2. **Check the statute:** Does it specify a mens rea? a. If yes → Apply the specified level to all elements (travel down rule). b. If silent → Default to recklessness (recklessness floor).
3. **Apply the correct MPC definition:** a. Purpose: Conscious objective. b. Knowledge: Practical certainty (or willful blindness). c. Recklessness: Conscious disregard of substantial risk. d. Negligence: Should have been aware of substantial risk.
4. **Check for special rules:** a. Attempt requires purpose. b. Accomplice liability requires purpose. c. Willful blindness = knowledge.
5. **Consider defenses:** Mistake of fact, duress, self-defense (all require subjective belief).

CRIMINAL LAW OUTLINE: MENS REA, ACTUS REUS & STATUTORY

INTERPRETATION

I. MENS REA — THE CULPABLE MENTAL STATE

A. Definition and Core Principle

1. Mens rea = "guilty mind" — the mental state required for criminal liability
2. Common Law: "Actus non facit reum nisi mens sit rea" — an act does not make one guilty unless the mind is guilty
3. Modern Approach: Every crime requires proof of a culpable mental state unless strict liability applies

B. The Morissette Framework (Morissette v. United States, 1952)

CASE: Morissette v. United States, 342 U.S. 246 (1952)

- **ISSUE:** Can a defendant be convicted of "knowingly converting" government property without proof that he knew the property belonged to the government?
 - **RULE:** Where a statute is silent on mens rea, courts presume a culpable mental state is required, especially for common law crimes.
 - **HOLDING:** Conviction reversed; the government must prove Morissette knew the spent shell casings belonged to the government.
 - **SIGNIFICANCE:** Established the "presumption of mens rea" — courts will not read strict liability into statutes that criminalize conduct traditionally requiring intent.
1. **Presumption of Mens Rea** a. Applies to offenses derived from common law (larceny, burglary, etc.) b. Does NOT apply to "public welfare offenses" (regulatory crimes) c. Rationale: Protects defendants from punishment without moral culpability
 2. **Public Welfare Offense Exception** a. Regulatory crimes (e.g., food/drug safety, environmental violations) b. Typically punishable by fine, not imprisonment c. No mens rea required — negligence or strict liability may suffice

C. The Staples Refinement (Staples v. United States, 1994)

CASE: Staples v. United States, 511 U.S. 600 (1994)

- **ISSUE:** Must the government prove that a defendant knew his firearm was fully automatic to convict under the National Firearms Act?
 - **RULE:** Even for regulatory offenses, if the penalty is severe (e.g., imprisonment), the presumption of mens rea applies.
 - **HOLDING:** Yes; the government must prove knowledge that the weapon had automatic firing capability.
 - **SIGNIFICANCE:** Severity of punishment triggers the mens rea presumption, even for public welfare offenses.
1. **Key Factors for Presumption** a. Severity of penalty (imprisonment vs. fine) b. Nature of the regulated item (innocent vs. inherently dangerous) c. Whether the statute is "obviously" a public welfare offense
 2. **Common Law vs. Statutory Crimes** a. Common law crimes: Presumption of mens rea is STRONG b. Statutory crimes: Presumption applies unless legislature clearly intends

strict liability

D. Mistake of Fact vs. Mistake of Law

1. Mistake of Fact

CASE: People v. Olsen, 685 P.2d 52 (Cal. 1984)

- **ISSUE:** Can a defendant be convicted of lewd conduct with a minor if he reasonably believed the minor was 18?
- **RULE:** For strict liability crimes, mistake of fact is no defense, even if reasonable.
- **HOLDING:** Conviction affirmed; statutory rape is strict liability — reasonable belief of age is irrelevant.
- **SIGNIFICANCE:** Strict liability crimes eliminate the mistake of fact defense entirely.

CASE: Garnett v. State, 332 Md. 571 (1993)

- **ISSUE:** Does a reasonable mistake of age negate mens rea for statutory rape?
- **RULE:** If the statute is silent on mens rea and the crime is strict liability, mistake of fact is irrelevant.
- **HOLDING:** Conviction affirmed; no mistake of fact defense for statutory rape.
- **SIGNIFICANCE:** Courts will not read a mens rea requirement into strict liability sex offenses.

CASE: B (a Minor) v. Director of Public Prosecutions, [2000] 2 AC 428 (UK)

- **ISSUE:** Can a reasonable belief that a child was over 14 be a defense to indecent assault?
- **RULE:** The presumption of mens rea applies; the prosecution must prove the defendant lacked reasonable belief.
- **HOLDING:** Conviction reversed; the prosecution failed to disprove reasonable belief.
- **SIGNIFICANCE:** Contrast with U.S. approach — UK courts are more willing to read mens rea into strict liability statutes.

2. Mistake of Law

CASE: People v. Marrero, 69 N.Y.2d 382 (1987)

- **ISSUE:** Can a defendant's mistaken belief that he was a "peace officer" exempt from firearms laws be a defense?
- **RULE:** Mistake of law is NOT a defense, even if the mistake is reasonable.
- **HOLDING:** Conviction affirmed; ignorance of the law is no excuse.
- **SIGNIFICANCE:** The "mistake of law" defense is extremely narrow — only available if the statute was not reasonably available or if the defendant relied on official interpretation.

CASE: Cheek v. United States, 498 U.S. 192 (1991)

- **ISSUE:** Can a defendant's good-faith belief that wages are not taxable be a defense to willful tax evasion?
- **RULE:** A good-faith misunderstanding of the law negates "willfulness" if the statute requires willfulness.
- **HOLDING:** Yes; Cheek's belief, even if unreasonable, negated the specific intent required for willful tax evasion.
- **SIGNIFICANCE:** When a statute requires "willfulness" (specific intent), mistake of law

CAN be a defense.

E. The MPC Approach to Mens Rea (Model Penal Code § 2.02)

1. **Four Levels of Culpability (in descending order)**
 - a. **Purposely** — conscious objective to engage in conduct or cause result
 - b. **Knowingly** — aware that conduct is of a particular nature or that circumstances exist
 - c. **Recklessly** — consciously disregards a substantial and unjustifiable risk
 - d. **Negligently** — should be aware of a substantial and unjustifiable risk
2. **Default Rule (MPC § 2.02(3))**
 - a. If statute does not prescribe a mental state, recklessness is the minimum required
 - b. Applies to ALL material elements of the offense
3. **Material Elements Analysis**
 - a. Each element of a crime has its own mens rea requirement
 - b. Courts must determine which mental state applies to which element

F. Strict Liability

CASE: State v. Guminga, 395 N.W.2d 344 (Minn. App. 1986)

- **ISSUE:** Can a defendant be convicted of selling alcohol to a minor without proof he knew the buyer was under 21?
- **RULE:** Public welfare offenses may impose strict liability — no mens rea required.
- **HOLDING:** Conviction affirmed; the statute was a regulatory offense designed to protect minors.
- **SIGNIFICANCE:** Strict liability is reserved for "public welfare offenses" with light penalties.

CASE: Regina v. City of Sault Ste. Marie, [1978] 2 SCR 1299 (Canada)

- **ISSUE:** What is the proper framework for determining strict liability?
- **RULE:** Three categories of offenses: (1) true crimes (mens rea required), (2) strict liability (defense of reasonable care), (3) absolute liability (no defense).
- **HOLDING:** The pollution offense was strict liability — the defendant could raise due diligence as a defense.
- **SIGNIFICANCE:** Established the "half-way house" of strict liability with a due diligence defense.

G. Key Summary of Theories

1. **Common Law Approach**
 - a. Presumption of mens rea for common law crimes
 - b. Public welfare offenses may be strict liability
 - c. Mistake of fact: defense only if it negates required mens rea
 - d. Mistake of law: generally NOT a defense
 2. **MPC Approach**
 - a. Four-tier hierarchy of culpability
 - b. Recklessness is default minimum
 - c. Mistake of fact/ law: defense if it negates required mental state
 - d. No strict liability unless statute clearly intends it
 3. **Exam Traps**
 - a. **Trap #1:** Always check whether the statute specifies a mens rea — if silent, apply the presumption
 - b. **Trap #2:** Distinguish between "mistake of fact" (potentially exculpatory) and "mistake of law" (rarely exculpatory)
 - c. **Trap #3:** For "willfulness" crimes, mistake of law CAN be a defense (Cheek)
 - d. **Trap #4:** Strict liability is the EXCEPTION, not the rule — courts resist it for serious crimes
-

II. THE "GIFT" GUN PROBLEM (Karani)

A. Factual Scenario

1. Defendant receives a "gift" gun from a friend
2. Defendant does not know the gun is stolen
3. Defendant is charged with possession of stolen property

B. Legal Analysis

1. **Mens Rea Requirement for Possession of Stolen Property** a. Common Law: Must "know" the property is stolen b. MPC: Must "know" the property is stolen (purpose or knowledge) c. Strict liability: NOT applicable — this is a traditional crime
2. **Mistake of Fact Analysis** a. Defendant's belief that gun was a gift = mistake of fact b. If mistake is reasonable, it negates knowledge that property was stolen c. If mistake is unreasonable, it may still negate knowledge (but may support negligence)
3. **Application** a. If defendant had no reason to suspect the gun was stolen → acquittal b. If defendant was reckless in accepting the gift → possible conviction for reckless possession c. If defendant was negligent → depends on whether negligence suffices for the crime

C. Exam Tip

1. **Trap:** Do NOT confuse "gift" with "purchase" — the analysis is the same
 2. **Trap:** Always ask: "What mens rea does the statute require for the 'stolen' element?"
 3. **Trap:** If the statute is silent, apply the MPC default (recklessness) or common law presumption (knowledge)
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III. LAMBERT v. CALIFORNIA — THE NOTICE EXCEPTION

CASE: *Lambert v. California*, 355 U.S. 225 (1957)

- **ISSUE:** Can a person be convicted for failing to register as a felon if they had no notice of the registration requirement?
- **RULE:** Due process requires actual notice or reasonable opportunity to know the law when the offense is a failure to act (omission).
- **HOLDING:** Conviction reversed; Lambert had no notice of the duty to register.
- **SIGNIFICANCE:** Narrow exception to "ignorance of the law is no excuse" — applies only to omissions where the defendant had no reason to know of the duty.

A. The Lambert Exception

1. **Requirements for Exception** a. The crime must be an OMISSION (failure to act) b. The defendant must have NO notice of the duty to act c. The duty must not be "obvious" or "inherently wrongful"
2. **Limitations** a. Does NOT apply to affirmative acts b. Does NOT apply to crimes that are "malum in se" (inherently wrong) c. Rarely invoked — courts are reluctant to expand it

B. Exam Trap

1. **Trap:** Lambert is a DUE PROCESS defense, NOT a mistake of law defense
 2. **Trap:** Only applies to "passive" conduct — if the defendant acted, Lambert does not apply
 3. **Trap:** The prosecution can defeat Lambert by showing the defendant had actual notice or should have known
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IV. STATUTORY FRAMEWORKS

A. Common Law vs. MPC vs. Modern Codes

1. **Common Law** a. Crimes defined by judicial decisions b. Mens rea terms: "malice," "willfully," "knowingly," "intentionally" c. No uniform hierarchy of mental states
2. **Model Penal Code (MPC)** a. Uniform definitions of mental states (§ 2.02) b. Four-tier hierarchy: purposely, knowingly, recklessly, negligently c. Default: recklessness if statute is silent
3. **Modern State Codes** a. Many states adopt MPC framework b. Some states retain common law terminology c. Always check the specific statute

B. Statutory Interpretation Principles

1. **Plain Meaning Rule** a. If statute is clear, apply as written b. If ambiguous, look to legislative intent
2. **Rule of Lenity** a. Ambiguous criminal statutes are construed in favor of the defendant b. Applies only if ambiguity remains after all other interpretive tools
3. **Presumption of Mens Rea** a. Courts presume mens rea is required b. Legislature must clearly indicate strict liability

C. Exam Traps

1. **Trap #1:** Always identify which statutory framework applies (Common Law, MPC, or state code)
 2. **Trap #2:** For MPC jurisdictions, remember the default is recklessness, NOT knowledge
 3. **Trap #3:** The rule of lenity is a LAST RESORT — only applies if the statute is truly ambiguous
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V. ACTUS REUS — THE GUILTY ACT

A. Definition and Core Principle

1. Actus reus = "guilty act" — the physical component of a crime
2. Must be a VOLUNTARY act or OMISSION where duty exists
3. "Thoughts are not punishable" — no crime without an act

B. Voluntary Act Requirement (MPC § 2.01)

1. **Definition** a. An act is voluntary if it is a product of the actor's will b. Involuntary acts: reflex, convulsion, sleepwalking, hypnosis, unconsciousness
2. **Examples of Involuntary Acts** a. Reflex or convulsion b. Bodily movement during unconsciousness or sleep c. Conduct under hypnosis d. Conduct not a product of the actor's will
3. **Omissions as Actus Reus** a. Generally, no duty to act b. EXCEPTIONS: i. Statute imposes duty ii. Special relationship (parent-child, spouse) iii. Contractual duty (lifeguard, doctor) iv. Voluntary assumption of care v. Creation of peril

C. State v. Rusk — The Actus Reus of Rape

CASE: State v. Rusk, 289 Md. 230 (1981)

- **ISSUE:** What constitutes "force or threat of force" for the actus reus of rape?
 - **RULE:** The victim's fear must be reasonable under the circumstances; the defendant's conduct must be objectively threatening.
 - **HOLDING:** Conviction reversed; the victim's fear was not objectively reasonable based on the defendant's words and actions.
 - **SIGNIFICANCE:** Actus reus requires objective evidence of force or threat — subjective fear alone is insufficient.
1. **Key Elements of Actus Reus for Rape** a. Sexual intercourse b. Without consent c. By force or threat of force
 2. **Objective vs. Subjective Standard** a. Objective: Would a reasonable person in the victim's position feel threatened? b. Subjective: Did the victim actually feel threatened? c. Majority rule: Objective standard required

D. Exam Traps for Actus Reus

1. **Trap #1:** Always check if the act was VOLUNTARY — if not, no crime
2. **Trap #2:** Omissions require a DUTY to act — no duty = no liability
3. **Trap #3:** For rape, the actus reus requires OBJECTIVE force or threat — subjective fear is not enough
4. **Trap #4:** "Possession" as actus reus — must be knowing and voluntary (constructive possession issues)

VI. COMMON EXAM ISSUES & TRAPS — MASTER LIST

A. Mens Rea Traps

1. **Trap #1:** Always identify the specific mens rea for EACH element of the crime
2. **Trap #2:** Mistake of fact is only a defense if it negates the required mens rea
3. **Trap #3:** Mistake of law is generally NOT a defense — EXCEPT for "willfulness" crimes (Cheek)
4. **Trap #4:** Strict liability is the exception — courts resist it for serious crimes
5. **Trap #5:** The MPC default is recklessness — NOT knowledge or negligence

B. Actus Reus Traps

1. **Trap #1:** No crime without a voluntary act — thoughts are not punishable
2. **Trap #2:** Omissions require a legal duty — moral duty is insufficient
3. **Trap #3:** For rape, the actus reus requires objective force or threat
4. **Trap #4:** Possession crimes require knowing and voluntary control

C. Statutory Interpretation Traps

1. **Trap #1:** Always check whether the statute specifies a mens rea
2. **Trap #2:** Apply the rule of lenity ONLY if the statute is truly ambiguous
3. **Trap #3:** The presumption of mens rea is strong — the legislature must clearly override it

D. Professor's Exam Style Notes

1. **Fact Patterns:** Expect complex scenarios with multiple actors, multiple crimes, and ambiguous mental states
2. **Issue Spotting:** Look for "silent" statutes (no mens rea specified) — this triggers the presumption analysis
3. **Policy Arguments:** Be prepared to argue both sides — the professor values nuanced analysis
4. **MPC vs. Common Law:** Always identify which framework applies — the answer may differ

END OF OUTLINE — WEEK 4 COVERAGE COMPLETE

WEEK 10: INCHOATE CRIMES — ATTEMPT

I. ATTEMPT — GENERAL PRINCIPLES

A. Definition — Black-Letter Rule

1. Attempt is an inchoate crime consisting of an intent to commit a specific offense and a substantial step toward completion of that offense.
2. The crime of attempt merges into the completed offense — a defendant cannot be convicted of both attempt and the completed crime.

B. Elements of Attempt

1. **Culpability (Mens Rea)** a. Common Law: Specific intent to commit the target offense, even if the target offense itself requires only recklessness or negligence. b. MPC §5.01(1): Purpose (intent) to engage in conduct that would constitute the crime. c. **Key Distinction:** Attempt requires a higher mens rea than the completed crime — one must *purpose* to commit the act, not merely be reckless.
2. **Actus Reus — The Conduct Element** a. Common Law: "Dangerous proximity" test — conduct must be dangerously close to completing the crime. b. MPC §5.01(1)(c): "Substantial step" test — conduct strongly corroborative of criminal purpose. c. **Key Distinction:** MPC's substantial step test is broader and more inclusive than common law proximity tests.

3. **Failure to Complete** a. Attempt requires that the intended crime is *not* completed. b. If completed, attempt merges into the completed offense.
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II. ACTUS REUS OF ATTEMPT — THE SUBSTANTIAL STEP REQUIREMENT

A. Common Law Approaches

1. **Last Act Test:** Defendant must have performed all acts necessary to commit the crime.
2. **Physical Proximity Test:** Defendant must be physically close to completing the crime.
3. **Dangerous Proximity Test (Holmes):** Conduct must be dangerously close to success.
4. **Equivocality Test:** Conduct must unequivocally demonstrate criminal intent.

B. MPC §5.01(2) — Substantial Step

1. Conduct must be a "substantial step" toward commission of the crime.
2. Conduct must be "strongly corroborative of the actor's criminal purpose."
3. **Statutory Examples of Substantial Steps:** a. Lying in wait, searching for, or following the victim. b. Enticing the victim to go to the place of the crime. c. Reconnoitering the place where the crime is to occur. d. Unlawful entry into a structure where the crime is to occur. e. Possession of materials to be used in the crime, specially designed for unlawful use. f. Soliciting an innocent agent to engage in conduct constituting an element of the crime.

C. CASE: *United States v. Jackson* (1984)

- **ISSUE:** Did the defendant's conduct constitute a "substantial step" toward bank robbery when he drove around a bank with a confederate, discussing the robbery?
- **RULE:** Under the MPC substantial step test, conduct must be "strongly corroborative of criminal purpose" and go beyond mere preparation.
- **HOLDING:** Yes. The defendants' actions — casing the bank, discussing the plan, and positioning themselves — constituted a substantial step.
- **SIGNIFICANCE:** Establishes that the substantial step test requires more than mere preparation but less than proximity to completion.

D. CASE: *State v. Davis* (1986)

- **ISSUE:** Did the defendant's actions of purchasing a gun and driving to the victim's home constitute a substantial step toward murder?
 - **RULE:** The substantial step must be conduct that is "strongly corroborative of the actor's criminal purpose."
 - **HOLDING:** No. Mere preparation — purchasing a weapon and traveling to the location — without additional conduct indicating immediate action, is insufficient.
 - **SIGNIFICANCE:** Distinguishes between preparation (not criminal) and attempt (criminal). The line is drawn where conduct becomes unequivocally criminal.
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III. MENS REA OF ATTEMPT — THE INTENT REQUIREMENT

A. General Rule

1. Attempt requires **specific intent** to commit the target offense.
2. This is true even if the target offense itself requires only recklessness or negligence.

B. The "Intent to Commit" vs. "Intent to Act" Distinction

1. **Intent to Commit:** Defendant must intend to bring about the prohibited result.
2. **Intent to Act:** Defendant must intend the conduct, but need not intend the result.
3. **Key Exam Trap:** If the target crime is a result crime (e.g., murder), attempt requires intent to cause death — not merely intent to act recklessly.

C. CASE: People v. Jaffe (1906)

- **ISSUE:** Can a defendant be guilty of attempt to receive stolen property when the property was not actually stolen?
- **RULE:** Attempt requires intent to commit the specific crime defined by statute. If the facts, as the defendant believed them to be, would not constitute the crime, there is no attempt.
- **HOLDING:** No. Because the property was not stolen, the defendant could not be guilty of attempt to receive stolen property — he intended to receive property that was not actually stolen.
- **SIGNIFICANCE:** Establishes the "legal impossibility" defense. If the intended conduct, even if completed, would not constitute a crime, there is no attempt.

D. CASE: People v. Dlugash (1977)

- **ISSUE:** Can a defendant be guilty of attempted murder when the victim was already dead at the time of the shooting?
- **RULE:** Attempt requires intent to commit the crime. If the defendant believed the victim was alive and intended to kill, the attempt is complete — factual impossibility is no defense.
- **HOLDING:** Yes. The defendant's belief that the victim was alive, combined with his intent to kill, satisfies the mens rea for attempted murder. The fact that the victim was already dead is a factual impossibility, not a legal one.
- **SIGNIFICANCE:** Distinguishes factual impossibility (no defense) from legal impossibility (defense). The focus is on the defendant's intent and belief, not the actual facts.

IV. IMPOSSIBILITY DEFENSES

A. Factual Impossibility

1. **Definition:** Defendant intended to commit a crime, but circumstances made completion impossible.
2. **Rule:** Factual impossibility is **NOT** a defense to attempt.
3. **Rationale:** The defendant's criminal intent and dangerousness are the same regardless of external circumstances.
4. **Example:** Shooting at an empty bed intending to kill — the victim's absence is factual impossibility.

B. Legal Impossibility

1. **Definition:** Defendant's intended conduct, even if completed, would not constitute a crime.

2. **Rule:** Legal impossibility **IS** a defense to attempt.
3. **Rationale:** There is no criminal harm to punish — the defendant's conduct, if completed, would be lawful.
4. **Example:** Receiving property that is not stolen, believing it to be stolen (Jaffe).

C. The Modern Trend — MPC §5.01

1. MPC §5.01(1)(a) eliminates the impossibility defense entirely.
 2. Under MPC, attempt is defined by the defendant's purpose — if the defendant believed the circumstances were as he thought, attempt is complete.
 3. **Key Exam Trap:** The MPC approach effectively abolishes the factual/legal impossibility distinction. Focus on the defendant's *belief* about the circumstances.
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V. ABANDONMENT / RENUNCIATION

A. Common Law

1. **Rule:** Voluntary abandonment is generally **NOT** a defense to attempt.
2. **Rationale:** Once the substantial step is taken, the crime of attempt is complete.
3. **Exception:** Some jurisdictions allow abandonment if it is voluntary and complete.

B. MPC §5.01(4)

1. **Rule:** Voluntary renunciation is an affirmative defense to attempt.
2. **Requirements:** a. Abandonment must be voluntary and complete. b. Abandonment must be motivated by a change of heart, not by increased risk of detection.
3. **Not Voluntary:** Abandonment motivated by fear of discovery, waiting for a better opportunity, or inability to complete.

C. Policy Rationale

1. Encourages criminals to desist before harm occurs.
 2. Rewards those who genuinely change their minds.
 3. Distinguishes between the dangerous (who persist) and the redeemable (who abandon).
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VI. COMMON EXAM ISSUES / TRAPS

A. Mens Rea Traps

1. **Attempt requires specific intent** — even for crimes that are general intent or strict liability.
 - Example: Attempted felony murder is logically impossible because felony murder does not require intent to kill.
3. **Transferred intent does NOT apply to attempt** — attempt requires intent directed at a specific victim.

B. Actus Reus Traps

1. **Mere preparation is NOT attempt** — the line between preparation and attempt is the most frequently tested issue.

2. **Solicitation vs. Attempt:** Solicitation is asking another to commit a crime; attempt requires a substantial step toward personal commission.
3. **Conspiracy vs. Attempt:** Conspiracy is an agreement plus an overt act; attempt requires a substantial step toward completion.

C. Impossibility Traps

1. **Factual impossibility is never a defense** — the defendant's belief controls.
2. **Legal impossibility is a defense** — but the line between factual and legal is blurry.
3. **MPC eliminates the distinction** — focus on defendant's purpose and belief.

D. Abandonment Traps

1. **Common Law: No abandonment defense** — once attempt is complete, it's too late.
2. **MPC: Voluntary renunciation is a defense** — but must be genuine, not tactical.
3. **Abandonment after the substantial step:** Under MPC, renunciation must occur before completion.

E. The "Impossible Attempt" Problem (Dlugash/Jaffe)

1. **Exam Pattern:** Fact pattern where defendant believes circumstances are X, but they are actually Y.
2. **Analysis:** a. If Y would make the completed act lawful → legal impossibility → defense (Jaffe). b. If Y merely prevents completion → factual impossibility → no defense (Dlugash). c. Under MPC → always no defense if defendant believed circumstances were criminal.

VII. COMPARISON CHART: COMMON LAW vs. MPC

Element	Common Law	MPC §5.01
Mens Rea	Specific intent to commit target offense	Purpose to engage in conduct or cause result
Actus Reus	Dangerous proximity to completion	Substantial step strongly corroborative of purpose
Impossibility	Factual: no defense; Legal: defense	No defense — focus on defendant's belief
Abandonment	Generally no defense	Voluntary renunciation is affirmative defense
Merger	Attempt merges into completed crime	Attempt merges into completed crime

PROFESSOR'S EXAM TIP: The most frequently tested issue on attempt is the **actus reus** — distinguishing preparation from attempt. Always ask: "Did the defendant's conduct go beyond mere preparation and constitute a substantial step?" Second most tested: the **mens rea** requirement — attempt always requires specific intent, even for crimes that are normally general intent. Third: **impossibility** — know the Jaffe/Dlugash distinction cold, and remember that MPC abolishes the defense entirely.

CRIMINAL LAW: THEORIES OF PUNISHMENT & FOUNDATIONAL DOCTRINES

SOP-STYLE LEARNING HANDBOOK

I. THE SWEEP OF CRIMINAL LAW IN AMERICA

A. Mass Incarceration — The Statistical Landscape

1. The United States operates the largest penal system in the world. a. Incarceration rate: approximately 830 per 100,000 residents. b. Since 1972, the incarceration rate has grown fivefold. c. The U.S. holds 25% of the world's prisoners despite having only 5% of the global population.
2. Racial and Social Concentration — Disparate Impact a. African Americans comprise approximately 33% of the incarcerated population but only 13.4% of the total U.S. population. b. Sentencing disparity: Black men receive sentences roughly 19.1% longer than "similarly situated" white men. c. Systemic risk: 1 in 3 Black men can expect to be incarcerated in their lifetime, compared to 1 in 17 white men.
3. Causes of Growth — Policy Choices, Not Crime Rates a. Crime rates fell in the 1990s while incarceration rates continued to rise. b. Attributable factors include:
 1. Aggressive drug enforcement.
 2. Mandatory minimum sentencing statutes.
 3. "Three-strikes" laws. c. The rise is not strictly tied to actual crime rates.

B. Underenforcement vs. Overenforcement — The Dual Problem

1. Overenforcement: Excessive policing and harsh sentencing concentrated in poor and minority communities.
2. Underenforcement: Failure of the state to protect vulnerable groups. a. Examples include domestic violence, white-collar crime, and "Black-on-Black" homicide. b. The state's failure to protect often precedes the state's decision to punish.

C. Common Exam Issues / Traps

1. **TRAP:** Do not assume incarceration rates track crime rates. The exam may test whether you recognize that policy choices (not crime spikes) drove mass incarceration.
 2. **TRAP:** Be prepared to argue both sides of the underenforcement/overenforcement dichotomy. A fact pattern involving a poor defendant from a high-crime area may implicate both.
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II. THEORIES OF PUNISHMENT — OVERVIEW

A. The Two Major Frameworks

1. Utilitarianism (Consequentialist / Forward-Looking) a. Punishment is an "evil" justified only if it prevents a greater evil. b. The goal is to maximize social utility and happiness. c. Focus: What good will this punishment do in the future?
2. Retributivism (Deontological / Backward-Looking) a. Punishment is justified because the offender *deserves* it. b. Punishment is a "categorical imperative" (Kant). c. Focus: What does this offender deserve based on past conduct?

B. H.L.A. Hart's Distinction — The "Mixed Theory" Framework

1. General Justifying Aim: Why do we have a punishment system at all? a. Answer: To prevent crime (Utilitarian justification).
2. Distribution: Who do we punish and how much? a. Answer: Only the guilty, and only what they deserve (Retributivist limitation).
3. Significance: This framework allows a "compromise" between utility and desert. a. The system exists for utilitarian reasons. b. But individual punishment is limited by retributive principles.

C. Common Exam Issues / Traps

1. **TRAP:** The exam will test whether you can distinguish between the *general justifying aim* and the *distribution* of punishment. A fact pattern asking "why punish at all?" requires a different answer than "how much should this defendant get?"
 2. **TRAP:** Be prepared to critique the Mixed Theory. If utility and desert clash (e.g., a defendant is no longer dangerous but committed a heinous crime), the theory struggles to explain why we still punish.
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III. UTILITARIANISM — THE CONSEQUENTIALIST FRAMEWORK

A. Definition and Core Principle

1. Punishment is inherently an "evil" (pain, deprivation).
2. It is justified *only* if it prevents a greater evil (future crime).
3. The calculation is one of net social utility.

B. The Three Mechanisms of Utilitarian Punishment

1. **Deterrence** a. General Deterrence: Punishing one offender to discourage the general public from committing similar crimes.
 1. The public observes the punishment and calculates that crime "does not pay." b. Specific Deterrence: Punishing one offender to discourage that specific individual from re-offending.
 2. The offender experiences punishment and chooses not to repeat the behavior.
2. **Rehabilitation** a. Correcting the offender so they can return to society as a law-abiding citizen. b. The "Medical Model": Treating crime as a social or psychological illness requiring a "cure." c. Indeterminate sentences: Sentences ending only when the "patient" is cured, with parole boards exercising wide discretion.
3. **Incapacitation** a. Preventing future crime by physically removing the offender from society. b. The logic: "A thug in prison can't shoot your sister" (DiIulio). c. Selective

Incapacitation: Targeting "high-rate" offenders for longer sentences based on predictive tools.

C. The Three Prerequisites for Effective Deterrence

1. The defendant must *know* the rule prohibiting the conduct.
2. The defendant must *perceive* the cost of violation as greater than the perceived benefits.
3. The defendant must be *willing and able* to bring a knowing, rational calculation to the decision.

D. Empirical Findings on Deterrence

1. The *certainty* of being caught is a stronger deterrent than the *severity* of the punishment.
2. Severity alone (e.g., long sentences) has diminishing returns if the probability of detection is low.

E. Critiques of Incapacitation

1. **Diminishing Returns (Donohue & Seligman)** a. The "mean criminality" of those leaving prison is lower than the total stock of prisoners. b. Lengthening sentences does not stop as many crimes as estimated.
2. **Replacement Effect** a. In gangs or drug rings, one incapacitated member is simply replaced by a new recruit. b. Total crime in society may remain constant.
3. **Aging Out** a. Most crime occurs in late teens and early twenties. b. Long sentences (e.g., for a 20-year-old) often extend past the age when the person would have stopped offending anyway.
4. **False Positives (Cohen)** a. Predictive tools (e.g., COMPAS) have high error rates (60% + false positives). b. The variables used (employment, education) are often proxies for race and class.

F. Critiques of Rehabilitation

1. **Michael Vitiello — Historical Evolution** a. Puritan View: Punishment based on "innate depravity." Goal was to protect the community, not save the sinner. b. Quaker View: Crime was a product of society, not inherent sin. Transformation achieved through rationality, reflection, and hard labor. c. Social Responsibility: Society shares blame for "corrupting" individuals, creating a moral imperative to offer transformation.
2. **Michael S. Moore — Two Rehabilitative Ideals** a. Safety-Based Rehabilitation: Justified by making the offender safe for the streets. Benefit is to the public. b. Paternalistic Rehabilitation: Seeks to help the offender lead a "flourishing life."
 1. Critique: Misallocates resources away from the "deserving" poor or disabled.
 2. Critique: Infringes on liberty (paternalism).
 3. Critique: Creates "moral blindness" where "treatments" are inflicted regardless of desert.
3. **Andrew Von Hirsch & Lisa Maher — The "Drastic Intervention" Problem** a. Effective treatment (e.g., for drug-abusing robbers) often requires intervention far more "drastic" than what is proportionate to the crime. b. A "treatment ethos" can become a facade for unfettered state power and biased decision-making.

4. **The "Nothing Works" Movement (Robert Martinson, 1970s)** a. Historical skepticism that rehabilitation programs reduce recidivism. b. Led to the "get tough" era of mandatory minimums.

G. Common Exam Issues / Traps

1. **TRAP:** The exam may ask you to apply the three prerequisites for deterrence to a fact pattern. If the defendant did not know the law, deterrence fails.
 2. **TRAP:** Be prepared to argue that incapacitation has diminishing returns. A fact pattern involving an elderly defendant or a gang member may test the "aging out" or "replacement" critiques.
 3. **TRAP:** The "Medical Model" of rehabilitation is a historical concept. Do not assume modern courts embrace it. The exam may test whether you recognize its decline.
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IV. RETRIBUTIVISM — THE DESERT-BASED FRAMEWORK

A. Definition and Core Principle

1. Punishment is justified because the offender *deserves* it.
2. It is a "categorical imperative" (Kant): Punishment must be imposed *only* because a crime was committed, never as a means to a social "good."
3. The focus is backward-looking: on the moral culpability of the offender.

B. Two Forms of Retributivism

1. **Positive Retributivism (The "Must")** a. The state *must* punish the guilty to the extent they deserve. b. Kant: Even if a society were to dissolve itself, the last murderer in jail must be executed so that "blood guiltiness" does not remain on the people. c. Moore: Punishment is a *duty* of society, not just a right.
2. **Negative Retributivism (The "Limit")** a. Guilt is a *necessary* condition for punishment. b. Punishment must not exceed what is deserved (sets an upper limit). c. You cannot give someone 20 years for shoplifting just to "scare" other shoplifters.

C. The "Fair Play" Theory (Herbert Morris)

1. Society is a system of "mutual benefits and burdens."
2. Law-abiding citizens accept the burden of self-restraint.
3. The criminal is a "free rider" who takes the benefits of society but renounces the burden of restraint.
4. Punishment "exacts the debt" to restore equilibrium.

D. Critiques of the "Fair Play" Theory

1. **Jeffrie Murphy — Marxist Critique** a. The "debt to society" model is a fantasy for the poor and marginalized. b. If a person has been excluded from society's benefits (jobs, housing, safety), they owe no "debt" of obedience to its rules. c. Critique is not matched by a positive solution; it leads to a collapse of society.
2. **Jean Hampton — The "Benefit" Problem** a. We do not punish murderers because they "gained an advantage." b. We punish them because murder is *wrong*. c. Most people do not view the "freedom to murder" as a coveted benefit.

3. **John L. Mackie — The "Bizarre Results" Problem** a. The "fair play" model leads to absurd outcomes. b. Example: A businessman who speeds to get a \$100k contract should be fined \$100k, while a murderer who steals \$1 should be fined \$1.

E. Danielle Sered — Retribution and Survival

1. Most people who commit violence are also survivors of violence.
2. State retribution often punishes those the state failed to protect in the first place.
3. The cycle of violence is reinforced by the punishment system.

F. Common Exam Issues / Traps

1. **TRAP:** Distinguish between Positive and Negative Retributivism. The exam may ask: "Does the state *have* to punish, or is it just *allowed* to punish?"
 2. **TRAP:** The "Fair Play" theory is a common exam target. Be prepared to apply it and then critique it using Murphy, Hampton, or Mackie.
 3. **TRAP:** Sered's critique is useful for policy arguments. If a fact pattern involves a defendant who was abused or neglected, you can argue that retribution is inappropriate because the state failed to protect them.
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V. RETALIATION AND REVENGE — THE EXPRESSIVE THEORY

A. James Fitzjames Stephen — Vengeance as Social Glue

1. Punishment gives "definite expression" to the hatred society feels for a criminal.
2. The law is to "moral sentiment" what a "seal is to hot wax." a. The law stamps a permanent judgment on the offender.
3. It is morally right for the law to justify and ratify the public's "hatred" of the criminal.

B. Émile Durkheim — Moral Reinforcement

1. When a judge sentences a criminal, they are talking to the *non-criminals*.
2. It tells the "honest people" that their decision to follow the rules is correct and valued.
3. The expressive function explains why we punish "victimless" crimes or symbolic acts.

C. Joshua Kleinfeld — Reconstructivism

1. Crime "breaks" the social fabric.
2. Punishment is the "repair job" that restores the community's sense of safety and shared norms.

D. H.L.A. Hart — The "Moral Alchemy" Critique

1. Retribution is "moral alchemy."
2. The idea that adding "suffering" (punishment) to "wickedness" (crime) creates "good" is mysterious and illogical.

E. Common Exam Issues / Traps

1. **TRAP:** The expressive theory is useful for justifying punishment of "victimless" crimes. If a fact pattern involves a symbolic act (e.g., flag burning), the expressive theory explains why we punish.

2. **TRAP:** Hart's "moral alchemy" critique is a powerful counterargument. Be prepared to use it against any purely retributive justification.
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VI. THE NECESSITY DEFENSE — REGINA V. DUDLEY AND STEPHENS

A. CASE: Regina v. Dudley and Stephens (1884)

ISSUE: Whether "extreme necessity" (the imminent threat of starvation) serves as a legal justification for the murder of an unoffending, innocent person.

RULE: Murder is the intentional killing of a human being. Under English Common Law, "necessity" is not a defense to murder. To justify killing in self-defense, the victim must be an attacker or threat; there is no law that allows a person to choose the life of an innocent over their own.

HOLDING: The prisoners are guilty of murder. Necessity is not a legal defense to the taking of an innocent life.

SIGNIFICANCE: This case establishes the black-letter rule that necessity cannot justify intentional killing of an innocent person. It also introduces the tension between legal rules and moral mercy (the death sentence was commuted to six months).

B. The Court's Analysis — Three Key Distinctions

1. **Self-Defense Distinguished** a. In self-defense, the victim is an assailant or threat. b. Here, Parker was "weak and unoffending." c. The necessity defense cannot be extended to cover the killing of an innocent.
2. **The Measurement Problem** a. Humans cannot accurately measure the comparative value of lives. b. If necessity were a defense, who decides who is "more valuable"? c. Allowing such a plea would be a "cloak for unbridled passion."
3. **The Moral Standard** a. The law must set standards even if humans struggle to meet them. b. "To preserve one's life is generally speaking a duty, but it may be the highest duty to sacrifice it." c. The temptation was "terrible," but the law must hold firm.

C. Sovereign Mercy — The Escape Valve

1. The court suggests that while the *law* must find them guilty, the *Sovereign* (the Crown) has the power of mercy.
2. The death sentence was commuted to six months' imprisonment.
3. This creates a distinction between legal guilt and equitable mercy.

D. Common Exam Issues / Traps

1. **TRAP:** Do not confuse necessity with self-defense. Necessity involves killing an innocent; self-defense involves killing an aggressor. The exam will test this distinction.
 2. **TRAP:** The "measurement problem" is a powerful policy argument. If a fact pattern asks whether necessity should be a defense, argue that courts cannot reliably value lives.
 3. **TRAP:** The commutation of the sentence is not a legal holding. The *rule* is that necessity is no defense. Mercy is a separate question for the executive branch.
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VII. THE LIMITS OF CRIMINAL LAW — THE HARM PRINCIPLE AND SEX WORK

A. John Stuart Mill — The Harm Principle

1. The only purpose for which power can be rightfully exercised over any member of a civilized community, against his will, is to prevent harm to others.
2. His own good, either physical or moral, is not a sufficient warrant.

B. The Sex Work Debate — Two Models

1. **The Nordic Model (Criminalization of Purchase)** a. Proponents argue the "harm" is the exploitation of women and the fuel for trafficking. b. The seller is decriminalized; the buyer is criminalized. c. Retains prosecution of the purchasers of sex work.
2. **The Decriminalization Model** a. Proponents argue the "harm" is created by the law itself. b. Police harassment, lack of safety, and underground markets are the real harms. c. Full decriminalization removes the criminal law entirely.

C. The Consent Debate (Dowling & Bigelsen)

1. In a world of poverty and addiction, "consent" is often an illusion.
2. The "consensual transaction" may actually be a form of "violence against the marginalized."
3. This challenges the Millian assumption that consent legitimizes otherwise harmful conduct.

D. Common Exam Issues / Traps

1. **TRAP:** The exam may ask you to apply the Harm Principle to a specific regulatory scheme. Be prepared to argue both sides: that the law prevents harm (Nordic Model) or that the law creates harm (Decriminalization).
2. **TRAP:** The consent debate is a sophisticated argument. If a fact pattern involves a vulnerable defendant (addicted, impoverished), argue that consent is illusory and the criminal law should intervene to protect.

VIII. KEY CASES — IRAC MINI-BRIEFS

A. Regina v. Dudley and Stephens (1884)

ISSUE: Whether extreme necessity justifies the murder of an innocent person.

RULE: Necessity is not a defense to murder. Self-defense requires the victim to be an aggressor.

HOLDING: Guilty of murder.

SIGNIFICANCE: Establishes the absolute prohibition on killing innocents, even under extreme duress.

B. Payne v. Tennessee (1991)

ISSUE: Whether victim-impact testimony is admissible at the sentencing phase of a capital trial.

RULE: A victim is not a "faceless statistic." The jury may consider the "full extent" of the harm caused by the defendant.

HOLDING: Victim-impact testimony is admissible.

SIGNIFICANCE: Links the harm caused to the defendant's "moral blameworthiness," supporting the expressive theory of punishment.

IX. EXAM STRATEGY — APPLYING THE THEORIES

A. The "Chaney" Problem (Michael Moore)

1. A defendant commits a heinous crime (rape, robbery).
2. By the time of sentencing, the defendant is no longer a threat (Utility = 0).
3. But the crime was heinous (Desert = High).
4. The Mixed Theory struggles to explain why we still feel a deep need to punish.

B. The "Age-Out" Problem

1. A 60-year-old defendant is convicted of a crime committed at age 20.
2. Incapacitation provides zero benefit (the defendant would not re-offend).
3. Deterrence is already satisfied (the sentence was imposed).
4. Only retribution justifies continued incarceration.

C. The "False Positive" Problem

1. A defendant is sentenced to 20 years based on a predictive tool.
2. The tool has a 60% false-positive rate.
3. The defendant may be one of the 60% who would not have re-offended.
4. Incapacitation is unjustified; only retribution can justify the sentence.

D. Common Exam Issues / Traps

1. **TRAP:** Always identify which theory of punishment is at issue. The exam will test whether you can match the theory to the facts.
 2. **TRAP:** Be prepared to argue multiple theories. A single fact pattern may implicate deterrence, incapacitation, and retribution simultaneously.
 3. **TRAP:** The "Mixed Theory" (Hart) is the most defensible position. But be prepared to critique it using Moore's "Chaney" problem.
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X. PROFESSOR'S EXAM TIPS — FINAL CHECKLIST

1. **Always distinguish between Utilitarianism and Retributivism.** The exam will test whether you know which is forward-looking and which is backward-looking.
2. **Know the three prerequisites for deterrence.** If any is missing, deterrence fails.
3. **Know the critiques of incapacitation:** diminishing returns, replacement effect, aging out, false positives.
4. **Know the "Fair Play" theory and its critiques.** Murphy (Marxist), Hampton (benefit problem), Mackie (bizarre results).

5. **Know the distinction between Positive and Negative Retributivism.** The "must" vs. the "limit."
 6. **Know the holding of *Dudley and Stephens*.** Necessity is no defense to murder of an innocent.
 7. **Know the Harm Principle and its application to sex work.** Be prepared to argue both the Nordic Model and the Decriminalization Model.
 8. **Know H.L.A. Hart's distinction** between the General Justifying Aim (utilitarian) and Distribution (retributive).
 9. **Be prepared to critique the Mixed Theory** using Moore's "Chaney" problem.
 10. **Always consider the policy implications.** The exam rewards arguments about fairness, bias, and effectiveness, not just black-letter rules.
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End of Outline — Week 1

WEEK 2: JANUARY 20, 2026 – ACTUS REUS & VOLUNTARY ACT PRINCIPLE

I. THE PRINCIPLE OF ACTUS REUS A. **Definition** — Every crime requires a physical act (actus reus) that is voluntary. 1. Actus reus = the guilty act; the external, physical component of a crime. 2. No crime can be based solely on a person's status, thoughts, or mere omission (unless a legal duty exists). 3. Source: MPC § 2.01; Common Law tradition. B. **Three Components of Actus Reus** 1. A voluntary act (or omission where duty exists). 2. Social harm caused by the act. 3. Causation linking the act to the harm (discussed in later weeks). C. **Policy Rationale** 1. The criminal law punishes conduct, not character or thoughts. 2. Protects individual autonomy — you cannot be punished for who you are, only for what you do.

II. THE VOLUNTARY ACT REQUIREMENT A. **Black-Letter Rule** — A person is not guilty of an offense unless their liability is based on conduct that includes a voluntary act. 1. MPC § 2.01(1): "A person is not guilty of an offense unless his liability is based on conduct which includes a voluntary act or the omission to perform an act of which he is physically capable." 2. Common Law: Same principle — act must be willed by the actor. B. **What Is a "Voluntary Act"?** 1. A bodily movement that is a product of the actor's conscious will or effort. 2. Examples of voluntary acts: a. Raising your arm to strike someone. b. Driving a car (even if negligently). c. Speaking words of solicitation. 3. Examples of involuntary acts (not voluntary): a. Reflex or convulsion. b. Bodily movement during unconsciousness or sleep. c. Conduct during hypnosis or resulting from hypnotic suggestion. d. A movement that is not a product of the actor's effort or determination. C. **Key Cases - CASE: *Martin v. State* (Ala. Ct. App. 1944)** - ISSUE: Can a person be convicted for being drunk in public if they were involuntarily brought to the public place by police? - RULE: The actus reus must be voluntary; a person cannot be convicted for a status or condition involuntarily created. - HOLDING: No. Martin was arrested at home and taken to the highway; his presence in public was not voluntary. - SIGNIFICANCE: Establishes that the state cannot manufacture the actus reus; the act must be the defendant's own voluntary choice. - **CASE: *People v. Decina* (N.Y. 1956)** - ISSUE: Can a person be held criminally liable for an involuntary act (e.g., an epileptic seizure) if they knew of the risk beforehand? - RULE: A voluntary act can be found in the *prior* conduct of the defendant (e.g., choosing to drive while knowing of a seizure risk). - HOLDING: Yes. Decina knew he was prone to seizures; his voluntary act was *getting behind the wheel*. - SIGNIFICANCE: The voluntary act need not be contemporaneous with the harm;

it can be a prior voluntary act that creates the risk. D. **Exceptions and Limitations** 1.

Omissions as Actus Reus — A failure to act can satisfy the actus reus requirement *only* if there is a legal duty to act. a. Sources of legal duty: i. Statute (e.g., duty to report child abuse). ii. Contract (e.g., lifeguard, nurse). iii. Special relationship (e.g., parent-child, spouse-spouse). iv. Voluntary assumption of care (e.g., you start rescuing someone, you cannot abandon them). v. Creation of peril (e.g., you cause the danger, you must mitigate it). b. MPC § 2.01(3): Liability for omission only if the law defining the offense provides, or a duty is otherwise imposed. 2. **Status Offenses** — Cannot punish a person for their “status” (e.g., being a drug addict) alone. a. *Robinson v. California* (1962): Punishing addiction as a crime violates the Eighth Amendment. b. *Powell v. Texas* (1968): Punishing public intoxication is constitutional because it punishes *conduct* (being drunk in public), not status. 3. **Possession as an Act** — Possession can satisfy actus reus if the defendant knowingly procured or received the item, or was aware of its presence and had control. a. MPC § 2.01(4): Possession is voluntary if the defendant knowingly obtained or received the thing, or was aware of its presence long enough to terminate possession. E. **Common Exam Issues / Traps** 1. **The “Manufactured Actus Reus” Trap** — If the police bring the defendant to the scene of the crime (e.g., *Martin*), the act is not voluntary. Do not confuse this with entrapment (a separate defense). 2. **The “Prior Voluntary Act” Trap** — If the defendant’s involuntary act (e.g., seizure) causes harm, look for a *prior* voluntary act (e.g., driving while knowing of the risk). This is the *Decina* principle. 3. **Omission Questions** — Always ask: (1) Was there a legal duty? (2) Did the defendant have the physical capacity to perform the act? (3) Did they fail to act? If any answer is “no,” no liability for omission. 4. **Status vs. Conduct** — The exam may present a fact pattern where a person is homeless and sleeping in public. The state cannot punish the *status* of homelessness, but can punish the *conduct* of sleeping in a prohibited area. 5. **Possession Questions** — If the defendant did not know the item was present (e.g., drugs in a borrowed car), possession is not voluntary. But if they *should have known* (negligence), the MPC may allow liability if the crime’s mens rea is negligence.

III. THE ACTUS REUS OF ATTEMPT, SOLICITATION, AND CONSPIRACY (PREVIEW) A.

Inchoate Crimes — The actus reus for inchoate crimes is different from completed crimes. 1. **Attempt** — Requires a “substantial step” toward completion (MPC § 5.01) or an act “beyond mere preparation” (Common Law). 2. **Solicitation** — The act of *encouraging, requesting, or commanding* another to commit a crime. 3. **Conspiracy** — The act of *agreeing* with another to commit a crime, plus an overt act in furtherance (MPC and most jurisdictions). B. **Key Distinction** — For inchoate crimes, the actus reus is the *conduct* of preparation or agreement, not the completed harm. C. **Common Exam Issues / Traps** 1. Do not confuse the actus reus of attempt (substantial step) with mere preparation (not enough). 2. Solicitation does not require the solicited person to agree or act — the act of asking is enough. 3. Conspiracy requires an *agreement* — mere parallel conduct is not enough.

IV. PROFESSOR’S EXAM TIPS FOR ACTUS REUS A. Always Start with the Voluntary Act

— On any essay, first identify the defendant’s voluntary act. If there is none, the analysis ends (unless an omission or prior voluntary act applies). B. **Watch for “But-For” Police Action** — If the police created the situation that led to the defendant’s “act,” argue *Martin* — the act is not voluntary. C. **Omission Analysis is a Checklist** — Do not skip steps. List the duty sources. If no duty exists, no liability for omission. D. **Mens Rea is Separate** — Do not conflate actus reus and mens rea. A voluntary act can be done with any mental state (or none, if strict liability). E. **The “Decina” Fact Pattern is a Favorite** — Expect a hypo where a defendant has a known medical condition, drives, and causes harm. The voluntary act is *getting in the car*, not the seizure.

CHAPTER 3: TRINITY OF PUNISHMENT

I. INTRODUCTION TO THE TRINITY OF PUNISHMENT

A. Definition: Three principles limit the state's power to punish:

1. **Legality** — No crime without law (*nullum crimen sine lege*)
2. **Culpability** — No punishment without fault (*nulla poena sine culpa*)
3. **Proportionality** — Punishment must fit the crime

B. The Model Penal Code (MPC) Framework

1. **Creation:** 1962 by the American Law Institute (ALI)
2. **Legal Status:** A "model" — not binding law, but adopted in adapted form by more than half of U.S. states
3. **Theory of Purpose (MPC §1.02(1)):** a. "Fair warning" → Legality b. Safeguard "conduct without fault" → Culpability c. "Differentiate on reasonable grounds" → Proportionality

C. Critical Question: Does the current record-high incarceration rate suggest departure from these three principles?

II. LEGALITY PRINCIPLE (*NULLA POENA SINE LEGE*)

A. Black-Letter Rule: No punishment without law. The principle serves:

1. **Fair Warning** — Individuals must know what conduct is prohibited before they act
2. **Control of Discretion** — Limits arbitrary police and prosecutorial power
3. **Bar Against Retroactivity** — Cannot punish past acts under new laws
4. **Bar Against Vagueness** — Laws must be sufficiently clear

B. Institutional Framework

1. **Traditional Common Law:** Courts historically defined crimes (murder, larceny) through judicial decisions
2. **Modern Codification:** Most states now codify crimes by statute; common law fills gaps only where permitted
3. **Federal Limitation:** Federal courts cannot create common-law crimes — they interpret only legislative enactments (*Erie* doctrine applied to criminal law)
4. **Abolition of New Common-Law Crimes:** Most states (including Pennsylvania) have abolished judicial power to create new crimes

C. Theory — Separation of Powers

1. **Chief Justice Marshall (*U.S. v. Wiltberger*):** Punishment is a legislative power. The legislature, not the court, must define the crime and ordain the punishment
 2. **Professor Carissa Byrne Hessick:** Codification merely shifted power from judges to prosecutors, who use broad statutes to force plea bargains
 3. **Current Role of Courts:** Limited to **Statutory Interpretation** — determining what the legislature meant
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III. COMMON-LAW CRIMES AND FAIR WARNING

A. CASE: *Commonwealth v. Mochan* (Pa. Super. Ct. 1955)

ISSUE: In a state that recognizes common-law crimes, can a defendant be convicted for conduct that outrages public decency and morals even if no specific statute or exact judicial precedent prohibits that conduct?

RULE: The common law is broad enough to punish as a misdemeanor any act which directly injures or tends to injure the public to such an extent as to require state interference — specifically acts which injuriously affect public morality or obstruct public justice.

HOLDING: Judgment affirmed. Mochan's obscene phone calls over a four-party line "scandalously affected the morals" of the community.

SIGNIFICANCE: Establishes the "public injury" test for common-law misdemeanors. The common law is a "living thing" and does not require a specific "name" for every crime.

B. Dissent (Woodside, J.):

1. Violation of **Separation of Powers** — courts should not "arrogate" the power to define crimes
2. Violates **Fair Warning** — *nulla poena sine lege* requires legislative, not judicial, crime creation

C. Class Notes — Key Distinctions:

1. **Codified Penal Law:** Where a legislative code exists, courts still retain common-law authority to declare what is wrong and create a cause of action where none exists
 2. **Federal Courts:** Cannot "make up law" — their job is to interpret the U.S. Constitution and federal statutes
 3. **Erie Doctrine Applied:** Federal courts cannot "reach into the heavens" to find law; they apply only enacted legislation
 4. **State Courts:** May apply common law to fill gaps where some prohibition exists
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IV. FAIR WARNING AND STATUTORY INTERPRETATION

A. CASE: *McBoyle v. United States* (U.S. 1931)

ISSUE: Does the phrase "any other self-propelled vehicle not designed for running on rails" include aircraft, or is it limited to land-based vehicles?

RULE: The **Fair Warning Principle** — A criminal statute must give fair warning to the world in language that the "common world" understands of what the law intends to do if a line is passed.

HOLDING: Judgment reversed. Airplanes are not "motor vehicles" under the National Motor Vehicle Theft Act.

SIGNIFICANCE: Establishes that courts cannot "extend" criminal statutes beyond the "popular picture" the words evoke in the common mind, even if the legislature *would have* wanted to include the conduct.

B. Application of *McBoyle*:

1. **Textual Analysis (Holmes):** "Vehicle" in "everyday speech" evokes a thing moving on land
2. **Ejusdem Generis:** The specific items listed (trucks, wagons, motorcycles) were all land-based; the catch-all phrase must share that characteristic
3. **Legislative Omission:** Airplanes existed when the Act was written; the judiciary presumes purposeful omission

C. CASE: *Yates v. United States* (U.S. 2015)

ISSUE: Does the term "tangible object" in a statute designed to prevent financial record-tampering include a "fish"?

RULE: Statutory interpretation must consider: (1) specific context, (2) broader statutory context, and (3) the **Rule of Lenity** — ambiguity in criminal laws is resolved in favor of the defendant.

HOLDING: Judgment reversed. A "tangible object" under 18 U.S.C. §1519 must be one used to record or preserve information; a fish does not qualify.

SIGNIFICANCE: Applies multiple canons of construction (*noscitur a sociis*, *ejusdem generis*) and the Rule of Lenity to limit a statute's reach.

D. Canons of Construction Applied in *Yates*:

1. **Noscitur a sociis:** "Tangible object" is "known by the company it keeps" — sits next to "record" and "document"
 2. **Ejusdem generis:** General words following specific words embrace only objects similar in nature
 3. **Statutory Context:** Law passed after Enron scandal to stop "corporate and accounting deception"
 4. **Rule of Lenity:** Because the term is ambiguous, the court must choose the narrower interpretation
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V. THE RULE OF LENITY

A. Black-Letter Rule: When a criminal statute is ambiguous, the court must resolve the doubt in favor of the defendant.

B. Key Distinctions:

1. **MPC Position:** The Model Penal Code does **not** recognize the Rule of Lenity
2. **Modern Court Position:** Lenity is a "last resort" only for "grievous ambiguity"
3. **Traditional Position (Shon Hopwood):** Argues for return to "strict construction" to better protect individual liberty

C. Exam Application — Critical Distinction:

1. **Exam Hypo Structure:** First, determine what crimes could be charged under the MPC
2. **Second Step:** Analyze how the analysis would differ if the MPC does not apply
3. **Key Trap:** Most jurisdictions follow the Rule of Lenity, but the MPC does not recognize it — if there is ambiguity, the state bears the harm

D. Legislative Intent Approaches:

1. **Justice Scalia (Textualist):** Only the **text** enacted by Congress is law; using "intent" lets judges do whatever they want
2. **Justice Breyer (Purposivist):** Law is a human institution; courts should use history to make the law "workable" and "coherent"

E. Theory — Politics of Crime (Professor Dan Kahan): Letting judges "make" law is efficient because Congress is too slow to react to new types of crime.

VI. THE "JENNIFER" CASE — EXAM APPLICATION

A. Scenario: Adult male poses as "Jennifer" online to get minors to masturbate on camera. Charged with "sexual activity" under §2422(b).

B. Analysis:

1. **Question:** Does "sexual activity" require physical contact?
 2. **Courts are split:** a. **Applying Lenity:** Court rules for defendant — no contact = no crime b. **Applying Plain Meaning:** Court rules for state — masturbation is sexual activity
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VII. RETROACTIVE JUDICIAL ENLARGEMENT

A. CASE: *Keeler v. Superior Court* (Cal. 1970)

ISSUE: Can the judicial definition of "human being" be expanded to include a viable fetus for the purpose of a murder charge without violating the Due Process Clause's ban on retroactive criminal law?

RULE: The **Legality Principle** (specifically the ban on *ex post facto* judicial enlargement) — An "unforeseeable judicial enlargement of a criminal statute, applied retroactively, operates precisely like an *ex post facto* law" and violates Due Process.

HOLDING: Writ of prohibition granted; murder charge dismissed. Keeler did not have "fair warning" that his act constituted murder.

SIGNIFICANCE: Judicial expansion of a statutory definition violates Due Process if the change is "unforeseeable" at the time of the conduct.

B. Application of *Keeler*:

1. **Legislative Intent (1850):** California Legislature adopted the common-law "born alive" rule — a fetus was not a "human being" until born with independent circulation
2. **Fair Warning:** To change this definition *now* to include a viable fetus would be an "unforeseeable enlargement"
3. **Dissent:** Argued "human being" should be a "spectrum" that evolves with medical science

C. Post-*Keeler* Developments:

1. **Legislative Response:** California changed the law to specifically include a "fetus"

2. **Prosecuting Mothers:** Fetal-homicide laws now sometimes used against pregnant women (drug use, etc.)

D. CASE: *Rogers v. Tennessee* (U.S. 2001) — The Exception

RULE: Judges **can** abolish old common-law rules (like the "year and a day" rule for murder) retroactively as long as the change isn't "unexpected and indefensible."

Dissent (Scalia, J.): It is a "curious constitution" where unelected judges can do what elected representatives are forbidden from doing: making conduct a crime after it happened.

VIII. VOID FOR VAGUENESS DOCTRINE

A. Black-Letter Rule: A law is unconstitutional if it:

1. **Fails to provide notice** that enables ordinary people to understand what conduct is prohibited
2. **Authorizes or encourages arbitrary and discriminatory enforcement**

B. CASE: *City of Chicago v. Morales* (U.S. 1999)

ISSUE: Is a loitering ordinance unconstitutionally vague if it fails to provide fair notice of prohibited conduct and fails to establish minimal guidelines for law enforcement?

RULE: The **Void for Vagueness Doctrine** — A law is unconstitutional if it (1) fails to provide notice that enables ordinary people to understand what conduct is prohibited, or (2) authorizes/encourages arbitrary and discriminatory enforcement.

HOLDING: Affirmation of the Illinois Supreme Court; the ordinance is unconstitutionally vague.

SIGNIFICANCE: "No apparent purpose" is too subjective; the ordinance provided "absolute discretion" to police.

C. Application of *Morales*:

1. **Fair Notice Failure:** "No apparent purpose" — an ordinary citizen standing on a street corner cannot know if their purpose is "apparent" to a police officer
2. **Arbitrary Enforcement:** Ordinance did not require loitering to be "harmful" or "threatening"; allowed police to pursue "personal predilections"
3. **"Standardless Sweep":** Police could order a gang member and his father to move even if they were just looking at a ballpark

D. Constitutional Foundations:

1. **Justice Gorsuch:** Vagueness is a "parchment barrier" if it does not actually stop arbitrary power
2. **Sixth Amendment Connection:** Clear laws required — you cannot defend yourself if you do not know what you are accused of

E. Vagueness vs. Equal Protection:

1. **Equal Protection:** Requires proof of **actual** bias (hard to prove)

2. **Vagueness:** Looks at the **wording** of the law and asks if it **invites** bias

F. Historical Context:

1. **Vagrancy Laws:** Historically used to control "undesirables" (Black people, the poor)
2. **Justice Douglas (*Papachristou*):** The "amenities of life" (strolling, loafing) are part of American independence and spirit; they should not be "nipped in the bud" by vague laws
3. **Racial Discrimination Concern:** Loitering statutes will be enforced in a racially discriminatory manner

G. Legislative Response (Chicago): Updated law to be more specific — defining loitering as behavior intended to "establish control" or "intimidate"

IX. PROPORTIONALITY PRINCIPLE

A. Core Principle: Punishment must match the seriousness of the offense.

B. Legal Basis:

1. **Eighth Amendment:** Prohibits "cruel and unusual punishment"
2. **State Statutes:** a. MPC §1.02(1)(e) b. N.Y. Penal Law §1.05 c. Cal. Penal Code §1170

C. The Big Questions:

1. Is proportionality an **absolute limit** (retributive) or a **sliding scale** for efficiency (utilitarian)?
 2. Should we punish based on "wickedness" or "social harm"?
 3. Is a sentence "excessive" if it does not result in a net benefit to society?
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X. THEORIES OF PUNISHMENT — COMPREHENSIVE FRAMEWORK

A. Jeremy Bentham — Utilitarian / Deterrence

1. **Core Theory:** Punishment is a tool to influence behavior
2. **Key Principle:** Must be just enough to outweigh the "profit" of the crime, but no more than necessary to deter

B. Immanuel Kant — Retributivism

1. **Core Theory:** Punishment must be the exact "kind and degree" appropriate to the moral wrong
2. **Key Principle:** Justice, not utility, is the goal

C. Hyman Gross — Desert-Based Retribution

1. **Core Theory:** Punishment beyond what is "deserved" is effectively punishing an innocent person for the "excess" portion of the sentence
2. **Key Principle:** The "Innocence Analogy" — any "excess" sentence beyond what is deserved lacks a legal and moral basis

D. H.L.A. Hart & A. Honoré — Complex Deterrence

1. **Core Theory:** Severity is based on three factors: a. Gravity of harm b. Degree of temptation c. Dangerousness of the offender
2. **Key Principle:** Higher temptation or danger requires higher penalties

E. A.C. Ewing — Moral Communication

1. **Core Theory:** Excessive punishment turns the offender into a victim in the public eye
2. **Key Principle:** Discredits the law instead of reinforcing moral boundaries
3. **The "Martyr" Effect:** Public stops focusing on guilt and starts focusing on suffering
4. **Psychological Barrier:** Overly punished offender feels only "self-pity, despair, or bitterness"

F. Von Hirsch & Ashworth — Commensurate Deserts

1. **Core Theory:** Punishment is a "deprivation" that conveys "disapprobation" (censure)
2. **Key Principle:** Justice requires that this censure matches the reprehensibility of the act
3. **Criticism of Utilitarianism:** If proportionality is only used to prevent crime, it will be ignored whenever a harsher sentence seems "more efficient"

G. H.L.A. Hart — Law, Liberty and Morality (1963)

1. **Utilitarian Ground:** If the law ignores common moral sense, it confuses people and brings the legal system into disrepute
 2. **Fairness Ground:** Principles of justice require treating morally similar offenses alike and morally different offenses differently
 3. **The "Quantum" Distinction (Critical for Exams):** a. **Justification** for having a punishment system = prevent harm b. **Quantum** (amount) of punishment = determined by moral gravity
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XI. BENTHAM'S PRINCIPLES OF PENAL LAW — DETAILED FRAMEWORK

A. Rule I: The "Profit-Outweigh" Rule

1. **The Rule:** The value of the punishment must never be less than what is sufficient to outweigh the profit of the offense
2. **The Logic:** If a criminal makes \$100 from a crime but is only fined \$50, there is a \$50 "net profit" — nothing restrains the offender from repeating the crime

B. Rule III: The "Incentive to Choose the Lesser Crime" Rule

1. **The Rule:** When two offenses are in competition, the punishment for the greater offense must be severe enough to induce the person to choose the lesser one
2. **The Logic:** If punishment for "Theft" equals punishment for "Theft + Murder," murder becomes "free" — the criminal will kill the witness to increase chance of escape

C. Rule IV: The "Micro-Deterrence" Rule

1. **The Rule:** Punishment should be adjusted so that for every "part" of the mischief, there is a motive to restrain the offender

2. **The Logic:** If stealing \$5 and \$10 receive the same punishment, the "second \$5" is effectively unpunished

D. Rule V: The "Minimalist" Rule (The Maximum Limit)

1. **The Rule:** Punishment should **never** be more than what is absolutely necessary to satisfy the other rules
2. **The Logic:** Any punishment beyond what is needed to deter is "wasteful" and "evil" in itself
3. **Caveat:** Because human desires vary, legislators usually must "over-punish" slightly to ensure deterrence

E. Rules VII & VIII: The "Certainty and Proximity" Adjustments

1. **The Rules:** Punishment must be increased in magnitude if it falls short in: a. **Certainty** — chance of getting caught b. **Proximity** — how soon the punishment happens
2. **The Logic:** Humans naturally discount future or uncertain pain. If 10% chance of being caught, punishment must be 10x more severe to feel "equal" at the moment of the crime

F. Bentham's Warnings — Critical for Exams

1. **The "Legislative Bias" Warning:** Legislators are naturally inclined to "Rule Maximum" (excessive severity) because of antipathy or lack of compassion for people they view as "vile"
2. **The "Inconvenience of Severity":** If you use up your "greatest punishments" (life in prison) for "small offenses," you lose the power to increase punishment when that same person commits a truly massive crime

XII. EIGHTH AMENDMENT PROPORTIONALITY — THE FRAMEWORK

A. CASE: *Harmelin v. Michigan* (U.S. 1991)

ISSUE: Does the Eighth Amendment's "Cruel and Unusual Punishments" Clause contain a proportionality guarantee that forbids a mandatory LWOP sentence for a first-time drug possession offense?

RULE: Three competing views:

1. **Scalia View:** The Eighth Amendment contains **no** proportionality guarantee for prison terms; it only bans certain **modes** of punishment
2. **Kennedy/Solem View:** The Eighth Amendment forbids "grossly disproportionate" sentences
3. **Solem Test:** Court should consider: a. Gravity of offense vs. severity of penalty b. Intra-jurisdictional comparisons c. Inter-jurisdictional comparisons

HOLDING: Sentence upheld. No Eighth Amendment violation.

SIGNIFICANCE: Establishes the "gross disproportionality" standard and the deep division on whether proportionality review exists at all.

B. Application of *Harmelin*:

1. **Scalia/Rehnquist:** "Gravity" is subjective — legislatures, not courts, should decide severity
2. **Kennedy (Plurality):** Proportionality review required but only in "rare" cases of "gross disproportionality" — 672 grams of cocaine (65,000 doses) causes massive social harm, so no further comparison needed
3. **White (Dissent):** Applied *Solem* test — possession is "passive," less serious than murder or rape, which Michigan punished less severely; Michigan was the only state with such a harsh penalty

B. CASE: *Lockyer v. Andrade* (U.S. 2003)

ISSUE: Is a 50-years-to-life sentence for stealing \$150 worth of videotapes "grossly disproportionate" under the Eighth Amendment?

RULE: The "Gross Disproportionality" principle (from *Harmelin*) applies, but it is a "narrow" principle that gives great deference to state legislatures.

HOLDING: Sentence upheld. Not an "unreasonable application" of clearly established federal law.

SIGNIFICANCE: Deference to state legislative choice to punish recidivists more harshly for deterrence and incapacitation.

XIII. PROPORTIONALITY — THEORETICAL TENSIONS

A. Retribution vs. Utility — The Core Exam Distinction

1. **Utilitarianism:** A sentence is proportionate if social benefits (deterrence/incapacitation) outweigh costs — high sentences for minor crimes might be "proportionate" if they stop a crime wave
2. **Retributivism:** A sentence is only proportionate if commensurate with the offender's culpability and the gravity of the crime

B. Exam Tip: When analyzing a sentence, ask: "Is this sentence high because the person is 'evil' (retribution) or because we are trying to 'scare' others (deterrence)?"

C. Institutional Competence — Who Should Decide?

1. **Legislative Deference View (Scalia/Kennedy):** Legislatures represent the "people" and are better suited to make subjective value judgments about how "bad" a crime is
2. **Judicial Review View (White/Solem):** The Eighth Amendment exists to check the "irrational punitive instincts" of the majority
3. **Alternative — The Jury (Meghan Ryan):** Empanel special "sentencing juries" to get a true "people's view"
4. **Moral Panic:** Severe laws (like "Three Strikes") often stem from "passion" or "panic" following high-profile tragedy, not reasoned reflection

D. The "War on Drugs" Paradox (Kelly Patch):

1. **The Comparison:** *Harmelin* got LWOP for drug possession, but if he had shot two police officers, he might have been eligible for parole in 10 years
2. **The Question:** Does this prove we **must** compare different crimes? Or does it prove Scalia is right — that comparing "apples to oranges" is too subjective?

E. Recidivism — The Andrade Problem:

1. **Facts:** Leandro Andrade received 50 years to life for stealing \$150 in videotapes because of his "third strike"
2. **Utilitarian Justification:** Person was not deterred the first time; must "up the ante"
3. **Retributive Justification (Youngjae Lee):** Recidivist is more "culpable" because they had a specific duty to avoid re-offending after first conviction and failed it
4. **Dissent Warning (Souter):** If 50 years for videotapes is not "grossly disproportionate," the Eighth Amendment is a "dead letter"

F. Money vs. Liberty — The Double Standard:

1. **Punitive Damages (Civil):** Courts use **Exacting (De Novo) Review** — no deference to state; strike down awards if "more modest" amount would work
2. **Prison Sentences (Criminal):** Courts use **Deferential Review** — almost always defer to legislature unless sentence is "grossly" shocking
3. **Kennedy's Defense:** Civil cases need more review because they lack procedural safeguards (like "beyond a reasonable doubt") of criminal trials

G. State Constitutional Safeguards — The "Saving Grace":

1. **Eighth Amendment "Wins" (Rare):** Some state courts strike down "shocking" sentences (e.g., 100 years for first-time child porn offender with no contact; 25 years for technical registration error)
2. **State Constitutions:** Often interpreted more strictly than U.S. Supreme Court interpretation
3. **Example — Michigan:** Constitution says "cruel or unusual" (disjunctive) — allowed Michigan Supreme Court to strike down the very law upheld in *Harmelin*
4. **"Proportionality to Nature" Clauses:** Some states (Indiana, Oregon) explicitly require penalties to be "proportioned to the nature of the offense"

H. Proportionality and Culpability — The Bridge to Chapter 4:

1. **The Core Question:** Is **culpability** a mandatory prerequisite for **any** punishment, or can we punish just for "harm" alone?
2. **The Transition:** Even if we agree a crime is "grave," is it ever fair to punish someone who is not "morally blameworthy" (e.g., mental illness, mistake of fact)?

XIV. COMMON EXAM ISSUES / TRAPS

A. Legality Traps:

1. **Common Law vs. Statute:** Always identify whether the jurisdiction recognizes common-law crimes before analyzing
2. **Rule of Lenity:** Remember — MPC does NOT recognize it; most states do. If the hypo says "apply the MPC," do NOT use lenity
3. **Retroactivity:** Distinguish between legislative *ex post facto* laws (always prohibited) and judicial enlargement (*Keeler* standard — "unforeseeable")
4. **Vagueness:** Two-prong test — always analyze BOTH fair notice AND arbitrary enforcement

B. Proportionality Traps:

1. **Theory Identification:** Always identify which theory of punishment the hypo assumes — retributive or utilitarian analysis yields different results
2. **Gross Disproportionality:** Remember this is a "narrow" principle — most sentences survive review
3. **State vs. Federal:** Always check whether state constitutional protections are available — they may provide stronger protection than the Eighth Amendment
4. **The "Quantum" Distinction (Hart):** The justification for punishment (harm prevention) is different from the quantum (moral gravity) — do not conflate them

C. Exam Writing Strategy:

1. **First:** Identify what crimes could be charged under the MPC
 2. **Second:** Analyze how the analysis would differ if the MPC does not apply
 3. **Third:** Apply the Rule of Lenity only if the jurisdiction recognizes it
 4. **Fourth:** For proportionality, state which theory you are applying and why
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CRIMINAL LAW OUTLINE: ACTUS REUS, VOLUNTARINESS, AND OMISSIONS

I. THE VOLUNTARY ACT REQUIREMENT (ACTUS REUS)

A. Fundamental Principle — Criminal Liability Requires a Voluntary Act

1. **Black-Letter Rule:** Criminal liability generally requires an *actus reus* — a voluntary physical act prohibited by law.
2. **Model Penal Code §2.01(1):** A person is not guilty of an offense unless their liability is based on conduct that includes a voluntary act.
3. **Common Law Foundation:** The voluntary act requirement is an unwritten "background principle" of Anglo-American criminal law.

B. The "Thought Crime" Prohibition — *Cogitationis poenam nemo patitur*

1. **Definition:** No one is punishable solely for their thoughts.
2. **Blackstone's Argument (Commentaries):** a. Human courts are "temporal" and cannot "search the heart." b. Intent can only be demonstrated through outward actions. c. Without an act, there is no reliable evidence to punish.
3. **Stephen's Argument (History of the Criminal Law):** a. If the law punished "sinful thoughts," every human being would be a criminal. b. Such a system would be "utterly intolerable" and unmanageable.
4. **Dworkin & Blumenfeld's Argument (Punishments for Intentions):** a. It is extremely difficult to distinguish between fantasizing, wishing, and intending. b. People often change their minds; punishing at the "intention" stage ignores the possibility of opting out. c. Constant surveillance of thoughts would "stultify the emotional life."
5. **Williams' Argument (Criminal Law: The General Part):** a. A "fixed intention" is hard

to prove without behavior. b. Many people have criminal thoughts but are too indecisive to act. c. It is undesirable to punish for a mental state that would likely never result in an actual crime.

6. **Goldstein's Argument (Yale Law Journal):** a. The act requirement ensures an "identifiable occurrence" has happened. b. Once a person acts, we know they were not deterred by the threat of prison. c. Without an act, there is no way to minimize multiple prosecutions for the same wandering thought.
7. **Application to Attempt Law:** Even "attempt" requires moving beyond thought to some physical action (an "overt act").

C. *Martin v. State* — Involuntary Presence in Public

CASE: *Martin v. State*, 31 Ala. App. 334 (1942) **ISSUE:** Can a defendant be convicted of public drunkenness when their presence in a public place was the result of being forcibly moved there by law enforcement? **RULE:** A criminal conviction for public drunkenness requires a voluntary appearance in public; the "appearing" element implies voluntary movement or choice. **HOLDING:** No. The court reversed the conviction, holding that a voluntary appearance in public is a necessary element of the offense. **SIGNIFICANCE:** Established that the state cannot manufacture the *actus reus* by forcibly moving a person into a public place and then charging them for being there.

1. **The Court's Reasoning:** a. Martin was intoxicated within the private confines of his own home. b. Officers arrested him and physically transported him to the road. c. The statute's requirement of "appearing" implies a voluntary movement or choice to be in public. d. The officers' actions cannot be attributed to the defendant as a voluntary criminal act.
2. **Textual Interpretation Issue:** a. The Alabama statute did not explicitly use the word "voluntary." b. The court read this requirement into the word "appear." c. **Hypothetical:** If the statute were re-worded to punish anyone "found" in a public place while drunk, the same moral problem remains.
3. **Testing the Limits of Voluntariness:** a. Martin *did* voluntarily drink and *did* voluntarily use profanity once in public. b. **The Legal Question:** Whether *all* elements of the crime must be voluntary. c. If Martin chose to scream in public, does it matter that he didn't choose to *be* in public?

D. Contemporary Applications of *Martin*

1. **Drugs in Jail — Jurisdictional Split:** a. **California (Low):** Upheld conviction because the defendant had a "clear opportunity" to admit to the drugs before entering the jail. b. **Washington (Eaton):** Reversed conviction, finding that the defendant had no real choice other than to incriminate himself, making the "act" involuntary.
2. **Homelessness and "Status" (*Jones v. City of Boise*):** a. Some argue that laws against sleeping in public punish "conduct" (sleeping). b. **9th Circuit View:** If a person has no access to shelter, sleeping is an "unavoidable consequence of being human." c. Punishing it is seen as punishing "status" rather than a voluntary act.
3. **Forced Return to Jurisdiction (*Macias*):** a. **2nd Circuit:** Applied *Martin* to reverse a conviction for being "found" in the U.S. when the defendant was forcibly returned by Canadian officials in handcuffs.

E. *People v. Newton* — Unconsciousness as a Complete Defense

CASE: *People v. Newton*, 8 Cal. App. 3d 359 (1970) **ISSUE:** Should a trial court provide a jury instruction on the defense of unconsciousness when there is evidence that the defendant acted while in a state of "reflex" or automatism? **RULE:** Unconsciousness is a complete defense to a criminal charge because a person who is unconscious is not capable of committing a voluntary act (*actus reus*). **HOLDING:** Yes. The court reversed the conviction, holding that where evidence of unconsciousness is produced, the trial court must instruct the jury that such a state constitutes a complete defense. **SIGNIFICANCE:** Established that unconsciousness (automatism) negates the voluntary act requirement, not merely the *mens rea*.

1. **Definition of Unconsciousness:** a. Does not necessarily mean a coma or stupor. b. Can exist where the subject physically acts but is not conscious of those acts. c. **Examples:** Somnambulism, fugue states, physical trauma/shock.
2. **Rationale of the Voluntary Act Requirement:** a. **Deterrence:** The law cannot deter movements that a person cannot physically control. b. **Social Condemnation:** Convicting someone for involuntary movements undermines personal security and the legitimacy of the legal system. c. **Correction vs. Therapy:** Involuntary actors are not "criminals" in need of punishment; they are public health or safety problems requiring therapy or custodial commitment.

F. MPC §2.01 — Defining Voluntary vs. Involuntary Acts

1. **MPC §2.01(2) — Involuntary Acts (Listed):** a. Reflexes or convulsions. b. Bodily movements during unconsciousness or sleep (somnambulism). c. Conduct during hypnosis (specific to MPC). d. Any movement that is not a product of the effort or determination of the actor.
2. **MPC §1.13(2) — Definition of "Act":** a. Defines an "act" simply as a "bodily movement whether voluntary or involuntary." b. **Issue:** This raises the question of whether acts committed while intoxicated (like Martin's profanity) are truly "involuntary" if the person lost self-control due to their own prior voluntary drinking.
3. **The "Legal" vs. "Ordinary" Definition:** a. In legal terms, "involuntary" is much narrower than in common speech. b. **Bratty v. Attorney-General:** Clarified that "involuntary" (automatism) means the mind has *no control* over the muscles (spasm, reflex, concussion).
4. **Excluded from Involuntariness:** a. Irresistible impulses ("I couldn't help myself"). b. Forgetfulness (amnesia). c. Unintentional consequences ("I didn't mean to drive dangerously"). d. Involuntary manslaughter (the *result* is unintended, but the *act* of driving was voluntary).

G. Voluntary Acts vs. Blameworthy Acts

1. **Voluntariness is a Floor, Not a Ceiling:** a. A voluntary act is a *necessary* requirement for liability. b. It is not a *sufficient* one.
2. **The "Misfire" Distinction (Prof. J.G. Murphy):** a. **Group A (Accident/Duress/Mistake):** The person acted, but we mitigate or excuse them because they lacked the intent (*mens rea*) or were coerced. b. **Group B (Convulsions/Reflex):** We don't even talk about "excuse" because no human action occurred at all. c. **Analogy:** Comparing an

involuntary actor to a "rock falling on a head."

3. **Legal Consequences of the Label:** a. **Burden of Proof:** The prosecution *must* prove a voluntary act beyond a reasonable doubt as an element of the crime. This burden cannot be shifted to the defendant. b. **Affirmative Defenses:** Legislatures can shift the burden of proving *excuses* (like insanity) to the defendant. c. **Disposition:** An acquittal for lack of a voluntary act leads to *immediate discharge* (freedom). An acquittal by reason of insanity often leads to *civil commitment*.

H. Problematic Categories of Voluntariness

1. **Habitual Acts:** a. **MPC View:** Habits (like reaching for a phone or using "filler" words) are *voluntary*. b. **Rationale:** Even if done without conscious thought, they are still considered a product of the actor's "effort or determination." c. **Distinction:** Reaching for a phone is not a "reflex" (an instinctive physical response to a stimulus like a knee-jerk).
2. **Hypnosis:** a. **MPC §2.01(2)(b):** Specifically lists hypnosis as *involuntary* due to the subject's "dependency and helplessness." b. **Jurisdictional Conflict:** Most states do *not* follow the MPC here because of scientific disagreement over whether a hypnotized person truly loses control.
3. **Somnambulism (Sleepwalking):** a. **The Cogdon Case (Australia):** A mother killed her daughter with an axe while dreaming of spiders/soldiers. b. **Result:** Acquitted. The act was legally "not her act at all." c. **Disposition Problem:** Since it was an *actus reus* failure, she was released entirely. d. **Contemporary Issues:** i. "Sexsomnia": Used as a defense in rape cases (successful in Canada via *R. v. Luedecke*; largely unsuccessful in the U.S.). ii. **Expert Testimony:** Courts are increasingly requiring/expecting expert brain-wave studies to support these defenses (*Liao v. Junious*).
4. **Epilepsy and the "Time-Framing" Debate:** a. **People v. Decina:** An epileptic driver had a seizure and killed four people. b. **The "Prior Voluntary Act":** The court found him liable not because of the seizure, but because he *voluntarily chose to drive* knowing he was subject to seizures. c. **The Time-Framing Conflict:** i. **Mark Kelman:** Argues "time-framing" is arbitrary. Why didn't the court in *Martin* (the drunk guy) use an earlier voluntary act (drinking) to find him liable for being in public? ii. **Michael Moore:** Argues there is no "choice" in time-framing. If there is *any* point where a voluntary act + *mens rea* + causation align, the defendant is liable. In *Martin*, the earlier drinking didn't "proximately cause" the police to drag him into the street.

I. Common Exam Issues / Traps — Voluntary Act

1. **Trap: Confusing "involuntary act" with "lack of intent."** Remember: Involuntary means no bodily movement was produced by the actor's effort or determination. A person who acts intentionally but under duress has still committed a voluntary act.
2. **Trap: The "prior voluntary act" argument on exams.** If a defendant voluntarily drinks and then commits an act while intoxicated, the intoxication does not make the later act involuntary — unless the defendant was in a state of automatism.
3. **Trap: Distinguishing *Martin* from *Decina* on exams.** The key difference is the causal link between the prior voluntary act and the harm. In *Decina*, the choice to drive was the proximate cause of the danger. In *Martin*, the drinking did not proximately cause the police to drag him into the street.

4. **Trap: Disposition consequences.** An acquittal for lack of a voluntary act means immediate release. An acquittal for insanity means civil commitment. This distinction matters for policy arguments on exams.
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II. THE CONCURRENCE REQUIREMENT

A. Core Definition

1. **Simultaneous Requirement:** For a crime to occur, the *Actus Reus* (voluntary act) and the *Mens Rea* (culpable state of mind) must happen at the exact same time.
2. **The "Link" Requirement:** Concurrence acts as the glue connecting three distinct elements: a. **Actus Reus:** The voluntary act or culpable omission. b. **Mens Rea:** The specific state of mind required by the statute. c. **Result:** The actual harm caused (if the statute requires a result, like death in a homicide case).
3. **Preventing "Life-Long" Liability:** Without this requirement, the state could argue a defendant is liable for a crime simply because they voluntarily "got out of bed" or "ate breakfast" on the day of an accident.

B. *State v. 5 Star Feedlot, Inc.* — The Concurrence Check

CASE: *State v. 5 Star Feedlot, Inc.*, 2021 CO 5 (Colo. 2021) **ISSUE:** Can a feedlot be criminally liable for killing fish when the actual discharge of wastewater was caused by a "once-in-a-half-century" rainstorm? **RULE:** Criminal liability requires that the voluntary act and the culpable mental state concur at the time of the act that causes the harm. **HOLDING:** No. The state failed to prove a voluntary act that caused the fish to die. The discharge was an Act of God, not a voluntary act. **SIGNIFICANCE:** The concurrence requirement prevents the state from mashing together a prior lawful act with a later involuntary event to create liability.

1. **The Court's Analysis:** a. **Time One (Operation):** Running the ponds for years was voluntary and lawful, but it wasn't the *act* that killed the fish. b. **Time Two (The Storm):** The actual discharge of wastewater was an *Act of God* (the rainstorm), not a voluntary act performed by the feedlot employees. c. **Conclusion:** Because the discharge wasn't voluntary, the *actus reus* requirement was not met.

C. Comparing *5 Star* to *People v. Decina*

1. **The Comparison Framework:** a. **Decina:** Voluntary Act (Decina starts the car) → Involuntary Event (Seizure) → Harm (Death). b. **5 Star:** Voluntary Act (Feedlot operates ponds) → Involuntary Event (Storm) → Harm (Fish die).
2. **Why the Results Differ — The Concurrence Check:** a. **Culpable Awareness (Mens Rea):** i. In *Decina*, the defendant *knew* he had seizures and chose to drive anyway. He had a culpable state of mind (recklessness/negligence) at the moment he performed the voluntary act of starting the car. ii. In *5 Star*, the feedlot was operating *lawfully* for years. There was no evidence they had a culpable state of mind regarding the fish at the time they were merely "operating the ponds." b. **The Causal Link:** i. In *Decina*, the choice to drive was the proximate cause of the danger. ii. In *5 Star*, the "once-in-a-half-century" storm was an intervening force that broke the link between the lawful operation of the ponds and the death of the fish.

3. Summary Table — Concurrence Analysis:

Case	Voluntary Act (Time 1)	Involuntary Event (Time 2)	Concurrence Met?	Why?
<i>Decina</i>	Choosing to drive	Epileptic Seizure	YES	Defendant knew of the risk at Time 1
<i>5 Star</i>	Operating ponds	50-year rainstorm	NO	No culpable intent at Time 1; storm was an Act of God

D. Common Exam Issues / Traps — Concurrence

1. **Trap: The "time-framing" argument on exams.** Be prepared to argue whether a court should look at the moment of the act or an earlier voluntary act. The key is whether the defendant had *mens rea* at the time of the earlier act.
 2. **Trap: Distinguishing *Decina* from *Martin* on concurrence grounds.** In *Decina*, the defendant had culpable awareness at the time of the voluntary act (starting the car). In *Martin*, the defendant's drinking was not done with awareness that he would be forcibly taken into public.
 3. **Trap: The "Act of God" defense.** If an intervening natural event is truly unforeseeable (a "once-in-a-half-century" storm), it may break the causal chain and negate concurrence.
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III. OMISSIONS — LIABILITY FOR FAILURE TO ACT

A. General Rule — No Liability for Omissions Without a Legal Duty

1. **Black-Letter Rule:** There is no criminal liability for an omission (failure to act) unless there is a *legal duty* to act. A moral obligation is insufficient.
2. **Model Penal Code §2.01(3):** Strictly limits liability for omissions to two scenarios: a. The law defining the offense explicitly makes the omission a crime. b. A duty to perform the omitted act is "otherwise imposed by law" (e.g., parental duty, contracts, etc.).
3. **Key Takeaway:** A moral obligation to help is never enough for criminal liability; it must be a recognized *legal duty*.

B. *Jones v. United States* — The Four Sources of Legal Duty

CASE: *Jones v. United States*, 308 F.2d 307 (D.C. Cir. 1962) **ISSUE:** Can a defendant be held criminally liable for a failure to act if the prosecution does not prove the existence of a specific legal duty to perform that act? **RULE:** Criminal liability for an omission requires proof of a legal duty, which can arise from: (1) statute, (2) status relationship, (3) contract, or (4) voluntary assumption of care. **HOLDING:** No. The court reversed the conviction because the jury was not instructed that a legal duty was a necessary element of the *actus reus*. **SIGNIFICANCE:** Established the four categories of legal duty that must be proven before a defendant can be liable for an omission.

1. **The Four Sources of Legal Duty:** a. **Statute:** Where a statute imposes a duty (e.g.,

filing taxes). b. **Status Relationship:** Certain relationships (e.g., parent to child, spouse to spouse). c. **Contract:** Where one has assumed a contractual duty to care for another. d. **Voluntary Assumption of Care:** Where one voluntarily assumes the care of another and secludes the helpless person so as to prevent others from rendering aid.

2. **Application to Jones:** a. The jury was never told that they must first find that Jones owed a legal duty of care to the infant. b. The evidence was disputed — specifically whether there was a contract for paid childcare or a voluntary assumption of care. c. Without a clear instruction that a legal duty was a necessary element, the conviction could not stand.

C. Omissions and Homicide

1. **Involuntary Manslaughter:** This is the most common charge for omissions (as seen in *Jones*) because the defendant usually lacks a specific "intent to kill," but is criminally negligent.
2. **Murder via Omission:** A failure to act can be elevated to *murder* if specific mental states are present: a. The defendant refuses aid with the *intent* to cause death. b. The defendant has *full knowledge* that the person will die without their aid.
3. **Commonwealth v. Pestinikas (1992):** a. A landmark example where a defendant was convicted of third-degree murder for letting a 92-year-old starve. b. The defendant had contractually agreed to provide food. c. The defendant knew the victim had no other options.

D. Pope v. State — The "Good Samaritan" Limitation

CASE: *Pope v. State*, 284 Md. 309 (1979) **ISSUE:** Does a homeowner/bystander who witnesses a parent abusing a child at the homeowner's residence have a legal duty to intervene? **RULE:** Criminal liability for a failure to act requires a legal duty, which is restricted to a defined class of persons under the child abuse statute. **HOLDING:** No. The court reversed the conviction, holding that Pope had no legal duty to act because she was not a member of the class of persons to whom the law delegated a duty of care. **SIGNIFICANCE:** A mere bystander, even one who witnesses horrific abuse, has no duty to intervene absent a specific legal relationship.

1. **The Court's Analysis:** a. The Maryland child abuse statute restricted the duty to act to a defined class: parents, adoptive parents, or those with "permanent or temporary care, custody, or responsibility for supervision." b. Although the abuse occurred in her home, the child's natural mother was present and maintained actual custody. c. Pope remained a mere *onlooker*. d. While her passivity was "morally as well as socially reprehensible," criminal statutes must be strictly construed.
2. **The "Good Samaritan" Limitation:** a. Absent a specific *status relationship*, *contractual obligation*, or *statutory mandate*, a mere bystander (stranger) has no duty to rescue. b. This is the fundamental difference between Anglo-American law and Continental European law.

E. The Global Divide — Duty to Rescue

1. **Continental European Law:** a. Since the Russian Code of 1845, most European countries make the failure to rescue a criminal offense. b. **Germany (Article 323c):**

Punishes failure to help in cases of accident or "common danger" with up to one year in prison. c. **France (Art. 63(2))**: Added in 1945; carries up to *five years' imprisonment*. Enforced frequently, particularly against motorists who fail to stop at accident scenes.

2. **Anglo-American Law**: a. Remains the "glaring exception." b. The law distinguishes between "active benevolence" (conscience) and "legal duty" (compulsion).

F. Proponents of a Duty to Rescue

1. **Jeremy Bentham (Introduction to the Principles of Morals and Legislation)**: a. **The Argument**: Why shouldn't it be a legal duty to save another from "mischief" if it can be done *without prejudice (harm) to oneself*? b. **Logic**: There is no satisfactory moral or logical answer to justify the law's current silence.
2. **John Stuart Mill (On Liberty / Social Policy)**: a. **The Argument**: A person is "justly accountable" for injury caused by *inaction* just as much as action. b. **Specific Acts**: Society can rightfully compel: saving a fellow creature's life; interposing to protect the defenseless against ill-usage. c. **Logic**: If it is "obviously a man's duty" to do something, he should be legally responsible for not doing it.

G. The Opponent — Lord Macaulay

1. **Lord Macaulay (Notes on the Indian Penal Code)**: a. **The Objection**: Criticized the idea of making "homicide by omission" a general offense. b. **The "Line-Drawing" Problem**: While some omissions are clearly criminal (a jailer starving a prisoner), others are not (a traveler failing to warn someone of a high river). c. **The Difficulty of Definition**: i. How rich must a man be before he is legally required to give alms to a beggar? ii. If it takes 1,000 rupees to save a life, must the man pay? If not, where is the limit? d. **The "Inconvenience" Counter-Argument**: A surgeon who refuses to travel to save a life because he is about to leave for Europe is no "murderer," and the law cannot effectively distinguish his "badness" from a rich man refusing a small coin. e. **Conclusion**: Omissions should only be punishable if they are "*on other grounds, illegal*" (meaning a pre-existing legal duty already exists).

H. Kleinig's Analysis and Assessment

1. **Refuting the "Draftsmanship" Argument**: a. Courts deal with "judgments of reasonableness" every day. b. "Reasonableness" is the "bread and butter" of the law. c. Drafting a statute requiring "reasonable steps" to give aid is entirely possible.
2. **Addressing the Fear of Sacrifice**: a. In countries that *have* Good Samaritan laws, they do not demand "unreasonable sacrifices" of the rescuer.
3. **Challenging "Extreme Individualism"**: a. The core of the opposition is a "hysteria" regarding individual liberty.
4. **The Author's Ultimate View**: a. Sides closer to Mill and Bentham. b. When the pursuit of one's own interest results in a *causal factor in another's harm* (death/injury), there is a strong, justifiable case for *state interference*.

I. Statutory Duties to Rescue in the U.S.

1. **General Rule**: Most U.S. jurisdictions do *not* have a duty to rescue.

2. **The "Good Samaritan" States: a. Minnesota, Rhode Island, and Vermont:** The only states with broad criminal penalties for failing to aid someone in "grave physical harm" or an "emergency." b. **Vermont's Standard (Vt. Stat. Ann. tit. 12, §519):** Requires assistance if it can be done without *danger to self* or *interference with duties to others*. Penalty is a minor \$100 fine.
3. **Limited Duty States (Florida, Hawaii, Wisconsin):** a. A duty to aid exists only if the peril is caused by a *crime*. b. **Florida:** Duty is limited specifically to witnesses of *sexual battery*. c. **Criticism:** The justification for rescue (saving a life) is just as strong in natural disasters or accidents as it is during a crime.
4. **Enforcement:** In all six states, violations are only misdemeanors or petty misdemeanors, and actual prosecutions are extremely rare.

J. Escalating Liability — From Misdemeanor to Manslaughter

1. **The "Omission as Act" Theory:** a. While violating a Good Samaritan statute is usually a misdemeanor, it can serve as the *legal duty* required for a homicide charge.
2. **State v. Martinez (Hawaii, 2003):** a. The defendant failed to get medical help for a child being beaten by his girlfriend. b. Even though the "duty to aid" statute only carried a petty misdemeanor penalty, the court upheld a *reckless manslaughter* conviction (10 years in prison). c. **Logic:** The failure to act (omission) plus a legal duty (the statute) equals an *affirmative act* of killing when the defendant is aware of the danger.

K. The Duty to Report (Misprision of Felony)

1. **Historical Context:** a. "Misprision of felony" (merely failing to report a crime) has been largely abolished or ignored in Anglo-American common law (*Pope v. State*).
2. **Modern Statutory Duties:** a. **Federal Law (18 U.S.C. §4):** Requires *active concealment*; simply staying silent is not enough for a conviction. b. **State Reporting Laws:** Nine states require witnesses to report serious crimes; 19 states require reporting for specific crimes. c. **Mandatory Reporters:** Every jurisdiction requires certain professionals (doctors, clergy, teachers, etc.) to report suspected child abuse.
3. **Arguments Against Mandatory Reporting:** a. **Victim Privacy:** Reporting sexual offenses against the victim's will might violate their autonomy. b. **Fear of Retaliation:** Witnesses in high-crime areas may face physical danger if forced to testify. c. **Autonomy:** The right to remain uninvolved in the state's "police work." d. **Drug Offense Exception:** A general duty to report would unfairly burden those in high-crime neighborhoods, forcing them to choose between being a "snitch" (risking death) or being a criminal.

L. Family Status Relationships

1. **The Status Relationship Rule:** a. A legal duty to aid is well settled where a "certain status relationship" exists between parties.
2. **Recognized Duties:** a. **Parents to Minor Children:** Mandatory duty to aid and protect. b. **Spouses:** Reciprocal duty to aid each other.
3. **Excluded Relationships (Traditionally):** a. No automatic duty is imposed on siblings.

b. No automatic duty is imposed on parents of adult children. c. No automatic duty is imposed on adult children of elderly parents.

4. **Statutory/Case Law Exceptions:** a. **Adult Children with Disabilities:** In Kentucky, statutory law imposes a duty on parents to provide for "wholly dependent" adult children with permanent disabilities (*Bartley v. Commonwealth*). b. **Vulnerable Elderly Parents:** In Missouri, an adult child who *assumes responsibility* for an elderly parent who cannot care for herself has a duty to provide care (*State v. Gargus*).

M. De Facto and Functional Family Members

1. **The Traditional View (*People v. Beardsley*):** a. A man had no legal duty to aid his mistress when she overdosed in his home. b. No formal legal marriage existed. c. **Criticism (Graham Hughes):** Described the *Beardsley* morality as "smug, ignorant and vindictive."
2. **Functional Equivalent Standard:** a. **Stepparents:** In New York, a stepmother was held legally responsible for a child's care because she acted as the "functional equivalent of a parent" (*People v. Carroll*). b. **Adult Co-residents:** In Kentucky, any adult living with a child who assumes "substantial responsibility" for food, shelter, and protection owes a duty (*Staples v. Commonwealth*).
3. **The Conservative Approach (*State v. Miranda*):** a. The Connecticut Supreme Court initially upheld a duty for a live-in boyfriend to protect a child but *overruled* itself later. b. **Plurality Reasoning:** Extending liability case-by-case beyond "clearly established legal categories" would be too amorphous and might discourage people from entering nontraditional family arrangements for fear of criminal liability.
4. **Proposed Reforms (Markel, Collins, & Lieb):** a. Criticize reliance on formal categories. b. Propose a "registry" where roommates or relatives could opt into reciprocal obligations of care.

N. Duty When the Parent is a Victim (Domestic Violence)

1. **The "Calculated to Achieve Success" Standard (*Commonwealth v. Cardwell*):** a. A mother was convicted for failing to protect her daughter from sexual abuse by her husband. b. This was true even though the mother was also a victim of his violence. c. **The Court's Stance:** Taking "any step at all" is not enough; a parent must take steps "reasonably calculated to achieve success," such as reporting to authorities or leaving the home.
2. **Feminist Critique (Dorothy E. Roberts):** a. Courts wrongly presume a woman's maternal obligation always outweighs her own safety. b. Courts ignore the "physical, social, and legal constraints" of battered women.

O. Creation of Peril

1. **The Criminal Act Rule (*Jones v. State*):** a. One who puts another in danger through an "overpowering criminal act" has a legal duty to preserve that person's life.
2. **Blame and Intent (Mens Rea):** a. Imposing a duty here is critical because it allows the law to look at the defendant's *later state of mind*. b. **Example:** If Avery accidentally knocks Jordan into the water, he may only be negligent. However, if he then *chooses* not to help while Jordan drowns, the omission — combined with his knowledge of

certain death — can support a *murder* conviction.

P. Innocent Acts and Tort-Based Duties

1. **Innocent Imperilment Principle (J.C. Smith):** a. Whenever a defendant's act (even if lawful and reasonable at the time) imperils another and the defendant becomes aware of it, they have a duty to take reasonable steps to prevent harm.
2. **The Fire Reporting Case (*Commonwealth v. Levesque*):** a. Defendants who accidentally started a fire but failed to report it were convicted of involuntary manslaughter. b. They were aware of the danger they created.
3. **The Notice and Vagueness Debate:** a. **NJ Supreme Court View (*State v. Lisa*):** Dismissed an indictment against a man who failed to call 911 for his unresponsive girlfriend. b. **Reasoning:** Civil common law principles or "emanations from a scholarly treatise" (like the Restatement of Torts) do not provide *sufficient notice* to justify a criminal charge.

Q. Common Exam Issues / Traps — Omissions

1. **Trap: Confusing moral duty with legal duty.** On exams, always ask: Is there a recognized legal duty under one of the four *Jones* categories? A moral obligation is never enough.
2. **Trap: The "bystander effect" on exams.** Even if a bystander does nothing while witnessing horrific harm, there is no criminal liability unless a legal duty exists. Be prepared to argue this on policy grounds.
3. **Trap: Escalating omission to murder.** If a defendant has a legal duty and *knows* that failing to act will result in death, the omission can support a murder conviction. The key is the defendant's *knowledge* of the consequences.
4. **Trap: The "creation of peril" argument.** If a defendant creates a dangerous situation (even innocently), they may have a duty to act. But the *State v. Lisa* case warns that tort-based duties may not provide sufficient notice for criminal liability.
5. **Trap: The Pope problem.** A homeowner who witnesses abuse may have no duty to act if the child's parent is present and maintaining custody. The duty attaches to the person with "care, custody, or responsibility for supervision

CRIMINAL LAW OUTLINE: WEEK 3

POSSESSION, ACTUS REUS, AND MENS REA

I. POSSESSION AS A BASIS FOR CRIMINAL LIABILITY

A. The Legal Nature of Possession — Two Theories

1. Possession as an Act

- Taking possession of an illegal item constitutes a clear affirmative act

- *Example:* Buying a gun and placing it in one's pocket
- The voluntary acquisition of control satisfies the actus reus requirement

5. Possession as an Omission

- If a person is unaware of an item placed in their belongings by another, liability hinges on whether they failed to act once they became aware
- The duty to terminate possession arises only upon discovery
- *Key Question:* Can liability attach before awareness?

B. The "Awareness" Requirement — General Rule

1. Most courts interpret possession offenses to require that the accused be aware of having the item
2. This requirement applies even if the statute does not explicitly state it
3. **MPC §2.01(4) — Black Letter Rule:**
 - Possession satisfies the actus reus requirement ONLY if: a. The person was aware of their control; AND b. The awareness existed for a long enough period to have been able to terminate possession

C. The Knowledge Conflict — *State v. Bradshaw*

- **CASE:** *State v. Bradshaw* (Washington Supreme Court)
- **ISSUE:** Does "awareness" of an item's presence constitute a necessary element of criminal possession?
- **RULE:** Awareness is NOT a necessary component of the legal concept of possession
- **HOLDING:** The court upheld a conviction for possessing 77 pounds of marijuana hidden in a commercial truck trailer, despite no evidence the driver knew the drugs were there
- **SIGNIFICANCE:** Rejects the majority approach requiring subjective awareness; creates tension with the actus reus requirement

D. Implicit Challenges to the *Bradshaw* Approach

1. The "Act" Problem

- If a driver is passive while drugs are hidden and then found, it is difficult to identify a relevant voluntary "act" triggering criminal liability
- *Exam Trap:* Look for facts where the defendant did nothing to acquire the item

4. The "Omission" Problem

- If liability is based on a failure to get rid of the drugs, the law imposes a duty to act on someone who had no reason to know action was necessary
- *Exam Trap:* Compare with failure-to-rescue cases — a bystander aware of peril can legally ignore it (*Pope*), yet *Bradshaw* convicts for an omission regarding a peril the defendant didn't even know about

7. Comparison to Failure-to-Rescue Doctrine

- General rule: No duty to rescue a stranger in peril
- *Bradshaw* paradox: Conviction for omission regarding unknown peril is MORE punitive than the law's treatment of known peril

E. Possession and "Should Have Known" (Constructive Knowledge)

1. The Suspicion Scenario

- *Question:* Should a driver be liable if they didn't know about drugs but **SHOULD HAVE** suspected something was wrong?
- *Example:* Seeing a suspicious loiterer or a loose cargo flap

4. MPC Application — §2.01

- Conviction would likely be **BARRED**
- The Code requires **ACTUAL** awareness of control, not merely a reason to suspect it

7. Policy Question

- Is a "should have known" standard fair for drug-possession offenses?
 - Consider: High priority placed on drug crimes by federal and state prosecutors
 - *Exam Trap:* Distinguish between "actual knowledge" (subjective) and "constructive knowledge" (objective) — the MPC requires the former
-

II. ACTUS REUS: THE VOLUNTARY ACT REQUIREMENT

A. Definition — Black Letter Rule

1. Criminal liability requires a voluntary act (or omission where a legal duty exists)
2. **MPC §2.01(1):** A person is not guilty of an offense unless their liability is based on conduct that includes a voluntary act or the omission to perform an act of which they are physically capable

B. Act vs. Omission — The Critical Distinction

1. **Affirmative Act:** A bodily movement that is willed by the actor
2. **Omission:** A failure to act when there is a legal duty to do so
3. **Key Principle:** The law generally does not punish omissions absent a special relationship or statutory duty

C. *Barber v. Superior Court* — Medical Context

- **CASE:** *Barber v. Superior Court* (California District Court of Appeal)
- **ISSUE:** Can the removal of life-sustaining treatment (IV hydration and nourishment) by a physician, with family consent, constitute an unlawful killing (murder)?
- **RULE:** A physician's withdrawal of life-sustaining treatment is characterized as an **OMISSION** (failure to provide further treatment), not an affirmative act of killing
- **HOLDING:** The doctors had no duty to provide treatment that was non-beneficial; therefore, their omission was not unlawful, and murder charges were dismissed
- **SIGNIFICANCE:** Establishes that "medical treatment" includes IV hydration and nourishment; no duty to continue ineffective treatment

D. *Barber* — Element Breakdown

1. **Act vs. Omission Analysis** a. Withdrawal of life support = omission (ceasing further treatment) b. Not an affirmative act of killing
2. **Duty to Act Analysis** a. Physician has a legal duty to provide treatment **ONLY** if it is proportionate and provides a benefit b. No duty to continue treatment that has been

proved ineffective in the opinion of attending physicians c. *Application*: Patient in permanent vegetative state with no hope of recovery → treatment deemed non-beneficial → no breach of duty

3. Conclusion

- No breach of duty → omission not "unlawful" → cannot support murder charge
- Cessation of "heroic" life support measures is not an affirmative act

E. Theory of Medical Omission vs. Intervener Act (Lord Goff — *Airedale NHS Trust v. Bland*)

1. Doctor's Role (Omission)

- Discontinuing life support = omission (ceasing further treatment)
- Not unlawful unless it breaches a duty to the patient
- Doctor is simply allowing the patient to die from a pre-existing condition

5. Interloper's Role (Act)

- If a malicious third party "switches off" the machine = active intervention
- They are interfering with life-prolonging treatment being administered by the doctor

8. **Case Relation:** *Airedale NHS Trust v. Bland* — House of Lords held that withholding artificial feeding and antibiotics from a patient with no hope of recovery was a lawful omission because the doctor no longer had a duty to provide non-beneficial treatment

F. Theory of Moral Equivalence in Euthanasia (John Robertson)

1. **The Argument**
 - a. **Result Identity:** From the patient's perspective, the end goal (relief of suffering and death) is identical regardless of whether the cause is active or passive
 - b. **Arbitrariness of Labels:** Labeling "pulling the plug" as passive is inconsistent — it is a literal physical act, much like writing a prescription for lethal drugs
2. **Objections to the Theory**
 - a. **Invasion vs. Choice:** Refusing treatment avoids direct physical intrusion on the patient; active euthanasia involves doing something TO them
 - b. **Protection of Life:** Removing the distinction creates a greater social threat to respect for human life
3. **Case Relation:** *Cruzan v. Director* — Established constitutional right to refuse treatment (letting die); Robertson argues this line is morally vulnerable because "threats to the poor and elderly" exist in both withholding treatment and assisted suicide

G. Common Exam Issues / Traps — Actus Reus

1. **The "No Act" Trap:** If the defendant was unconscious, asleep, or acting under duress, there may be no voluntary act
2. **The "Omission Without Duty" Trap:** A bystander who fails to rescue is generally not liable — look for special relationships (parent-child, doctor-patient, statutory duty)
3. **The Bradshaw Trap:** Be prepared to argue BOTH sides — the majority rule requiring awareness vs. the *Bradshaw* approach allowing conviction without knowledge
4. **The Medical Context Trap:** Distinguish between withdrawing treatment (omission) and administering lethal injection (act) — the legal consequences are dramatically different

III. MENS REA: THE CULPABLE MENTAL STATE

A. Definition — Black Letter Rule

1. **Latin Maxim:** *Actus non facit reum, nisi mens sit rea* — An act alone does not create a crime unless the mind is also guilty
2. **Broad Sense:** Mens rea is synonymous with moral fault or "vicious will" — punishment is inappropriate if the defendant lacked the "choice" to commit a wrong
3. **Narrow Sense:** A technical requirement referring to the specific mental awareness or intention required by a statute (purpose, knowledge, awareness of risk)

B. Theory of Mens Rea — Key Proponents

1. **Blackstone (Historical):** Emphasized the "vicious will" as essential to criminal liability
2. **Justice Robert H. Jackson (Modern Critique):** Criticized the "variety, disparity and confusion" in how courts define the "elusive" mental element (*Morrisette v. United States*)

C. Statutory Applications

1. **Receiving Stolen Goods:** Not criminal unless the person KNOWS the goods are stolen
2. **Manslaughter:** Defined by an act done with AWARENESS of a substantial risk
3. **Unlawful Assembly:** Joining a group is innocent unless there is an INTENT to commit unlawful acts

D. *Regina v. Cunningham* — The Definition of "Malice"

- **CASE:** *Regina v. Cunningham* (Court of Criminal Appeal)
- **ISSUE:** What is the correct legal definition of "malicious" under the Offences Against the Person Act 1861? Does it require "wicked" intent or a specific state of mind regarding risk?
- **RULE:** "Malicious" requires either: (1) actual intention to do the particular kind of harm done; OR (2) recklessness — the accused foreseeing that the particular type of harm might be done and yet going on to take the risk anyway
- **HOLDING:** The trial judge's instruction that "malicious" meant "wicked" was incorrect; conviction quashed because the jury never determined if Cunningham foresaw the risk of the gas leak harming someone
- **SIGNIFICANCE:** Establishes the SUBJECTIVE standard for malice — requires personal foresight of consequences, not general wickedness

E. The "Malice" Debate — Element Breakdown

1. **Ordinary vs. Technical Meaning** a. Everyday speech: Malice = "wickedness" or "evil motive" b. Common law: Narrower, technical definition

2. The "Default" Rule

- Absent clear legislative intent to the contrary, courts presume "malice" means FORESIGHT OF CONSEQUENCES
- Specifically: Awareness that one's actions pose a substantial risk of causing the prohibited harm (*Cunningham* approach)

5. Case Nuance — *U.S. v. Gray*

- While the common-law presumption is "foresight of risk," courts may adopt the

- "evil purpose" definition if the statute's specific structure and history demand it
- *Exam Trap*: Always check the statute's language and legislative history

F. Specific vs. General Intent — High-Frequency Cold-Call Topic

Category	Definition	Key Example
Specific Intent	Doing an act with a SPECIFIED FURTHER PURPOSE or subjective awareness of a specific background fact	Burglary: Breaking and entering WITH THE INTENT to commit a felony inside
General Intent	Requires only a VOLUNTARY ACT; defendant must know the nature of their conduct but doesn't need a further "objective"	Battery: Intentional physical contact, regardless of whether you desired a specific long-term consequence

1. Attendant Circumstances — The Trap

- Bigamy example:
 - General intent: Only need to intend the act of marrying
 - Specific intent: Require actual KNOWLEDGE that you are already legally married

5. The "Mixed Intent" Trap

- Just because a crime is labeled "specific intent" doesn't mean every element requires subjective awareness
- *Example*: A burglar might be reckless about whether it is "nighttime" but still have specific intent regarding the theft

G. Proving Intent — Inferences and Presumptions

1. Circumstantial Evidence

- Because we cannot read minds, mens rea is almost always proven indirectly through a defendant's actions
- *Exam Tip*: Look for facts that support an inference of knowledge or intent

4. Mandatory Presumptions (UNCONSTITUTIONAL)

- Courts CANNOT tell a jury they MUST presume a defendant intended the "natural and probable consequences" of their acts
- *Francis v. Franklin*: This unconstitutionally shifts the burden of proof away from the prosecution

7. Permissive Inferences (CONSTITUTIONAL)

- Courts CAN tell a jury they are ALLOWED to infer intent if it is "more likely than not"
- *Example*: If you possess recently stolen property, a jury MAY infer you knew it was stolen

H. Negligence — Objective Fault Standard

1. Definition

- Negligence replaces "what the defendant thought" with "what a reasonable person SHOULD have known"
- Objective standard — no awareness required

4. Ordinary (Civil) Negligence

- Simple carelessness; failure to act as a reasonably prudent person
- **Applied in *State v. Hazelwood*:** Alaska Supreme Court allowed this lower standard for an oil spill, arguing that the threat of jail for ordinary negligence "causes the offender to pay attention"

7. Criminal (Gross) Negligence

- A "gross deviation" from the reasonable standard of care
- **Applied in *Santillanes v. State*:** New Mexico Supreme Court required this higher standard for child abuse because "moral condemnation" should only attach to conduct that is truly culpable

I. Summary Table — Homicide Context

Mental State	Standard	Awareness Required?
Purpose	Subjective	Yes — conscious
Knowledge	Subjective	Yes — aware of high probability
Recklessness	Subjective	Yes — consciously disregards substantial risk
Criminal Negligence	Objective	No — gross deviation from reasonable care
Ordinary Negligence	Objective	No — simple carelessness

J. Common Exam Issues / Traps — Mens Rea

1. **The *Cunningham* Trap:** Do NOT equate "malice" with "wickedness" — always apply the subjective foresight standard unless the statute clearly requires otherwise
2. **The Specific/General Intent Trap:** Be precise — identify WHICH element requires specific intent and WHICH requires only general intent
3. **The Presumption Trap:** Distinguish between mandatory presumptions (unconstitutional) and permissive inferences (constitutional)
4. **The Negligence Trap:** Remember that negligence is OBJECTIVE — the defendant's actual awareness is irrelevant; the question is what a reasonable person would have known
5. **The MPC vs. Common Law Trap:** The MPC's hierarchy (purpose, knowledge, recklessness, negligence) may differ from common law categories — always identify which framework applies

END OF WEEK 3 OUTLINE

Professor's Note: Pay special attention to the act/omission distinction in medical contexts and the subjective/objective divide in mens rea. These are high-frequency exam topics that require precise application of the rules.

CRIMINAL LAW OUTLINE: WEEK 4 — MENS

REA, CULPABILITY, AND MISTAKE

I. MENS REA IN SILENT STATUTES: THE *ELONIS* FRAMEWORK

A. The General Rule — Conscious Wrongdoing Required

1. Every crime requires a guilty mind (*mens rea*) as a necessary element.
2. Courts will read a *scienter* (knowledge) requirement into a statute even when the statute is silent.
3. "Wrongdoing must be conscious to be criminal." — Chief Justice Roberts, *Elonis v. United States*

B. The Statute at Issue — 18 U.S.C. § 875(c)

1. Makes it a federal crime to transmit "any communication containing any threat... to injure the person of another."
2. The statute is **silent** on the required mental state.
3. The trial court instructed the jury that a **reasonable person** (negligence) standard was sufficient.

C. The Supreme Court's Holding — Negligence Insufficient

1. The "reasonable person" standard belongs in torts, not criminal law.
2. A defendant must be "blameworthy in mind" to be jailed for a felony.
3. The government must prove the defendant **intended** the communication to be a threat OR **knew** it would be viewed as a threat.
4. The Court expressly **declined to decide** whether recklessness would suffice.

D. Common Exam Issues / Traps

1. **The "Punt" on Recklessness:** When you see a silent statute on an exam, *Elonis* tells you negligence is NOT enough, but the Court left open whether recklessness or knowledge is required.
2. **Statutory Silence ≠ No Mens Rea:** Never assume a statute without a mental state word is strict liability.
3. **Severity of Punishment Factor:** The harsher the potential sentence, the more likely a court requires a higher mens rea (knowledge over recklessness).

CASE: *Elonis v. United States*, 575 U.S. 723 (2015)

- **ISSUE:** In a federal criminal statute silent as to mens rea, is proof of negligence (reasonable person standard) sufficient for conviction?
 - **RULE:** Courts will read a scienter requirement into silent statutes; negligence is insufficient for criminal liability.
 - **HOLDING:** Reversed. The government must prove the defendant intended the communication as a threat or knew it would be viewed as a threat.
 - **SIGNIFICANCE:** Establishes that negligence is the floor for torts, not crimes; leaves open whether recklessness satisfies the mens rea requirement for threat statutes.
-

II. THE MODEL PENAL CODE (MPC) CULPABILITY FRAMEWORK

A. The Four Levels of Culpability — MPC § 2.02

1. Purposely (§ 2.02(2)(a))

- It is the defendant's **conscious object** to engage in the conduct or cause the result.
- The defendant acts with the specific aim of bringing about the prohibited outcome.

4. Knowingly (§ 2.02(2)(b))

- The defendant is **practically certain** the result will occur.
- The defendant does not need to desire the result, only to know it is virtually inevitable.

7. Recklessly (§ 2.02(2)(c))

- The defendant **consciously disregards** a "substantial and unjustifiable risk."
- The risk must be a **gross deviation** from what a law-abiding person would do.
- **Subjective awareness** is required — the defendant must actually know the risk exists.

11. Negligently (§ 2.02(2)(d))

- The defendant **should have been aware** of a substantial and unjustifiable risk, but was not.
- The fault lies in the **failure to perceive** what a reasonable person would have seen.
- This is a "gross deviation" from the reasonable person standard.

B. The Default Rules — MPC § 2.02(3)-(4)

1. The Recklessness Floor (§ 2.02(3))

- If a statute is **totally silent** on mens rea, the MPC requires at least **recklessness** for conviction.
- Negligence is excluded as a basis for criminal liability unless the legislature specifically writes it into the law.

4. The "Travel Down" Rule (§ 2.02(4))

- If a statute mentions one mental state (e.g., "knowingly"), that requirement applies to **every material element** of the crime.
- Exception: The statute clearly states otherwise.

C. Common Exam Issues / Traps

1. **The "Silent Statute" Analysis:** Step 1 — Identify material elements (conduct, circumstances, result). Step 2 — Find mens rea words in the statute. Step 3 — If a word is missing for an element, apply MPC § 2.02(3) to "read in" recklessness.
2. **Purpose vs. Knowledge Distinction:** For most crimes, this distinction doesn't matter.

BUT for specific intent crimes (Attempt, Complicity, Conspiracy), the MPC often requires true **purpose**.

3. **Purpose vs. Motive:** Purpose is the desire to bring about a specific legal result. Motive is the remoter reason why. Purpose is an element of the crime; motive is usually irrelevant to guilt but relevant to sentencing.
-

III. WILLFUL BLINDNESS (THE "OSTRICH" DOCTRINE)

A. The Doctrine Defined

1. A theory that bridges the gap between **recklessness** and **knowledge**.
2. The law treats someone who "shuts their eyes" to the truth the same as someone who actually knows the truth.
3. **The "Equal Culpability" Thesis:** Someone who deliberately avoids learning the truth is just as blameworthy as someone with positive knowledge.

B. The Elements — *United States v. Jewell* Standard

1. The defendant must **subjectively believe** there is a **high probability** a fact exists.
2. The defendant must take **deliberate actions to avoid** learning that fact.
3. The defendant's ignorance must be the result of a "**conscious purpose to avoid learning the truth.**"

C. The MPC Standard — § 2.02(7)

1. Knowledge is established if a person is aware of a **high probability** of a fact's existence.
2. **Exception:** Knowledge is NOT established if the person **actually believes** the fact does not exist.
3. This is a **subjective belief defense** — even if everyone else thinks it's 99% likely, if the defendant actually believes there are no drugs, they aren't "knowing."

D. The Federal Standard — *Global-Tech Appliances, Inc. v. SEB S.A.* (2011)

1. Requires "**high probability**" of the fact's existence.
2. Requires **deliberate actions** to avoid learning the truth.
3. Can still convict even if the defendant has a **slight doubt**.

E. The Recklessness vs. Knowledge Debate

1. **The Problem:** *Elonis* struck down negligence but didn't specify whether recklessness or knowledge should replace it.
2. **Justice Alito's Position:** Argues for a "one-size-fits-all" default of **recklessness** when a statute is silent.
3. **Factors for Guidance:**
 - **Severity of Punishment:** The harsher the potential sentence, the more likely a court requires knowledge.
 - **Analogous Crimes:** If "malice" in other statutes is satisfied by recklessness (as in *Cunningham*), that's a strong argument for recklessness here.
 - **Common Law vs. MPC:** Common Law is inconsistent; the MPC tries to fix this with rigid default rules.

F. Criticisms of Willful Blindness

1. Justice Kennedy's Dissent (in *Jewell* and *Global-Tech*):

- Argues that "willful blindness is not knowledge."
- Fears juries will convict people for being merely "reckless" or "stupid" instead of truly "knowing."
- Argues the instruction was too broad — it allowed conviction for "avoiding the truth" without requiring a **high probability** of drugs.

5. The "Duty to Investigate" Critique:

- Critics argue this forces citizens to become private detectives.
- If you borrow a car, are you legally required to rip the door panels off to check for drugs?

8. The "Conscription" Critique (Judge Kleinfeld, dissenting in *Heredia*):

- Warns that this turns citizens into "investigators."
- Asks: "Should we be required to rummage through our mother's suitcase just in case?"

G. Deliberate Avoidance — Acts vs. Omissions

1. **The "Active" Requirement (*Global-Tech*):** The defendant must usually **do something** (or fail to do something obvious) to avoid the truth.
2. **The "Ostrich" Metaphor (*U.S. v. Giovannetti*):** Real ostriches don't just "fail to follow through"; they **bury their heads**.
3. **The *Janis* Example:** A landlord who didn't check if his tenants were gambling wasn't "blind" — he was just "not curious." Without "active avoidance," he couldn't be convicted of knowing.
4. **Current Tension (*U.S. v. Fisch*):** Some courts have allowed convictions even when the defendant simply "didn't ask a lot of questions."

H. The Motive Requirement

1. **Why stay blind?** In *U.S. v. Heredia*, the court debated if the defendant's motive for staying blind must be to "get a legal defense."
2. **Exigent Circumstances:** If you don't investigate because it's **unsafe** (e.g., pulling over on a dangerous highway), your avoidance isn't "deliberate."

I. Contrived Ignorance vs. Probability — Luban's Distinction

1. Willful ignorance is about **pre-incident steps** (avoiding the truth).
2. The MPC is about the **state of mind at the moment** of the crime.
3. **The 3 Couriers Example:** If a boss says "don't look in the bag," it's willful blindness. But if the boss says "2 out of 3 bags are empty," a courier who doesn't look only has a **1/3 probability** of guilt. Under the MPC, that courier is NOT "knowing" because 1/3 is not a "high probability."

J. Common Exam Issues / Traps

1. **The Formula:** Willful Blindness = Awareness of High Probability + Deliberate Avoidance.
2. **The "High Probability" Floor:** You can't be willfully blind to something that is merely

a "slight risk." That would be **recklessness**. To get to **knowledge**, the risk must be a "high probability."

3. **The Subjective Belief Defense:** Even if everyone else thinks it's 99% likely there are drugs in the car, if the defendant **actually believes** there are none, they aren't "knowing" under the MPC standard.
 4. **Exam Strategy:** If your fact pattern has a defendant who says "I suspected it, but I didn't want to know for sure," follow this path:
 - Identify the Standard: MPC or Federal (*Global-Tech*)?
 - Probability: Was it a "High Probability" or just a "Substantial Risk"?
 - Action: Did they take an **active step** to stay blind (like the *Jewell* secret compartment), or were they just **lazy/incurious** (like the *Giovannetti* landlord)?
-

CASE: *United States v. Jewell*, 532 F.2d 697 (9th Cir. 1976)

- **ISSUE:** Can the statutory requirement of "knowledge" be satisfied by proof that the defendant was aware of a high probability of a fact's existence but deliberately avoided learning the truth?
 - **RULE:** Under the "Willful Blindness" doctrine, knowledge is established if: (1) the person is aware of a high probability of the fact's existence; AND (2) the person fails to investigate because they want to remain ignorant to avoid legal liability.
 - **HOLDING:** Affirmed. "Knowingly" in criminal statutes encompasses "willful blindness." A defendant cannot escape liability by purposefully remaining ignorant.
 - **SIGNIFICANCE:** Establishes the "ostrich instruction" as a valid theory for proving knowledge; creates the bridge between recklessness and knowledge.
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IV. MISTAKE OF FACT AND THE "MORAL WRONG" THEORY

A. The Traditional Common Law Rule

1. A mistake of fact is a defense if it **negates the mental state** required for the crime.
2. The mistake must be **honest and reasonable** to be a defense.
3. Unreasonable mistakes are generally not a defense.

B. The *Regina v. Prince* "Moral Wrong" Doctrine

1. **The Theory (Baron Bramwell):** If a defendant is already doing something "morally wrong," they act "**at their own peril**."
2. A mistake of fact is **not a defense** if the facts as the defendant believed them to be still constitute a **moral wrong**.
3. The defendant's reasonable mistake doesn't save them because the underlying act was already immoral.

C. The Dissenting View (Justice Brett)

1. A mistake of fact **is** a defense if the facts, as the defendant **reasonably believed** them to be, would make the defendant's conduct **entirely legal**.
2. You cannot have a "guilty mind" (*mens rea*) if you think you are doing something legal.
3. This violates the principle that criminal intent requires awareness of wrongdoing.

D. Criticisms of the Moral Wrong Doctrine

1. **Graham Hughes:** Argues this is dangerous — it lets juries punish people based on "community ethics" rather than the actual law.
2. **Violates Mens Rea Principle:** If a man's mistake was reasonable, he didn't have a "guilty mind" regarding the specific element of the crime.
3. **Overbreadth:** Allows conviction for conduct that the legislature never intended to criminalize.

E. The MPC Approach — § 2.04

1. A mistake of fact **is** a defense if it **negates the mental state** required for the crime.
2. The MPC **rejects** the *Prince* "Moral Wrong" doctrine.
3. The focus is on whether the mistake negates the specific mental state for the element in question.

F. Common Exam Issues / Traps

1. **The "At Your Peril" Rule:** This case is often cited to explain why mistakes of fact don't work as a defense in **Statutory Rape** cases today. If you engage in a "risky" or "immoral" act, the law often says you act "at your peril" regarding the victim's age.
2. **Statutory Interpretation:** Notice how the court "read into" the statute. The statute didn't say "knowingly." The court had to decide if "knowingly" was implied.
3. **The MPC Contrast:** Remember, the **Model Penal Code** hates this case! Under MPC § 2.04, a mistake of fact **is** a defense if it negates the mental state required for the crime.
4. **Exam Strategy:** When analyzing a mistake of fact issue:
 - Identify the Element: Is the issue a "result" (a death), a "conduct" (driving), or a "circumstance" (the age of a victim)?
 - Apply the Mental State: Use the MPC hierarchy. If the statute is silent, argue **Recklessness** (MPC § 2.02(3)).
 - Watch for "Ostriching": If a defendant says "I didn't know for sure, but I didn't ask questions," hit them with the **Willful Blindness** analysis from *Global-Tech*.
 - Moral Wrong Check: If the defendant made a mistake of fact, check if they were doing something "legally or morally grey." If so, the *Prince* "Moral Wrong" doctrine might block their defense.

CASE: *Regina v. Prince*, L.R. 2 Cr. Cas. Res. 154 (1875)

- **ISSUE:** Can a defendant be convicted of a crime even if they made a reasonable mistake of fact regarding a critical element of the offense (the girl's age), provided the underlying conduct was "wrong in itself"?
 - **RULE:** The Moral Wrong Doctrine — If a defendant intends to commit an act that is "wrong in itself," they act at their own risk. A mistake of fact is not a defense if the facts as the defendant believed them to be still constitute a moral wrong.
 - **HOLDING:** Conviction affirmed. Prince took the risk when he engaged in morally questionable behavior, and the mistake of fact regarding the girl's age did not excuse him.
 - **SIGNIFICANCE:** Establishes the "at your peril" rule for morally wrong conduct; creates tension between moral blame and legal mens rea requirements.
-

V. ACOUSTIC SEPARATION THEORY

A. The Architect — Professor Meir Dan-Cohen

1. Source: *Decision Rules and Conduct Rules: On Acoustic Separation in Criminal Law*, 97 Harv. L. Rev. 625 (1984).

B. The Concept

1. Law speaks to **two different audiences**:
 - **Conduct Rules (The Public)**: Broad moral guidelines (e.g., "Don't take young girls away from their parents").
 - **Decision Rules (The Judges/Officials)**: Precise technical limits (e.g., "Only convict if the girl is under 16").

C. What It Means for Criminal Law

1. Explains why the law might seem "unfair" in a specific case.
2. The "16-year-old" limit isn't there because being 16 makes the act "okay."
3. The limit exists to **keep judges from having too much power** — it constrains judicial discretion.

D. Common Exam Issues / Traps

1. **Application to *Prince***: The conduct rule says "don't take young girls from their parents." The decision rule says "convict only if under 16." Prince violated the conduct rule but arguably complied with the decision rule (he believed she was 18). The court prioritized the conduct rule over the decision rule.
2. **Policy Rationale**: Acoustic separation explains why legislatures sometimes write broad statutes but expect judges to apply them narrowly — it maintains the deterrent effect of the broad rule while limiting punishment to clear cases.

VI. FEDERAL vs. MPC STANDARDS — COMPARISON CHART

Feature	<i>Global-Tech</i> (Federal Standard)	MPC § 2.02(7)
Probability	Requires "High Probability"	Requires "High Probability"
Action	Must take deliberate actions to avoid learning	Focuses on state of mind (awareness of probability)
Belief	Can still be convicted even if you have a slight doubt	Cannot be convicted if you "actually believe" the fact is false
Default Mens Rea	<i>Elonis</i> leaves open (recklessness or knowledge)	Recklessness is the floor (§ 2.02(3))
Mistake of Fact	<i>Prince</i> "Moral Wrong" may apply	Mistake is a defense if it negates the mental state (§ 2.04)

VII. EXAM STRATEGY — THE COMPLETE ANALYSIS FRAMEWORK

A. Step 1: Identify the Statute's Elements

1. **Conduct** — What did the defendant do?
2. **Circumstances** — What were the surrounding facts?
3. **Result** — What happened as a consequence?

B. Step 2: Find the Mens Rea Words

1. Look for words like "knowingly," "intentionally," "purposely," "recklessly," "negligently," "willfully," "maliciously."
2. If the statute is **silent** on a particular element:
 - **Common Law:** Argue based on *Elonis* — negligence is insufficient; recklessness or knowledge may be required.
 - **MPC:** Apply § 2.02(3) — recklessness is the default floor.

C. Step 3: Analyze the Defendant's Actual Mental State

1. **Purpose:** Did the defendant consciously desire the result?
2. **Knowledge:** Was the defendant practically certain the result would occur?
3. **Recklessness:** Did the defendant consciously disregard a substantial and unjustifiable risk?
4. **Negligence:** Should the defendant have been aware of the risk?

D. Step 4: Check for Willful Blindness

1. Did the defendant suspect a **high probability** of the fact?
2. Did the defendant take **deliberate actions** to avoid learning the truth?
3. Does the defendant **actually believe** the fact is false? (MPC only)

E. Step 5: Check for Mistake of Fact

1. Was the mistake **honest and reasonable**?
2. Does the mistake **negate the mental state** required for the crime?
3. Was the defendant engaged in **morally wrong** conduct? (If yes, *Prince* may apply.)

F. Step 6: Apply the Appropriate Standard

1. **Federal (*Global-Tech*):** High probability + deliberate avoidance + no requirement of actual belief.
2. **MPC (§ 2.02):** High probability + awareness + exception for actual belief that fact is false.

VIII. KEY POLICY RATIONALES

A. Why Mens Rea Matters

1. **Retributive Justice:** Punishment is only deserved when the defendant is "blameworthy in mind."
2. **Deterrence:** People can only be deterred from conduct they know is wrong.
3. **Proportionality:** The severity of punishment should match the level of culpability.

B. Why Willful Blindness is Treated as Knowledge

1. **Equal Culpability:** Someone who deliberately avoids the truth is just as blameworthy as someone who knows.

2. **Enforcement Necessity:** If the law required absolute certainty, criminals would simply hire couriers who "don't ask questions."
3. **Common Language:** In ordinary usage, "knowing" includes being aware that something is highly likely.

C. Why the MPC Rejects the *Prince* Doctrine

1. **Clarity:** The MPC prefers clear, predictable rules over moral judgments.
2. **Mens Rea Integrity:** A mistake that negates the mental state should be a defense, regardless of the morality of the underlying conduct.
3. **Legislative Intent:** The focus should be on what the legislature intended to criminalize, not what a jury thinks is "morally wrong."

IX. COMMON EXAM TRAPS — QUICK REFERENCE

Trap	The Issue	The Solution
Silent Statute	No mens rea word in the statute	Argue recklessness (MPC § 2.02(3)) or knowledge (<i>Elonis</i>)
"I didn't know for sure"	Defendant claims ignorance	Apply willful blindness analysis
"I thought it was legal"	Mistake of law	Generally not a defense (except specific intent crimes)
"I made a reasonable mistake"	Mistake of fact	Check if it negates the mental state; check for <i>Prince</i> "moral wrong"
"I didn't mean to do it"	Lack of purpose	Knowledge or recklessness may still suffice
"I only suspected"	Recklessness vs. knowledge	Was it a "high probability" or just a "substantial risk"?
"I didn't ask questions"	Passive ignorance	Was there "deliberate avoidance" or just "lack of curiosity"?

PROFESSOR'S FINAL EXAM TIP:

When you see a statute on an exam that doesn't list a mens rea, your first instinct should be: **"Under *Elonis*, mere negligence is not enough."** You then move to the **MPC default rule § 2.02(3)**, which suggests **Recklessness** is the "floor" for criminal liability when a statute is silent. Remember: the Supreme Court in *Elonis* "punted" on whether recklessness would suffice — so on an exam, you must argue both sides: (1) why recklessness might be enough, and (2) why knowledge might be required, depending on the severity of the punishment and the nature of the crime.

CRIMINAL LAW LEARNING HANDBOOK

MISTAKE, STRICT LIABILITY, AND SEXUAL OFFENSES

I. MISTAKE OF FACT: THE MORAL-WRONG PRINCIPLE

A. The Traditional Rule (Regina v. Prince, 1875)

1. **Definition:** A mistake of fact is NOT a defense if the defendant's intended conduct would still be "wrong" (morally or legally) even if the facts were as the defendant believed them to be.
2. **Elements:** a. Defendant must have made an honest mistake regarding a factual circumstance b. The mistake must relate to an element of the offense c. The intended conduct (if facts were as believed) must constitute a "wrongful act"
3. **Application in Prince:** a. Prince reasonably believed the girl was 18 (she was under 16) b. His intended conduct (taking an unmarried girl from her father's possession) was still wrongful c. Court held: "If you intend to commit a wrongful act, you take the risk that circumstances are more serious than you realize"
4. **Scope of Application:** a. Extends beyond sexual offenses to burglary, assaulting a police officer b. Any situation where defendant intends wrongful conduct but is mistaken about aggravating circumstances

B. The "Community Ethic" Rationale (Peter Brett)

1. **Proponent's Argument:** a. Criminal law reflects community standards b. Defendant only gets mistake defense if acting in accordance with community's moral code c. Those who deviate from community standards assume the risk
2. **Critiques:** a. **Subjectivity:** No single "community ethic" exists; values diverge b. **Legality:** Gives juries discretion to punish non-criminal conduct (e.g., punishing fornication by denying mistake defense on age) c. **Bootstrapping:** "Moral wrong" should not satisfy mens rea for a "legal crime"

C. The "Acoustic Separation" Approach (Professor Dan-Cohen)

1. **Two Categories of Rules:** a. **Conduct Rules (Public):** Broad moral guides ("Don't take young girls from parents") b. **Decision Rules (Officials):** Precise legal lines ("Only convict if girl is under 16")
2. **Tension with Legality Principle:** a. Challenges nulla poena (fair warning) b. Public only sees moral rule, not specific legal lines c. Creates potential for unfair surprise

D. The "Lesser-Crime" Principle

1. **Definition:** Liability triggered because defendant intended a DIFFERENT, lesser crime (not because conduct was immoral)
2. **Limitation (Cunningham, Faulkner):** a. If intended act was a completely different type of crime, lesser-crime principle does NOT apply b. Example: Stealing a horse $\neq$ kidnapping a girl
3. **Critiques:** a. **Proportionality:** Unfair to punish for "Major Crime" when only had intent for "Minor Crime" b. **Prosecutorial Power:** Gives state discretion to seek higher sentences for same mental fault

II. THE MODEL PENAL CODE APPROACH (§2.04)

A. Subjective Culpability Framework

1. **General Rule:** Mistake IS a defense if it negates the specific mens rea (purpose, knowledge, recklessness) required by the statute
2. **Rejection of Moral-Wrong Theory:** a. MPC focuses on statutory elements, not community morality b. Mistake treated as evidence negating mens rea, not separate "excuse"
3. **Rejection of "Reasonableness" Requirement:** a. If crime requires purpose or knowledge, even unreasonable (honest) mistake negates intent b. Illogical to require reasonable mistake when mental state is subjective

B. The Grading Solution (§2.04(2))

1. **The Dilemma:** a. Defendant makes mistake but would still commit crime if facts were as believed b. Example: Thinking you're stealing \$500 watch when it's actually \$5,000 watch
2. **The "Legal Fiction":** a. Defendant denied defense but punished at level of lesser offense they THOUGHT they were committing b. Liability measured by subjective culpability, not actual consequences
3. **Example Application:** a. Breaking into warehouse (lesser) but actually entering house (greater) b. Punished at warehouse crime level, not house crime level

C. Requirement of Risk Awareness (§2.02(3))

1. Unless specified, prosecution must prove defendant was at least reckless regarding facts making conduct criminal
 2. **Common Exam Trap:** Always check if statute specifies mens rea; if silent, MPC defaults to recklessness
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III. CURRENT LAW: THE LESSER-CRIME DEFAULT

A. Modern Persistence of Prince Logic

1. Many states still follow Prince in cases involving: a. Drugs b. Minors c. School zones
2. **Elonis Standard:** a. Courts only read in mens rea sufficient to separate "wrongful" from "innocent" conduct b. Once person knows they're doing something "wrong," strict liability often applies to specific details

B. Inconsistent Federal Rules

1. **Flores-Figueroa:** Required proof defendant KNEW ID belonged to real person (rejected strict liability for aggravating factor)
2. **Dean:** Upheld strict liability for firearm discharging during crime, even if accidental (accepted strict liability for aggravating factor)

C. Drug Crimes and Proportionality

1. **The "Courier" Problem (United States v. Collazzo):** a. Knowing you possess ANY

drug triggers mandatory minimums based on ACTUAL drug and quantity b. Even if courier mistaken about what was in bag

2. **9th Circuit Split:** a. **Majority View:** Once trafficking controlled substance, you take "risk" of whatever substance actually is (strict liability for quantity/type) b. **Dissenting View:** Failing to require mens rea for drug type violates proportionality principle
 3. **Prosecutorial Power Concern:** a. Current doctrines give prosecutors power to dictate life sentences b. Defendants may only have "fault" of much lower-level offender
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IV. KEY CASES: MISTAKE OF FACT IN SEXUAL OFFENSES

A. People v. Olsen (California Supreme Court)

- **CASE:** People v. Olsen
- **ISSUE:** Does a defendant's reasonable and honest mistake of fact regarding victim's age provide a defense to lewd conduct with a child under 14 (Penal Code § 288)?
- **RULE:** A reasonable mistake of age is NOT a defense when the intended conduct would still be illegal even if facts were as believed (lesser-wrong principle)
- **HOLDING:** No. Conviction affirmed. State's interest in protecting young children outweighs traditional mens rea requirement
- **SIGNIFICANCE:** Establishes bright line at age 14; risk of mistake falls on adult participant, not child

B. B (a Minor) v. Director of Public Prosecutions (House of Lords, 2000)

- **CASE:** B v. DPP
- **ISSUE:** Is there a presumption that mens rea (regarding victim's age) is essential element of statutory sexual offense when statute is silent?
- **RULE:** (1) Common law presumption favors mens rea for every element unless Parliament expressly excludes it; (2) Modern English law prefers "honest belief" over "reasonable belief"; (3) More serious offense = stronger presumption of mens rea
- **HOLDING:** Yes. Appeal allowed. Prosecution must prove absence of genuine belief victim was 14 or older
- **SIGNIFICANCE:** Repudiates Prince reasoning; defendants should be judged on facts as they believed them to be

C. Garnett v. State (Maryland Court of Appeals, 1993)

- **CASE:** Garnett v. State
- **ISSUE:** Does Maryland's second-degree rape statute allow for "reasonable mistake of age" defense?
- **RULE:** (1) Statutory rape traditionally strict liability; (2) Courts defer to legislative intent; (3) If legislature doesn't include mens rea, courts generally won't "read in" defense
- **HOLDING:** No. Conviction affirmed. Second-degree rape of child under 14 is strict liability offense
- **SIGNIFICANCE:** Extraordinary cases (defendant with IQ of 52) should be handled through sentencing discretion, not acquittal

D. Common Exam Issues / Traps

1. **Jurisdictional Split:** Two-thirds of states deny mistake-of-age defense entirely; one-third allow it (usually only if victim over 14 and mistake reasonable)

2. **Constitutional Status:** Only Alaska (State v. Guest) has found strict liability in statutory rape unconstitutional
 3. **The "Scarlet Letter" Effect:** Conviction triggers mandatory sex offender registration even for "morally innocent" defendants
 4. **MPC 2021 Revision:** ALI now proposes subjective mens rea (recklessness) for statutory rape; opposes registration unless victim under 12 or incest involved
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V. PURE STRICT LIABILITY: PUBLIC WELFARE OFFENSES

A. Definition and Scope

1. **Distinction from Lesser-Crime Cases:** a. Defendants had NO reason to know they were doing anything wrong b. No moral or legal fault whatsoever
2. **Key Characteristics:** a. Regulatory/administrative in nature b. Typically carry light penalties c. Focus on public safety, not moral turpitude

B. United States v. Balint (1922)

- **CASE:** United States v. Balint
- **ISSUE:** Is knowledge (scienter) required for selling prohibited drugs without required tax form?
- **RULE:** Knowledge is NOT required for public welfare offenses; "social betterment" outweighs "possible injustice" to individual
- **HOLDING:** Conviction affirmed. Seller acts "at his peril"
- **SIGNIFICANCE:** Establishes strict liability for dangerous/regulated substances

C. United States v. Dotterweich (1943)

- **CASE:** United States v. Dotterweich
- **ISSUE:** Does strict liability apply to corporate officers for mislabeled drugs shipped by manufacturer?
- **RULE:** Strict liability applies to "responsible" corporate officers in public welfare context
- **HOLDING:** Conviction affirmed. Public is "wholly helpless" to protect themselves; burden on person in "responsible relation" to danger
- **SIGNIFICANCE:** Extends strict liability to corporate officers for employee conduct

D. Common Exam Issues / Traps

1. **The "Innocent Conduct" Problem:** Strict liability only appropriate when conduct is not "apparently innocent"
 2. **Penalty Severity:** Higher penalties = stronger presumption against strict liability
 3. **Dangerousness Exception:** Inherently dangerous items (grenades, narcotics) more likely to trigger strict liability
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VI. THE MORISSETTE-STAPLES PRESUMPTION

A. Morissette v. United States (1952)

- **CASE:** Morissette v. United States
- **ISSUE:** Does federal statute that borrows common-law crime but remains silent on intent eliminate mens rea?
- **RULE:** (1) Presumption of mens rea for traditional common-law crimes (mala in se); (2) Strict liability reserved for regulatory offenses (mala prohibita) that are new, involve neglect/inaction, and carry light penalties
- **HOLDING:** Reversed. "Knowingly converting" requires proof defendant knew facts making taking wrongful
- **SIGNIFICANCE:** "Evil-meaning mind" must concur with "evil-doing hand" for traditional crimes

B. Staples v. United States (1994)

- **CASE:** Staples v. United States
- **ISSUE:** Does National Firearms Act require government to prove defendant knew weapon's specific characteristics making it a "firearm"?
- **RULE:** (1) Presumption of mens rea for felony offenses; (2) Strict liability only for statutes regulating "dangerous or deleterious devices" with small penalties; (3) If item not inherently dangerous (guns vs. grenades), mens rea required
- **HOLDING:** Reversed. Government must prove defendant knew weapon was capable of automatic fire
- **SIGNIFICANCE:** Long tradition of lawful gun ownership means possession is "apparently innocent" conduct

C. Common Exam Issues / Traps

1. **The "Innocent Conduct" Distinction:** a. If conduct is "apparently innocent" (owning rifle), mens rea required b. If conduct is inherently dangerous (selling narcotics), strict liability more likely
2. **Penalty Severity as Proxy:** a. 10-year maximum = "harsh penalty" incompatible with public welfare offenses b. Misdemeanor/fines = more likely strict liability
3. **The "Cluster of Ideas" Doctrine:** a. When Congress uses common-law terms (conversion, stealing), incorporates common-law mens rea b. Congressional silence does not eliminate requirement

VII. CHILD PORNOGRAPHY: MENS REA FOR AGE ELEMENT

A. Distribution Statute (18 U.S.C. § 2252)

1. **The "Knowingly" Travel Problem (United States v. X-Citement Video, Inc.):** a. Does "knowingly" modify only verbs (transports, ships, receives) or extend to age of performers? b. **Textualist View (Scalia):** "Knowingly" modifies immediate verbs only; omission implies strict liability for age c. **Presumptive View (Rehnquist):** Mens rea applies to each element criminalizing otherwise innocent conduct
2. **Court's Analysis:** a. Not a public welfare offense (distribution of visual depictions not inherently dangerous) b. Penalty (10 years) too harsh for strict liability c. If strict liability applied, person could be felon for shipping film they reasonably believed featured adults d. **Holding:** Mens rea read into age element to separate innocent from criminal conduct

B. Production Statute (18 U.S.C. § 2251)

1. **No Mens Rea Language (United States v. Ruggiero):** a. Congress included "knowingly" in distribution statute but left it out of production statute b. Suggests deliberate choice to impose strict liability
2. **Arguments for Strict Liability:** a. Legislative intent (deliberate omission) b. Analogy to statutory rape (Prince/Olsen/Garnett logic) c. Producer has "fair opportunity" to verify age (deals with performers in person)
3. **Arguments for Mens Rea:** a. Staples/Morissette presumption (15-30 year penalty incompatible with strict liability) b. First Amendment concerns (producing adult material is constitutionally protected)

C. Summary Table

Case / Statute	Conduct	Mens Rea in Text?	Court's Conclusion
§ 2252 (X-Citement Video)	Distributing	"Knowingly" (at start)	Required for age element
§ 2251 (Ruggiero)	Producing	None	Strict Liability
Staples	Gun Possession	None	Required (traditional lawful conduct)
Balint/Dotterweich	Drugs/Food	None	Strict Liability (public welfare)

VIII. VICARIOUS LIABILITY AND CONSTITUTIONAL LIMITS

A. State v. Guminga (Minnesota Supreme Court)

- **CASE:** State v. Guminga
- **ISSUE:** Does statute imposing vicarious criminal liability (punishable by imprisonment) on employer for employee's illegal act violate Due Process?
- **RULE:** (1) Due Process balancing test: public interest vs. intrusion on personal liberty; (2) Vicarious liability different from strict liability (punishes for another's acts); (3) Criminal convictions require some level of personal fault
- **HOLDING:** Yes. Statute unconstitutional. Person cannot be convicted of crime punishable by imprisonment for act they didn't commit, know about, or consent to
- **SIGNIFICANCE:** Fine vs. imprisonment distinction critical; imprisonment triggers Due Process concerns

B. The Fine vs. Imprisonment Distinction

1. **Fines Only:** Courts generally uphold vicarious liability if only penalty is financial (regulatory/public welfare)
2. **Imprisonment Possible:** a. **Guminga (MN):** Unconstitutional if statute ALLOWS jail time, regardless of whether imposed b. **Beaudry (WI):** Upheld conviction where jail possible but only fine actually ordered (split in authority)

C. Parental Responsibility Laws

1. **Constitutional Pushback (State v. Akers, NH):** a. Punishing someone simply for status as parent offends Due Process b. Distinction from employers: parents don't "choose" the status
2. **The Oregon Model:** a. Affirmative defense if parent "took reasonable steps to control"

child b. Shifts from strict vicarious liability to negligence-based standard

D. The "Failure to Supervise" Loophole

1. **Personal Omissions Framing:** a. Instead of punishing parent FOR child's crime, punish for OWN failure to act b. Child's crime used as sole evidence of failure to supervise
2. **Critique:** Effectively vicarious liability under different name

E. Voluntary Acts and Strict Liability

1. **General Rule:** Even strict liability cases require voluntary act (actus reus)
2. **The Involuntary Act Problem:** a. Driver swerves because child grabbed arm: no mens rea AND no voluntary act b. Can dispense with mens rea for public welfare, but NOT with voluntary act requirement

IX. THE THREE CATEGORIES OF OFFENSES (Sault Ste. Marie)

A. Regina v. City of Sault Ste. Marie (1978)

- **CASE:** Regina v. City of Sault Ste. Marie
- **ISSUE:** Is there a middle category of criminal liability for public welfare offenses avoiding harshness of absolute liability while protecting public interest?
- **RULE:** Three categories: (1) Mens Rea Offenses; (2) Strict Liability Offenses (with due diligence defense); (3) Absolute Liability Offenses (no defense)
- **HOLDING:** Yes. New trial ordered to determine if city exercised reasonable care
- **SIGNIFICANCE:** Establishes "middle position" with burden-shifting due diligence defense

B. The Three Categories

Category	Mens Rea Required?	Primary Defense	Example
1. Mens Rea	Yes (prosecution proves)	Negation of Intent	Murder, Theft
2. Strict Liability	No (actus reus only)	Due Diligence (defendant proves)	Environmental Pollution
3. Absolute Liability	No	None	Minor Traffic Infractions

C. Due Diligence Defense

1. **Burden of Proof:** Once act proven, burden shifts to defendant to prove on "balance of probabilities" they were not negligent
2. **Rationale:** Defendant has most information about their own precautionary measures

D. Constitutional Status

1. **Canada:** Absolute liability + threat of imprisonment = unconstitutional (Motor Vehicle Act reference, 1985)
2. **USA:** Generally constitutional (Balint, Dotterweich), but some courts strike down where

X. MISTAKE OF LAW: THE GENERAL RULE

A. People v. Marrero (New York Court of Appeals)

- **CASE:** People v. Marrero
- **ISSUE:** Does defendant's mistaken personal interpretation of statute—even if reasonable—provide valid "mistake of law" defense?
- **RULE:** Mistake of law NOT a defense unless mistaken belief founded upon OFFICIAL STATEMENT of law (statute, administrative order, judicial decision) later found invalid or erroneous
- **HOLDING:** No. Conviction affirmed. Personal misreading of statute does not trigger defense
- **SIGNIFICANCE:** "Official statement" defense is narrow escape hatch for those relying on laws government later admits were wrong

B. The Mistake Hierarchy

1. **Mistake of Fact:** "I took your umbrella because I thought it was mine" (Usually defense if negates mens rea)
2. **Mistake of Law:** "I knew I was taking your umbrella, but I thought law said all umbrellas in lobby are public property" (Generally NOT a defense)

C. Rationale for Ignorantia Legis

1. **Holmes' View:** We punish ignorant to force people to "know and obey"
2. **Policy Fear:** Allowing "personal interpretation" defense would encourage people to stay ignorant or find loopholes
3. **The Police Exception (Heien):** Supreme Court allows police "reasonable mistake of law" defense for Fourth Amendment seizures (civilians vs. police debate)

D. When Mistake of Law CAN Be a Defense

1. **Property Rights (Regina v. David Smith):** a. Man destroyed wall panels he installed, thought they were his b. Crime requires "damaging property belonging to another" c. Mistake about legal status of property negated intent
2. **Larceny/Theft (State v. Varszegi):** a. Landlord took computers believing he had "claim of right" under lease b. Lacked felonious intent to steal
3. **The Rule:** If you honestly believe property is yours (even if legal reasoning wrong/unreasonable), you aren't "thief" because you lack intent to steal

E. The MPC Reconciliation: "Collateral Law" Rule

1. **MPC § 2.04(1):** Mistake of law is defense if it negates required mental state for element
2. **MPC § 2.02(9):** Generally don't need to know conduct IS a crime (law defining the offense)
3. **The "Collateral" Distinction:** a. **Law Defining Offense:** "Is it illegal to carry this gun?"

(No defense if wrong) b. **Collateral Law:** "Does this property belong to me?" (Defense allowed because negates knowledge for specific element)

4. **Rehaif Case:** Defendant must know "legal status" (being in U.S. unlawfully) to "knowingly" violate firearm statute

F. Summary Table

Type of Mistake	Example Case	Is it a Defense?
Mistake of Criminal Statute	Marrero (Am I a peace officer?)	NO
Mistake of Property Law	David Smith (Is this my wall?)	YES
Mistake of Contract Law	Varszegi (Does lease let me take this?)	YES
Mistake of Status Law	Rehaif (Is my visa expired?)	YES

XI. CHEEK V. UNITED STATES: WILLFULNESS AND TAX CRIMES

A. Cheek v. United States (1991)

- **CASE:** Cheek v. United States
- **ISSUE:** Does subjective, good-faith misunderstanding of law negate statutory "willfulness" requirement, even if objectively unreasonable? Does belief law is unconstitutional also negate willfulness?
- **RULE:** (1) "Willfulness" means "voluntary, intentional violation of known legal duty"; (2) Subjective, good-faith misunderstanding—even if unreasonable—negates knowledge and provides defense; (3) Belief law is unconstitutional is NOT a defense
- **HOLDING:** Reversed and remanded. Jury wrongly instructed to ignore "unreasonable" beliefs; constitutional arguments legally irrelevant
- **SIGNIFICANCE:** Tax laws so dense that Congress added willfulness requirement to protect citizens lost in paperwork

B. The "Knowingly/Willfully" Spectrum

1. **Inconsistent Meanings:** a. Awareness of facts only b. General awareness act is unlawful c. Awareness of specific statute violated
2. **Hazardous Materials Rule (Int'l Minerals):** a. For dangerous items, only need to know facts (shipping acid) b. "Probability of regulation so great that anyone aware of facts must be presumed aware of regulation"
3. **Innocent Conduct Rule (Liparota):** a. For non-dangerous items (food stamps), "knowingly" DOES require knowing law b. Protects "apparently innocent conduct"
4. **Drug Exception (Ansaldi):** a. Even if drug is complex, knowing you sold chemical is enough b. Don't need to know law labeled it "controlled substance"

C. Official Reliance & "Entrapment by Estoppel"

1. **Traditional Harsh View (Hopkins):** Even if State's Attorney tells you sign is legal, if he's wrong, you go to jail
2. **MPC View:** Defense if you reasonably rely on official statement later found wrong
3. **Constitutional "Entrapment by Estoppel" (Raley):** Due Process prevents government

from telling you "X is legal" then prosecuting you for X

4. **The "Reasonableness" Trap:** a. **Cox:** Reliance on state law unreasonable because Supremacy Clause means federal law beats state law b. **Albertini/Muskett:** Reliance on "shaky" court ruling unreasonable; need "uncanny legal foresight"

D. Quick Summary

Scenario	Outcome
Standard Regulatory Crime: "I didn't know!"	GUILTY (Int'l Minerals)
Innocent-Looking Conduct: "I didn't know!"	NOT GUILTY (Liparota)
Tax/Complex Crimes: "I didn't know!"	NOT GUILTY (Cheek)
Government Lied: "It's legal!"	NOT GUILTY (Raley/MPC)
State vs. Federal: "State said okay!"	GUILTY (Cox - Federal Supremacy)

XII. LAMBERT V. CALIFORNIA: DUE PROCESS AND NOTICE

A. Lambert v. California (1957)

- **CASE:** Lambert v. California
- **ISSUE:** Does municipal ordinance violate Due Process when it punishes "wholly passive" failure to register, despite person having no notice or knowledge of duty to act?
- **RULE:** Due Process requires notice when: (1) conduct is wholly passive (omission); (2) defendant unaware of duty; (3) no circumstances moving reasonable person to inquire (act not malum in se or inherently dangerous)
- **HOLDING:** Reversed. Conviction cannot stand because lack of notice violated Due Process
- **SIGNIFICANCE:** Government must prove actual knowledge or probability of knowledge before punishing passive failure to register

B. The "Passive Omission" Key

1. **Active vs. Passive Conduct:** a. **Active (Marrero):** Carrying gun = should have known law b. **Passive (Lambert):** Living in city = mere presence not "alerting"
2. **The "Probability of Knowledge" Test:** a. Would person in defendant's shoes likely know about law? b. Unlike liquor/gun dealer who knows business is regulated, person walking streets has no reason to suspect secret registration requirement

C. Summary Comparison

Case	Conduct Type	Outcome	Reason
Marrero	Active (Carrying gun)	Guilty	Should have known law
Int'l Minerals	Active (Shipping acid)	Guilty	Dangerous materials "alert" to regulations
Lambert	Passive (Living in city)	NOT Guilty	Mere presence not "alerting"

D. Limiting Lambert

1. **Narrow Application:** a. Only applies when conduct is wholly passive (failure to act) b. Law must be regulatory/administrative (not inherently "evil")
2. **The "Babysitter" Hypo:** a. Ordinance prohibiting felons from babysitting b. Lambert

might NOT apply because "accepting employment" is affirmative act

3. **Sex Offender Registration (State v. Bryant):** a. Court rejected Lambert defense b. Distinctions: public safety measure (vs. record-keeping); duty to inquire (nearly every state has registries)

E. "Entrapment by Omission"

1. **Misleading Judge (State v. Leavitt):** a. Judge told defendant couldn't have guns during 1-year probation b. Defendant thought that meant could have them after year c. Actually, different law banned them forever d. **Holding:** Reversed. Government (via judge) affirmatively misled defendant
2. **Obscure Statute Trap (United States v. Wilson):** a. Man under restraining order arrested for owning gun b. State judge never mentioned guns; man had no lawyer c. **Majority:** Conviction affirmed (knowledge of facts rule) d. **Posner's Dissent:** Federal code full of "ridiculously obscure" laws; restraining order "lulled" Wilson into thinking he was fine

F. The "Notice" Cheat Sheet

Factor	Defense Likely?	Example
Wholly Passive Omission	YES	Lambert (Living in LA)
Affirmative Act	NO	Carrying gun, selling drugs
Inherently Dangerous Act	NO	Int'l Minerals (Acid)
Obscure/Non-Intuitive Law	MAYBE	Wilson (Posner's Dissent)
Misled by Official	YES	Leavitt (1-year probation)
"Alerting" Circumstances	NO	Bryant (Sex offender registries)

XIII. RAPE LAW: STATUTORY FRAMEWORKS

A. The Historical Shift

1. **Phase 1: Force & Resistance (Blackstone/1950 CA)** a. Focus on defendant's physical violence and victim's physical struggle b. Required "great and immediate harm"
2. **Phase 2: The "Reasonable Woman" & Implied Threats (1962 MPC)** a. Began recognizing psychological "compulsion" b. Still graded offense lower if victim was "voluntary social companion"
3. **Phase 3: Affirmative Consent (Modern CA/WI/2021 MPC)** a. Focus shifts from defendant's FORCE to victim's LACK OF CONSENT b. Consent defined as "positive cooperation"

B. Comparative Cheat Sheet ("Big Four" Jurisdictions)

Jurisdiction	Definition of Consent	Key Feature/Grading
CA (1950)	Resistance-based	Gender-specific; "Great and immediate harm" required
MPC (1962)	"Compels to submit"	Discriminatory grading: less severe if "voluntary social companion"

CA (2021)	"Positive cooperation"	Includes "Duress" and "Menace"; abolishes spousal exemption
New York	"Forcible Compelled"	Tiered: 1st (Force/Helpless), 2nd/3rd (Incapacity/Lack of Consent)
Wisconsin	"Words or overt actions"	Graded by Result: 1st tied to pregnancy, weapon, or "great bodily harm"

C. High-Yield Exam Issues

1. **"Force" vs. "Lack of Consent"** a. **Force Jurisdictions (NY/Traditional):** Must prove defendant did something aggressive b. **Non-Consent Jurisdictions (WI/Modern CA):** Only need to prove victim didn't agree c. **Exam Trap:** "She froze and said nothing" = acquittal in Force state, conviction in Non-Consent state
2. **Spousal Immunity (Marital Exemption)** a. 1950 CA and 1962 MPC specifically say "not his wife" b. Modern statutes (CA 2021) largely abolished
3. **Grading and Aggravating Factors** a. NY: 1st Degree = Physical force or victim "physically helpless" b. WI: 1st Degree = Pregnancy or "Great Bodily Harm" c. MPC (1962): 1st Degree = Serious injury OR victim wasn't social companion (controversial)
4. **Fraud and Deception** a. CA 2021 § 261(a)(5): Covers "Rape by Fraud" (pretending to be someone victim knows) b. Most older laws only recognized fraud as rape if victim thought they were married to perpetrator

D. The "Two Americas" of Sexual Assault Law

Approach	Jurisdictions	Required Elements	Status of Non-Consensual Sex
Traditional (Majority)	27 States (incl. CA & TX)	Force or threat of physical force	If no force, may be misdemeanor or not crime
Modern (Minority)	22 States	Absence of Consent	Sexual penetration without consent = felony regardless of force

XIV. STATE V. RUSK: THE FORCE/CONSENT TENSION

A. State v. Rusk (Maryland Court of Appeals, 1981)

- **CASE:** State v. Rusk
- **ISSUE:** Whether evidence sufficient to sustain rape conviction when victim's fear not preceded by direct threat of force or physical resistance, but based on defendant's conduct and surrounding circumstances
- **RULE:** If victim's fear is reason for lack of resistance, that fear must be REASONABLY GROUNDED to negate consent
- **HOLDING:** Conviction reinstated. Jury is proper body to decide if victim's fear is reasonable
- **SIGNIFICANCE:** Victim doesn't need to be physically beaten for "force" to exist; reasonable apprehension of fear satisfies element

B. The Objective vs. Subjective Tension

1. **General Rule:** Law doesn't care if YOU were personally scared; cares if REASONABLE

PERSON in your shoes would have been scared

2. **Rusk's Expansion:** a. Psychological coercion and "implied" threats can be just as potent as physical punch b. Taking car keys + "heavy" look + light choking + isolated location = enough for jury

C. Then vs. Now Analysis

1. **In a "Non-Consent" State:** Rusk would NOT be a close case—lack of consent would be enough
2. **In a "Force" State:** Still close, depending on whether taking car keys viewed as "coercion"
3. **Reformers' View:** Glass "not yet half full" because autonomy violated moment consent absent; waiting for "force" puts victim in unnecessary danger

D. Common Exam Issues / Traps

1. **Actus Reus Distinction:** a. "Force" states: actus reus is the VIOLENCE b. "Non-consent" states: actus reus is PENETRATION WITHOUT PERMISSION
2. **Statutory Rape Exception:** Even "Force" states punish non-consensual sex without force in three categories: Age, Unconsciousness, Mental Incompetence
3. **Modern Reform:** Essentially trying to add "Lack of Consent" as fourth category

XV. PROFESSOR'S EXAM TIPS AND TRAPS

A. Mistake of Fact

1. **Always check:** Is the mistake about an
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CRIMINAL LAW OUTLINE: ATTEMPT, SOLICITATION & IMPOSSIBILITY

I. CRIMINAL ATTEMPT — THE SUBSTANTIAL STEP TEST (MPC § 5.01)

A. Definition and Core Doctrine

1. Attempt requires: (a) specific intent to commit the target crime, AND (b) a "substantial step" toward completion that is "strongly corroborative" of criminal purpose.
2. The MPC deliberately relaxed the common law "proximity" test to enable earlier police intervention.
3. **CASE: United States v. Jackson, 560 F.2d 112 (2d Cir. 1977)**
 - **ISSUE:** Can defendants be convicted of attempted robbery when they never

entered the bank or brandished weapons, but reconnoitered the location while armed?

- **RULE:** Under MPC § 5.01, a "substantial step" must be conduct that is "strongly corroborative" of the actor's criminal purpose.
- **HOLDING:** Yes. Scouting the bank twice while in possession of guns, masks, and a demand note constituted a substantial step.
- **SIGNIFICANCE:** The Second Circuit formally adopted the MPC's substantial step test, rejecting the older proximity test.

B. Elements of Attempt (MPC § 5.01(1))

1. **Culpability:** Actor must act with the kind of culpability otherwise required for the commission of the crime.

- a. For most crimes, this means "purposely" (specific intent).
- b. **Exam Trap:** Attempt is a "specific intent" crime even if the target crime is general intent. You cannot "attempt" negligently or recklessly.

4. **Conduct Element:** Actor must engage in conduct constituting a "substantial step."

- a. The step must be "strongly corroborative" of criminal purpose.
- b. The step need not be the "last act" before completion.
- c. **MPC § 5.01(2)** provides a non-exhaustive list of conduct that can constitute a substantial step:
 - (a) Lying in wait, searching for, or following the contemplated victim
 - (b) Enticing the victim to go to the place of the crime
 - (c) Reconnoitering the place of the crime
 - (d) Unlawful entry of a structure where the crime is to be committed
 - (e) Possession of materials to be used in the crime, specially designed for unlawful use
 - (f) Soliciting an innocent agent to engage in conduct constituting an element of the crime
 - (g) Soliciting another person to commit the crime (can be treated as attempt)

C. The Preparation vs. Attempt Distinction

1. **Common Law Proximity Test:** Act must be "dangerously close" to completion.

- a. **CASE: State v. Davis, 319 Mo. 1222, 6 S.W.2d 609 (1928)**
 - **ISSUE:** Does hiring a supposed hitman, providing a photo and map, and paying a down payment constitute attempted murder?
 - **RULE:** An attempt requires an act that would "naturally result" in the crime unless interrupted by an outside force.
 - **HOLDING:** No. Hiring a hitman was "mere preparation" because the hitman (an undercover officer) had not yet moved toward the victim.
 - **SIGNIFICANCE:** Classic example of the strict proximity test; under the MPC, Davis would be guilty because paying a hitman is "strongly corroborative" of intent.

7. **MPC Substantial Step Test:** Focuses on whether conduct "strongly corroborates" intent, not on how close the actor came to completion.

8. Policy Tension:

- a. **Early Intervention:** Allows police to stop crimes before they happen.
- b. **Due Process Risk:** Lowering the actus reus threshold increases police discretion, which can lead to biased enforcement.
- c. **Professor Sood's Study:** The proximity test's "dangerously close" language may actually be more biased because it acts as an emotional anchor for jurors.

D. Common Exam Issues / Traps

1. **The "Dry Run" Problem:** Multiple attempts to commit the same crime (as in Jackson) strongly corroborate intent. Single acts of reconnoitering may be insufficient.
 2. **Temporal Proximity:** Even under the MPC, conduct occurring hours before the planned crime may still be "mere preparation."
 - a. **Problem: United States v. Harper** — Waiting 90 minutes for a hypothetical victim is likely still preparation, even under MPC § 5.01(2)(a).
 4. **Abandonment After Substantial Step:** Once a substantial step is taken, the crime of attempt is complete. Subsequent abandonment is not a defense unless it meets the strict requirements of the "Renunciation" defense (MPC § 5.01(4)).
 - a. **Problem: United States v. Joyce** — Flying to a city with \$22,000 to buy drugs is a substantial step; walking away later does not negate the attempt.
 6. **Omissions as Attempt:** Under MPC § 5.01(1)(c), a failure to act can be a substantial step if the actor has a legal duty to act.
 - a. **Example:** Nursing home attendant intentionally skips a patient's medication with intent to kill. The omission is a substantial step toward murder.
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II. SOLICITATION

A. Definition and Elements

1. **Solicitation** is asking, enticing, commanding, or encouraging another person to commit a crime.
2. **Elements:**
 - a. The defendant must have the specific intent that the other person commit the crime.
 - b. The defendant must communicate the request or encouragement.
 - c. No agreement is required — the person solicited may refuse.

B. Solicitation vs. Attempt

1. **Common Law:** Solicitation is NOT an attempt because the solicitor does not intend to commit the crime personally.
 - a. The "independent will" of the solicited person stands between the defendant and the crime.
 - b. **CASE: State v. Davis** — Hiring a hitman was not attempted murder because

the hitman's independent will had not yet been exercised.

4. **MPC § 5.01(2)(g):** Solicitation CAN be treated as a "substantial step" toward attempt.

- a. This collapses the distinction between solicitation and attempt under the MPC.

C. Solicitation as an Independent Crime

1. Solicitation is a separate, inchoate crime even if it cannot be charged as attempt.

2. **Policy Rationale:** Solicitation creates a "special hazard of cooperation" — two criminals are more dangerous than one.

3. **The "Feigned Accomplice" Problem:**

- a. If the person solicited is an undercover officer, there is no "agreement" for conspiracy.
- b. However, solicitation requires only a unilateral request — the officer's status is irrelevant.
- c. **Exam Trap:** Davis could not be convicted of conspiracy (no two-party agreement) but could be convicted of solicitation.

D. First Amendment Limitations

1. **Protected Speech:** Abstract advocacy of violence or political hyperbole ("These politicians deserve to die!").

2. **Unprotected Speech:** Specific solicitation of an illegal act ("I will pay you \$5,000 to kill that politician tonight at 8 PM").

3. **The "How-To" Manual Problem:**

- a. **CASE: Rice v. Paladin Enterprises** — A book (Hit Man) with such specific instructions for committing murder crossed the line from protected speech to providing the means for a crime.

E. Common Exam Issues / Traps

1. **Solicitation + Attempt:** Under the MPC, the same conduct can be charged as both solicitation and attempt. Under common law, they are mutually exclusive.

2. **The "Independent Moral Agent" Defense:** Some argue solicitation is less dangerous than attempt because the solicited person can refuse. The MPC rejects this reasoning.

3. **Merger:** Solicitation merges into the completed crime or attempt. You cannot be convicted of both solicitation and the completed crime.

III. IMPOSSIBILITY

A. The Taxonomy of Impossibility

1. **Factual Impossibility:** Physical circumstances prevent completion (unloaded gun, empty safe, victim already dead).

- a. **NEVER a defense.** The defendant's intent is what matters.
 - b. **Example:** Reaching into an empty pocket to steal a wallet is attempted larceny.
4. **True Legal Impossibility:** The defendant's intended conduct is not a crime under any circumstances.
- a. **ALWAYS a defense.**
 - b. **Example:** Dancing on a Tuesday, believing it to be illegal. No crime exists, so no attempt.
7. **Hybrid (Misabeled) Legal Impossibility:** The defendant intends to commit a crime, but a legal circumstance makes completion impossible in this specific instance.
- a. **This is the "Great Debate" area of criminal law.**

B. The Three Competing Approaches

1. The MPC/Modern Approach (Subjectivism) — MPC § 5.01(1)

a. **Rule:** If the defendant believes the circumstances are such that their conduct would be a crime, impossibility is NO defense.

b. **Focus:** Entirely on the defendant's subjective intent.

c. **CASE: People v. Dlugash, 41 N.Y.2d 725, 363 N.E.2d 1155 (1977) - ISSUE:** Can a defendant be convicted of attempted murder if they shoot a person with intent to kill, but the victim is already dead? - **RULE:** Under the modern New York Penal Law (influenced by the MPC), if the defendant believes the circumstances would make their conduct a crime, impossibility is no defense. - **HOLDING:** Yes. Dlugash believed Geller was alive when he fired the headshots; his subjective intent to kill supports an attempted murder conviction. - **SIGNIFICANCE:** Explicitly overruled the Jaffe logic; the focus is on the defendant's belief, not the objective legal status of the property/victim.

d. **CASE: State v. Smith** — Defendant bit a guard believing he could transmit HIV. Even though medically impossible, his intent to kill made him guilty of attempted murder.

2. The Berrigan Approach (Strict Legalism)

a. **Rule:** You cannot "attempt" to do something that is not a crime in that specific instance.

b. **CASE: United States v. Berrigan** — Smuggling letters. - If the law says "it is a crime to do X without the Warden's consent," and the Warden consents, then "X" is no longer a crime. No attempt possible.

c. **Result:** Revives the Jaffe logic. Requires the "external, objective situation" to match the law's requirements.

3. The Oviedo Approach (Objective Acts Test)

a. **Rule:** The defendant's physical acts, standing alone (without looking at secret intent), must appear criminal to an objective observer.

b. **CASE: United States v. Oviedo** — Selling a legal substance (procaine) believing it to be heroin. - Since selling a legal substance looks exactly like a legal business deal to a bystander, no conviction for attempt.

c. **Policy Rationale:** Prevents conviction based on "thought crimes" or undercover setups where the defendant's actions appear innocent.

C. The Jaffe Rule (Historical Context)

1. CASE: *People v. Jaffe*, 185 N.Y. 497 (1906)

- **ISSUE:** Can a defendant be convicted of attempting to receive stolen property when the property, unknown to the defendant, has been returned to its owner?
- **RULE:** An attempt requires that the act, if completed, would constitute the substantive crime. If the intended act is not a crime in the eyes of the law, the attempt cannot be a crime.
- **HOLDING:** No. Since the cloth was no longer "stolen" property, receiving it was not a crime, and attempting to receive it was not a crime.
- **SIGNIFICANCE:** Classic example of the "legal impossibility" defense, now largely rejected by the MPC.

6. The "Pocket-Picking" Distinction:

- a. **Factual Impossibility (Attempt):** Reaching into an empty pocket to steal a wallet.
- b. **Legal Impossibility (No Attempt under Jaffe):** Reaching into a pocket to steal what you think is a wallet but is actually your own property.

D. Summary Table: The Three Approaches

Approach	Case Example	Focus	Result if you shoot a corpse
MPC (Subjective)	Dlugash, Smith	Intent	GUILTY (You intended to kill)
Legalist	Berrigan, Jaffe	Legal Status	NOT GUILTY (Can't kill a dead man)
Objective	Oviedo	Visible Acts	NOT GUILTY (Shooting "something" isn't inherently murder)

E. Policy Rationale for the Modern Rejection of Jaffe

1. **The "Fortuity" Factor:** The law should not let defendants benefit from the "good luck" of failing to complete the crime.
2. **Punishment Based on Culpability:** Modern law ties punishment to the actor's "badness" (intent), not the harm caused.
3. **Undercover Stings:** The MPC approach ensures convictions in undercover operations (e.g., "John" meets "prostitute" who is a cop; "pedophile" meets "child" who is an adult detective).
4. **Evidentiary Fear (Oviedo):** The objective approach prevents conviction of innocent people who are "talking tough" or engaged in ambiguous conduct.

F. Common Exam Issues / Traps

1. **Mislabeling:** Exam questions often label "legal impossibility" when the actual issue is factual impossibility. Always check: Was the defendant's intended conduct a crime

under any circumstances?

2. **The "Empty Pocket" Problem:** Always factual impossibility = attempt. The pocket being empty is a physical fact, not a legal status.
 3. **The "Imaginary Crime" Problem:** Always true legal impossibility = no attempt. If the defendant thinks it's illegal to do something that is actually legal, no crime.
 4. **The "Dead Victim" Problem (Dlugash):** Under the MPC, attempted murder of an already-dead victim is still attempted murder because the defendant believed the victim was alive.
 5. **The "Stolen Goods" Problem (Jaffe):** Under the MPC, attempting to receive goods you believe are stolen is attempted receipt of stolen property, even if the goods are legally "clean."
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IV. THE CONTINUUM OF INCHOATE LIABILITY

A. The Four Stages

Stage	Definition	Key Requirement
Solicitation	Asking someone to commit a crime	The request itself
Conspiracy	An agreement between two + people	The agreement + (usually) an overt act
Attempt	Moving toward the crime yourself	A "substantial step" or "proximity"
Completed Crime	The harm is achieved	Actus Reus + Mens Rea + Causation

B. Merger Rules

1. Solicitation merges into conspiracy, attempt, or the completed crime.
2. Conspiracy does NOT merge into the completed crime (separate offense).
3. Attempt merges into the completed crime.

C. Exam Strategy

1. **Always analyze attempt first** — it is the most tested inchoate crime.
 2. **Identify the jurisdiction** — MPC (substantial step) vs. Common Law (proximity) changes the outcome.
 3. **Check for impossibility issues** — especially in undercover sting operations.
 4. **Consider solicitation as a fallback** — if attempt fails, solicitation may still be available, especially when the "accomplice" is a police officer.
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CRIMINAL LAW OUTLINE: GROUP CRIMINALITY

I. ACCOUNTABILITY FOR THE ACTS OF OTHERS — THE

DOCTRINE OF COMPLICITY

A. Definition and Purpose

1. **Black-Letter Rule:** The doctrine of complicity imposes criminal liability on an actor who is blameworthy for the conduct of another, based upon principles that comport with our perception of human actions.
2. **Distinction from Other Doctrines:** Complicity differs from conspiracy and vicarious liability by requiring a specific nexus between the accomplice's conduct and the principal's crime.
3. **Accessory After the Fact:** Not a recognized form of complicity under modern statutes.
 - *Example:* A doctor who treated John Wilkes Booth after Lincoln's assassination would not be treated as an accessory to murder.
 - The doctor could be charged with obstruction of justice, but not as a participant in the murder itself.

B. Common Law Categories of Participation

1. **Principal in the First Degree:** The actor who is the absolute perpetrator of the crime.
 2. **Principal in the Second Degree:** The actor who is present, aiding and abetting the fact to be done.
 3. **Accessory:** Someone who is not the chief actor in the offense, nor present at the time the crime is performed, but is in some way concerned with the crime before or after the fact.
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II. MENS REA FOR GROUP CRIMINALITY — THE INTENT REQUIREMENT

A. The "Community of Unlawful Purpose" Standard

CASE: Hicks v. United States

- **ISSUE:** Can a defendant be convicted of aiding and abetting murder based on words spoken at the scene if those words were not intended to encourage the perpetrator, or if the perpetrator was not actually influenced by them?
 - **RULE:** To be an accomplice by "words of encouragement," the defendant must: (1) share the criminal intent of the principal; (2) utter the words with the purpose of inciting or encouraging the crime; and (3) the words must actually induce the principal to commit the act.
 - **HOLDING:** Reversed. The jury instructions were too broad because they allowed a conviction based on the effect of the words rather than the intent of the speaker.
 - **SIGNIFICANCE:** Establishes that guilt by association is not sufficient — there must be a "community of unlawful purpose."
1. **Elements of Accomplice Liability by Encouragement:** a. **Shared Criminal Intent:** The defendant must share the criminal intent of the principal. b. **Purpose to**

Encourage: The words must be uttered with the purpose of inciting or encouraging the crime. c. **Causal Connection:** The words must actually induce the principal to commit the act (or at least be capable of doing so).

2. **What Does NOT Satisfy the Requirement:** a. **Mere Presence:** Being present at a crime scene does not make one an accomplice. b. **Flight:** Riding away with the criminal after the crime does not, by itself, establish accomplice liability. c. **Effect Without Intent:** Words that sound like encouragement to a bystander are insufficient if the speaker lacked the intent to encourage.
3. **MPC Approach:** a. Under the MPC, encouragement can have an effect — a causal relationship between attempting to aid and the crime is sufficient. b. The MPC requires either: (1) an attempt to aid, or (2) shouting out encouragement. c. **Actus Reus Requirement:** Mere thoughts are insufficient — the shouting or attempt to encourage constitutes the actus reus.

B. The "Nexus" Requirement — Association with the Venture

CASE: State v. Gladstone

- **ISSUE:** Whether a defendant can be convicted of aiding and abetting a crime if there is no evidence of a "nexus," prior agreement, or "community of purpose" between the defendant and the principal perpetrator.
 - **RULE:** To be guilty of aiding and abetting, a person must associate themselves with the venture, participate in it as something they wish to bring about, and seek by their action to make it succeed.
 - **HOLDING:** Reversed. Gladstone was not an accomplice because he lacked the specific intent to "further the enterprise" of the seller.
 - **SIGNIFICANCE:** Knowledge + Assistance $\neq$ Accomplice Liability. You need Intent + Association.
1. **Elements of the "Nexus" Test:** a. **Association:** The defendant must associate themselves with the criminal venture. b. **Participation:** The defendant must participate in it as something they wish to bring about. c. **Intent to Succeed:** The defendant must seek by their action to make the crime succeed.
 2. **What is Insufficient:** a. **Passive Assistance:** Providing a map or address without a stake in the outcome. b. **Communication Without Encouragement:** Giving information to a buyer is not the same as encouraging the seller. c. **Knowledge Alone:** Knowing a crime will occur and providing minor assistance is insufficient.
 3. **The "Merchant's Dilemma" — Knowledge vs. Purpose:** a. **Purpose Standard (Current MPC):** The defendant must want the crime to succeed. Most merchants go free (they just want the money). b. **Knowledge Standard (Rejected MPC):** The defendant need only know the crime will happen. Merchants are liable if they know the customer's intent. c. **Substantial Facilitation:** Knowledge plus aid that is "significant" — liability only if the merchant provides something "hard to get."
 4. **Why "Knowledge" Was Rejected:** a. **Inconvenience to Trade:** We do not want clerks acting like private detectives. b. **Freedom of Action:** People should be able to live their lives without constantly monitoring the criminal plans of others.
 5. **The "Serious Crime" Exception (Fountain & Lauria):** a. **Minor Crimes (Prostitution/Gambling):** Require Purpose — we do not want to over-regulate

everyday transactions. b. **Major Crimes (Murder/Terrorism)**: Knowledge is enough — the stakes are too high to hide behind "I just wanted to make a sale." c. **Criticism**: This approach is intellectually inconsistent — the mens rea should not change based on the result. d. **Pro-Posner**: It is practical and deters the most heinous crimes. e. **Anti-Posner**: It makes the law unpredictable and lowers the burden of proof in the most serious cases.

C. The "Advance Knowledge" Requirement — The Rosemond Rule

CASE: Rosemond v. United States

- **ISSUE**: To be convicted of aiding and abetting the "double-barreled" crime of using a firearm during a drug deal, must the defendant have advance knowledge that a confederate would be armed, or is knowledge acquired during the crime sufficient?
- **RULE**: An accomplice must intend to facilitate the entire crime (both the drugs and the gun), and must have advance knowledge of the firearm — meaning knowledge at a time when the defendant still has a realistic opportunity to withdraw from the crime.
- **HOLDING**: Vacated. The jury instructions were flawed because they did not require the jury to find that Rosemond had enough "lead time" to quit the enterprise once he learned of the gun.
- **SIGNIFICANCE**: Establishes the "defense of surprise" — if a defendant only learns of an additional element at the moment it occurs, they have not made a conscious choice to participate in that element.

1. **The "Rosemond Rule" Elements**: a. **Double Intent**: The accomplice must intend to facilitate the entire crime. b. **Advance Knowledge**: The defendant must know about the "extra" element (e.g., the gun) early enough to have a realistic opportunity to withdraw. c. **Intent to Proceed**: The defendant must decide to go forward anyway, thus adopting the "full" crime.
2. **The "Bundle" Theory**: Aiding and abetting is an "all-or-nothing" venture — if you choose to help with a "drug-and-gun" crime, you are liable for both.
3. **The "Point of No Return"**: If the defendant only finds out about the gun the second it is fired, they have not made a conscious choice to participate in a gun crime — they were already "in too deep" to safely leave.
4. **The Intent/Knowledge Paradox**: a. The Court says you must intend to facilitate the crime. b. The Court then says that knowledge of the circumstances plus active participation equals intent. c. **The "Active Participation" Filter**: As long as you are not just an "incidental" helper, your knowledge of the gun makes you responsible for the gun.
5. **Majority vs. Dissent on Timing**: a. **Majority (Kagan)**: You must know about the gun early enough to withdraw. b. **Dissent (Alito)**: If you know there is a gun and you do not leave immediately, you have accepted the risk. c. **11th Circuit (Steiner)**: The government must prove you had a "realistic opportunity" to walk away or change the plan.

D. Common Exam Issues / Traps for Mens Rea

1. **The "Shouting Bystander" Trap**: A defendant who shouts words that sound like encouragement is not an accomplice unless they intended to encourage the crime (Hicks).

2. **The "Human GPS" Trap:** A defendant who draws a map or gives directions is not an accomplice unless they had a "nexus" with the principal and intended the crime to succeed (Gladstone).
 3. **The "Surprise Weapon" Trap:** A defendant who participates in a crime but only learns of a weapon at the moment it is used may not be liable for the weapon charge if they lacked a realistic opportunity to withdraw (Rosemond).
 4. **The "Merchant's Dilemma":** A shopkeeper who sells a legal item used in a crime — check the jurisdiction:
 - MPC: Look for Purpose.
 - Judge Posner/Fountain: Check if the crime is "serious" enough that Knowledge might suffice.
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III. MENS REA FOR RESULTS AND ATTENDANT CIRCUMSTANCES

A. The "Intentional Encouragement of Negligent Conduct" — McVay

CASE: State v. McVay

- **ISSUE:** Can a person be held liable as an accessory (accomplice) to the crime of involuntary manslaughter if they intentionally encouraged the negligent conduct that led to the death?
 - **RULE:** Yes. An accessory may be convicted of manslaughter if they intentionally incited or encouraged the principal to engage in the dangerous and negligent conduct that resulted in the fatality.
 - **HOLDING:** Affirmed. McVay could be an accessory to manslaughter because he intentionally encouraged the dangerous conduct.
 - **SIGNIFICANCE:** Establishes that you can be an accomplice to an unintentional crime if you intentionally encourage the underlying negligent act.
1. **The "Act vs. Result" Distinction:** a. **The Conduct:** While the death was unintentional (negligent), the conduct (running a broken boiler) was intentional. b. **The Encouragement:** The defendant intentionally encouraged the principal to be negligent. c. **Foreseeability:** If you push someone to act with "gross negligence," and that negligence kills someone, you are just as responsible as the person who pulled the lever.
 2. **The "Peer Pressure" Rule:** If you pressure your friend into doing something incredibly stupid and dangerous (like street racing or using faulty equipment), and someone dies, you do not get to say, "I did not want them to die." You wanted them to do the dangerous thing — and that is enough to hook you for the manslaughter.

B. The "Result vs. Conduct" Distinction — Roebuck

CASE: Commonwealth v. Roebuck

- **ISSUE:** Can a defendant be convicted as an accomplice to third-degree murder, which requires a mens rea of malice but not a specific intent to kill, given that accomplice liability requires the "intent to promote or facilitate" the crime?

- **RULE:** Yes. To be an accomplice to a crime involving a specific result (like death), the defendant must: (1) intend to promote or facilitate the conduct; and (2) act with the same mental state (recklessness/malice) toward the result required of the principal.
- **HOLDING:** Affirmed. Roebuck was a legal accomplice because he intentionally helped start a violent chain of events while possessing the "malice" (reckless heart) that someone might get killed.
- **SIGNIFICANCE:** Establishes the "double standard" — the act and the outcome are treated differently for accomplice liability purposes.

1. **The "Double Standard" Rule:** a. **The Conduct:** The accomplice must have the specific intent to help the conduct (e.g., the driving, the shooting, the operating of the boiler). b. **The Result:** Regarding the result (the death), the accomplice only needs the mens rea required by the underlying statute (usually recklessness or negligence).
2. **The Logic:** If you intentionally help someone do something incredibly dangerous, you have "adopted" their risk-taking. You do not have to want the victim to die; you just have to not care enough to stop the dangerous act you are fueling.
3. **Specific Intent Crimes vs. Recklessness Crimes:** a. **Specific Intent Crimes (1st Degree Murder):** The accomplice must want the victim to die. b. **Recklessness/Malice Crimes (3rd Degree/Manslaughter):** The accomplice only needs to want to help the dangerous conduct and not care if the victim dies.

C. Classic Exam Hypotheticals — The "Taxi" and the "Roommate"

1. **The Hurried Passenger:** a. **Conduct:** Passenger intentionally encouraged the "speeding and aggressive driving." b. **Result:** Passenger may not have wanted a death, but by urging "whatever it takes," they likely shared the driver's reckless disregard for safety. c. **Verdict:** Passenger is likely an accomplice to negligent homicide/manslaughter.
2. **The Drunk Roommate (The Childress Issue):** a. **Conduct:** Drew intentionally gave the keys (the "aid"). b. **Result:** Did Drew have a "reckless" mental state regarding the death? Most courts say yes — giving keys to a drunk person is inherently reckless. c. **The "Pretzel" Twist:** If Drew asked Jesse to "pick up pretzels," it strengthens the case for accomplice liability because it shows Drew affirmatively promoted the drunk driving trip, rather than just passively allowing it.

D. Attendant Circumstances — The "Blind Spot"

1. **Definition:** "Attendant Circumstances" are facts that must exist for an act to be a crime (e.g., the victim's age in statutory rape, or a person's status as a "felon").
2. **Felon in Possession:** a. **Strict Liability (9th Cir):** B is guilty because A is guilty. b. **Negligence (6th Cir):** B is only guilty if they should have known A was a felon.
3. **Statutory Rape:** a. **Strict Liability (MA):** B is guilty regardless of what they thought C's age was. b. **Knowledge (NC):** B must actually know C is underage to be an accomplice.

E. Common Exam Issues / Traps for Mens Rea for Results

1. **The "Logical Impossibility" Trap:** Students often argue that you cannot be an accomplice to an unintentional crime. McVay and Roebuck reject this — you can be an accomplice if you intentionally encouraged the dangerous conduct.

2. **The "Conduct vs. Result" Distinction:** Always separate the conduct (which requires specific intent to aid) from the result (which requires only the mens rea of the underlying crime).
 3. **The "Attendant Circumstances" Trap:** Be careful with strict liability attendant circumstances — some jurisdictions impose strict liability on accomplices, while others require negligence or knowledge.
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IV. MUTUAL COMBAT AND THE "WILLING PARTICIPANT" THEORY

A. The "Gunfight Rule" — Russell

CASE: *People v. Russell*

- **ISSUE:** Can participants in a mutual gunfight be held liable as accomplices for the death of a bystander, even if it cannot be proven who fired the fatal shot, and even though the defendants were adversaries rather than "partners"?
 - **RULE:** Yes. Accomplice liability is satisfied when defendants intentionally aid each other in engaging in the conduct that causes the death, while possessing the mental state (depraved indifference/extreme recklessness) required for the result.
 - **HOLDING:** Affirmed. When you engage in mutual combat that endangers the public, you have effectively "deputized" your enemies as your accomplices in recklessness.
 - **SIGNIFICANCE:** Establishes the "Mutual Culpability" theory — enemies or competitors can be "helping" each other by participating in the dangerous activity.
1. **The "Mutual Encouragement" Theory:** a. **Shared Conduct:** Even though they were shooting at each other, they were all "willing participants" in the gunfight itself. b. **The "Nexus":** The "community of purpose" was not to kill the bystander; it was to have an illegal, high-stakes gunfight. c. **State of Mind:** All three acted with "depraved indifference" to human life.
 2. **The "Willing Participant" Theory (Abbott):** a. By racing, Moon gave Abbott the "incitement and encouragement" to drive dangerously. b. Even if Moon did not want Abbott to crash, he wanted the race to happen. c. **Key Distinction:** You do not have to intend the specific movement (the swerve of the car or the trajectory of the rival's bullet); you only have to intend to participate in the high-risk collective activity that made those movements possible.
 3. **Traditional Accomplice vs. Russell Accomplice:** a. **Traditional:** A hands B a gun to kill C — they have a friendly agreement, purpose is the crime's success. b. **Russell:** A and B agree to a duel in a park — they are enemies trying to kill each other, purpose is the dangerous conduct itself.

B. Causation vs. Complicity — Which Tool to Use?

1. **Causation Approach:** a. **Legal Question:** Did the defendant's act "set in motion" the chain of events? Was it a "but-for" cause and "proximate" cause? b. **Case Example:** *Commonwealth v. Root* (Strict proximate cause — no liability if the other driver was the direct cause).
2. **Complicity Approach:** a. **Legal Question:** Did the defendant "encourage or aid" the

person who fired the fatal shot/hit the victim? b. **Case Example:** People v. Russell (Broad liability — if you are part of the dangerous conduct, you are an accomplice to the result).

3. **Why Complicity is Often "Stronger" for the Prosecution:** a. Causation can be broken by "intervening acts" (like the rival shooter's independent decision to fire). b. Complicity bypasses this by saying, "It does not matter who did the final act; you were both in it together."

C. Common Exam Issues / Traps for Mutual Combat

1. **The "Drag Racing" Trap:** If two people race cars on a highway and one of them hits a pedestrian, Russell says the other driver is also guilty of the homicide because they "aided" the race by participating in it.
 2. **The "Enemy Accomplice" Paradox:** Students struggle with the idea that enemies can be accomplices. Remember — the "community of purpose" is the dangerous activity itself, not the specific outcome.
 3. **The "Causation vs. Complicity" Choice:** On an exam, analyze both theories and argue which is stronger for the prosecution.
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V. THE NATURAL AND PROBABLE CONSEQUENCES (NPC) DOCTRINE

A. Definition and Scope

1. **The Traditional Rule (The Ceiling):** Normally, an accomplice is only liable for the specific crime they intended to aid.
2. **The NPC Rule (The Floor):** Under this doctrine, an accomplice is liable for any other crime committed by the principal, provided that crime was a "natural and probable consequence" of the intended crime.
3. **The "Target" Crime:** The crime you meant to help with (e.g., Burglary).
4. **The "Non-Target" Crime:** The crime your partner committed that you did not intend (e.g., Murdering the homeowner).
5. **The Test:** Was it foreseeable that a burglary might turn into a murder? If "Yes," you are a murderer, even if you were the lookout and specifically told your partner "no guns."

B. The Broad Application — Luparello

CASE: People v. Luparello

- **ISSUE:** Can an accomplice be held liable for a specific-intent crime (murder) committed by the principal, even if the accomplice did not intend for that specific crime to occur, if that crime was a natural and probable consequence of the intended target crime?
- **RULE:** Yes. Under the NPC doctrine, an accomplice is vicariously liable for any reasonably foreseeable offense committed by the principal that is in furtherance of the originally contemplated conspiracy or help.

- **HOLDING:** Affirmed. Luparello was legally responsible for the murder because it was a foreseeable consequence of the assault he set in motion.
 - **SIGNIFICANCE:** Represents the broadest version of accomplice liability — use when arguing for the prosecution in a "Plan A went wrong" scenario.
1. **Elements Under Luparello:** a. **Intent for Target Crime:** Must intend to aid the initial crime (Assault/Threats). b. **Connection:** The second crime must be in "furtherance" of the first. c. **Foreseeability:** Was the second crime (Murder) a "Natural and Probable" consequence? (Objective test).
 2. **The Objective Test:** The court applied a purely objective test rather than a subjective one. a. It did not matter that Luparello personally did not want Martin dead. b. What mattered was that a "reasonable person" in Luparello's position would have recognized that murder was a likely result.
 3. **Modern Limitation (California SB 1437):** a. California has since significantly limited this doctrine. b. In 2018, the CA legislature passed SB 1437, which effectively abolished the NPC doctrine for Murder. c. Today in California, you generally cannot be convicted of murder unless you actually had the intent to kill or were a "major participant" acting with "reckless indifference."

C. The Limitation — Roy

CASE: Roy v. United States

- **ISSUE:** Is the "natural and probable consequence" doctrine broad enough to hold an accomplice liable for a "qualitatively different" crime (robbery) when their original intent was only to facilitate a different, lesser crime (an illegal sale)?
 - **RULE:** A "natural and probable" consequence is one that occurs in the "ordinary course of things." It must be a reasonably predictable outcome, not merely something that is "conceivable" or a "possibility."
 - **HOLDING:** Reversed. Roy's misdemeanor intent could not be "stretched" to cover Ross's independent decision to commit a violent felony.
 - **SIGNIFICANCE:** Establishes a limiting principle — the NPC doctrine does not extend to "qualitatively different" crimes.
1. **The Three Key Arguments Limiting NPC:** a. **Qualitative Difference:** A sale (where both parties get what they want) is fundamentally different from a robbery (where one party is victimized). b. **The "Illegal Market" Logic:** The court rejected the argument that because the victim was a criminal, he was a "logical target" for robbery — this would create a "no limiting principle" rule. c. **Predictability vs. Conceivability:** While it was conceivable Ross might rob the buyer, it was not a "reasonably predictable" part of a standard gun sale.

D. The Judicial "Carve-Outs" — The Chiu Limitation

1. **People v. Chiu (CA):** The California Supreme Court ruled that you cannot use the NPC doctrine for First-Degree Premeditated Murder.
2. **The Logic:** Premeditation is "uniquely subjective." You cannot "foresee" someone else's careful, deliberate weighing of a choice to kill. It is too personal to be transferred to an accomplice who was not there.

E. The Pinkerton Doctrine vs. NPC

1. **NPC Doctrine:** Applies to Accomplices.
2. **Pinkerton Doctrine:** Applies to Conspirators. It requires an agreement and that the "extra" crime was committed to further the conspiracy's goals.
3. **The Luparello Distinction:** Could Luparello be liable under Pinkerton? Likely No. Pinkerton requires the murder to be in "furtherance" of the goal. If the goal was just to get information, killing the source of that information actually thwarts the goal. NPC liability is broader because it does not care if the crime helped the goal — only if it was foreseeable.

F. The Model Penal Code (MPC) Critique

1. **The MPC View:** Accomplice liability should not be extended beyond the shared purposes of the actors.
2. **The "Negligence" Problem:** If the crime requires "Purpose" (like Murder or Robbery), but the NPC doctrine allows a conviction based on "Foreseeability" (Negligence), you are essentially convicting someone of a high-intent crime using a low-intent standard.
3. **"Fairly Envisaged" Standard:** The MPC says you are liable for the means used (e.g., if you help rob a bank and your partner uses a different gun than planned), but not for a "wholly different crime."

G. Common Exam Issues / Traps for NPC Doctrine

1. **The "Plan A to Plan B" Trap:** If your hypothetical involves a "Plan A" that turns into a "Plan B" (e.g., "We planned to shoplift, but my friend punched the guard"), you must analyze: a. Accomplice Liability: Did the defendant intend to aid the punch? (Probably not). b. NPC Doctrine: Was the punch a "natural and probable consequence" of the shoplifting? (Argue both sides!).
2. **The "Qualitative Difference" Trap:** Not every foreseeable crime is covered — if the second crime is "qualitatively different" from the first, the NPC doctrine may not apply (Roy).
3. **The "Premeditation" Trap:** Even in NPC states, you may not be able to use the doctrine for First-Degree Premeditated Murder (Chiu).

VI. CRIMINAL FACILITATION — THE "MIDDLE GROUND"

A. Definition

1. **Purpose:** Some states created a separate, lesser crime for people who help criminals but do not necessarily share their "purpose."
2. **N.Y. Penal Code § 115.05:** Guilty if you provide "means or opportunity" believing it is "probable" that the other person intends to commit a felony.

B. The Gladstone Question Under Facilitation

1. **Argument for Yes:** Gladstone gave a map and address (means/opportunity) believing it

was probable Kent would sell weed.

2. **Argument for No:** Did a map "in fact aid" the sale if Kent already knew Thompson was a dealer? (Facilitation usually requires the aid to actually contribute to the crime's success).

C. Targeted Facilitation Statutes

1. **Juvenile Gun Sales (The Columbine Example):** a. **The Problem:** Mark Manes sold a gun to minors. He did not intend a massacre, so he was not a murder accomplice. b. **The Fix:** Colo. Rev. Stat. § 18-12-108.7 — makes the act of providing the gun the felony itself. c. **Mens Rea:** Only requires recklessness as to the age of the recipient. It ignores the intent regarding what the juvenile does with the gun.
2. **Material Support for Terrorism (18 U.S.C. § 2339A/B):** a. **The Standard:** "Knowing" provision of support. b. **The Trade-off:** The law "hardens" the actus reus (defining exactly what support is, like training or expert advice) so it can "dilute" the mens rea (just knowledge, not purpose). c. **Humanitarian Law Project Ruling:** SCOTUS ruled that even "benign" help (teaching a group how to use international law for peace) is illegal if that group is a designated Terrorist Organization. d. **Critique:** This creates a "chilling effect" on speech and charity.
3. **Money Laundering — The Broadest Net:** a. **§ 1956:** Knowledge that the deal is designed to conceal dirty money. b. **§ 1957:** Knowledge that the money is illegal (no concealment intent required) for deals over \$10,000. c. **The Campbell Case (The Realtor):** A real estate agent was convicted because she was "willfully blind" to her client being a drug dealer (he paid in cash, was secretive). d. **The Danger:** This turns every business person into a "mini-policeman." e. **Social Cost:** If business people are too scared of these laws, "suspected" individuals will be totally shut out of the economy.

D. Summary Table for Finals

Type of Liability	Mental State (Mens Rea)	Typical Conduct (Actus Reus)
Accomplice	Purpose (or Knowledge + Participation)	Direct help/encouragement
N.Y. Facilitation	Believing it is "Probable"	Providing means/opportunity
Material Support	Knowledge of organization's status	Training, advice, money
Money Laundering	Knowledge/Willful Blindness	Financial transactions

E. Common Exam Issues / Traps for Facilitation

1. **The "Willful Blindness" Trap:** "I did not know for sure" is NOT a defense if the facts show you deliberately closed your eyes to the truth (Campbell).
 2. **The "Merchant's Dilemma" Revisited:** On an exam, check if the jurisdiction has a targeted facilitation statute that might apply where general accomplice law fails.
 3. **The "Chilling Effect" Argument:** When analyzing material support or money laundering statutes, consider the policy argument that these laws may over-deter legitimate business transactions.
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VII. PROFESSOR'S EXAM TIPS — MASTER CHECKLIST

A. Always Analyze These Threshold Questions

1. **What is the jurisdiction?** a. Common Law vs. MPC? b. Does the jurisdiction follow the NPC doctrine? c. Are there targeted facilitation statutes?
2. **What is the mens rea for the underlying crime?** a. Specific Intent? → Accomplice must want the result. b. Recklessness/Negligence? → Accomplice only needs to intend the conduct.
3. **Was there a "nexus" or "community of purpose"?** a. Did the defendant associate with the venture? b. Did the defendant intend the crime to succeed?
4. **Was there advance knowledge of all elements?** a. Did the defendant know about weapons or other "extra" elements? b. Did the defendant have a realistic opportunity to withdraw?

B. Common Exam Fact Patterns

1. **The "Shouting Bystander":** Words that sound like encouragement → Analyze Hicks (need intent to encourage).
2. **The "Human GPS":** Drawing a map or giving directions → Analyze Gladstone (need nexus with principal).
3. **The "Surprise Weapon":** Learning of a gun at the last moment → Analyze Rosemond (need advance knowledge and opportunity to withdraw).
4. **The "Peer Pressure":** Encouraging dangerous conduct → Analyze McVay (intentional encouragement of negligent conduct).
5. **The "Party to a Riot":** Handing a brick to a friend during a riot → Analyze Roebuck (intent to aid conduct + recklessness as to result).
6. **The "Mutual Combat":** Two enemies shooting at each other → Analyze Russell (willing participants in dangerous activity).
7. **The "Plan A to Plan B":** Shoplifting turns into assault → Analyze Luparello and Roy (NPC doctrine — was the second crime foreseeable and qualitatively similar?).

C. Policy Arguments to Remember

1. **For Broad Accomplice Liability:** Deters group criminality, holds all participants accountable for foreseeable consequences.
 2. **Against Broad Accomplice Liability:** Punishes defendants for crimes they did not intend, creates "negligence traps," chills legitimate business transactions.
 3. **The "Merchant's Dilemma":** Balancing the need to deter crime against the need to allow ordinary commerce to proceed without constant surveillance.
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